City of Bellingham
City Council Special Meeting Agenda
June 16, 2020, 6:00 PM

Mayor Seth Fleetwood
Council Members Hannah Stone, Gene Knutson, Daniel Hammill, Pinky Vargas, Lisa Anderson, Michael Lilliquist and Hollie Huthman

Contact: (360) 778-8200, ccmail@cob.org
www.cob.org/council
All meetings are held in the City Hall Council Chambers at 210 Lottie Street, Bellingham, WA, unless otherwise noted.

Council members will participate in this meeting remotely through an online web-based meeting platform. Per Washington State Proclamation 20-28, in-person attendance at meetings is prohibited at this time.

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For this special meeting of the City Council, public comment will be limited to the items on the agenda. Advanced testimony is accepted and strongly encouraged by sending comments to the Council Office by email at ccmail@cob.org or by phone to (360) 778-8200. Anyone wishing to testify live during the Special Meeting can do so by joining the remote meeting at the following link: www.cob.org/ccsp. This link can be used before the meeting to pre-register or during the meeting to register and immediately join the meeting. Pre-registration is encouraged.

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Call to Order

Committee Of The Whole
Gene Knutson, Chair
Hannah Stone, Daniel Hammill, Pinky Vargas, Lisa Anderson, Michael Lilliquist, Hollie Huthman

22664	**1.**	**CARES Act Implementation**	**p. 3**
22665	**2.**	**Consideration of Lease Terms for a COVID-19 Emergency Shelter/Temporary Building Encampment at 1530 Cornwall Avenue**	**p. 9**
22666	**3.**	**Resolution Exempting the Drop-In Center at 1530 Cornwall Avenue from State Building Code Requirements in Order to Provide Housing for Indigent Persons Consistent with the Provisions of RCW 19.27**	**p. 234**

Adjournment

Next City Council Meetings
Monday, June 22, 2020

Deadline to submit material for any public hearing for inclusion in the published agenda packet is 8:00 a.m. on Wednesday prior to the meeting.

City Council Agenda Bill

22664

Bill Number

Subject: **CARES Act Implementation**

Summary Statement: The Administration will present its plan to implement the Coronavirus Aid, Relief, & Economic Security (CARES) Act including collaborative approaches with Whatcom County, housing & human services response, economic & business response, and essential services response.

Previous Council Action: **June 8, 2020 adoption of Interlocal with Whatcom County; June 8, 2020 adoption of Interagency Areement with Department of Commerce**

Fiscal Impact: **$2.7m in CARES Act Funding**

Funding Source: **CARES Act**

Attachments: 1. STAFF MEMO

Meeting Activity	Meeting Date	Recommendation	Presented By	Time
Evening Presentation	6/16/2020	Information/Discussion	Tara Sundin, Economic Development Manager	15 minutes

Recommended Motion:

Council Committee:

Agenda Bill Contact:
Brian Heinrich, Exec, x8117

Council Action:

Reviewed By	Department	Date
Brian M. Heinrich	Executive	6/12/2020
Rick M. Sepler	Planning & Community Development	6/12/2020
Forrest W. Longman	Finance	6/12/2020
Peter M. Ruffatto	Legal	6/15/2020
Seth M. Fleetwood	Executive	6/15/2020

City of Bellingham
210 Lottie Street
Bellingham, WA 98225

MEMORANDUM

TO: BELLINGHAM CITY COUNCIL

FROM: TARA SUNDIN, COMMUNITY & ECONOMIC DEVELOMENT MANAGER

CC: MAYOR SETH FLEETWOOD

SUBJECT: CARES ACT COORDINATION WITH WHATCOM COUNTY

DATE: JUNE 14, 2020

Whatcom County, City of Bellingham and the small cities have been awarded federal stimulus dollars through the CARES Act. The State Office of Financial Management developed an allocation methodology and determined the statewide jurisdictional amounts based off 2019 population estimates. Whatcom County has been awarded $12,391,500, the City of Bellingham has been awarded $2,703,300 and the Small Cities have been awarded $1,206,120.

Municipalities will need to submit for reimbursement from the state for all eligible costs incurred by local governments in response to the COVID-19 public health emergency during the period of March 1, 2020 thru October 31, 2020. Coordination is needed to utilize both County and City staff to administer the programs, to create efficiencies and to ensure we are responding to our communities most urgent needs.

To ensure our local governments are consistent in using these funds and to ensure we are leaning on those with expertise and knowledge of the needs in our community, staff of the County and the City are working with the Small Cities Administration, Regional Economic Partnership and other community partners that have established workgroups/taskforces, including the Food Security Taskforce, Childcare Recovery Taskforce, and Digital Infrastructure Workgroup. In other cases, staff will lean on existing advisory groups.

Under the CARES Act, the Coronavirus Relief Funds (CRF) may be used to cover costs that:

- Are necessary expenditures incurred due to the public health emergency with respect to the Coronavirus Disease 2019 (COVID–19).
- Are NOT accounted for in the budget most recently approved as of March 27, 2020 (the date of enactment of the CARES Act) for the State or local government.
- A cost is not considered to have been accounted for in a budget merely because it could be met using a budgetary stabilization fund, rainy day fund, or similar reserve account.
- According to Commerce, the use of these funds is very broad and flexible and can be used for both operating and capital expenditures.

There are six (6) primary eligible cost categories for CARES Act funds when related to the COVID-19 public health emergency, as follows.

- Medical expenses
- Public health expenses
- Payroll expenses
- Expenses to facilitate compliance with public health measures
- Expenses associated with economic support and
- Any COVID-19-related expenses reasonably necessary to the function of government.

CARES Act Relief – Keep Whatcom Safe, Healthy and Working					
COVID-19 Response Program	**Countywide TOTAL**	**Whatcom County**	**City of Bellingham**	**Small Cities**	**Description**
Public Health Emergency Response	$5,000,000	$5,000,000			Health Department Response, Unified Command efforts, testing, PPE
Economic & Business Response	$3,400,000	$2,500,000	$700,000*	$200,000	Business Assistance Grant program in development – REP and other economic development agencies to assist. Implementation of Childcare Taskforce recommendations.
Food, Housing & Human Services Response	$3,400,000	$2,500,000	$700,000*	$200,000	Food security, digital infrastructure, housing security, human services
Essential Government Services	$4109420	$2,000,000	$1,303,300	$806,120	County/City operations impacted, courtroom technology, etc.
Reserves/ Unallocated	$391,500	$391,500			
Total	**$16,300,920**	**$12,391,500**	**$2,703,300**	**$1,206,120**	

* The City of Bellingham has allocated additional local funds to supplement the COVID-19 funds listed above: $350,000 in CDBG for Economic and Business Response, $300,000 in CDBG & $500,000 in Housing Levy for Food, Housing & Human Services Response.

Business & Economic Recovery - Whatcom Restart				
	Whatcom County	**Bellingham**	**Small Cities**	**Total**
City Center & Fairhaven Business Grants		$500,000*		$500,000
Countywide Business Grants	$2,000,000		$100,000 TBD	$2,100,000
Childcare Grants	$500,000	$200,000***	$100,000 TBD	$800,000
				$ 3,400,000

]* Bellingham will also be allocating a percentage of their Countywide funds to these core commercial areas.

**An additional $350,000 will be available from City of Bellingham's CDBG program.

- A Business Assistance Team was established to advise on a grant program which will be made available to businesses throughout Whatcom County.
- Criteria, eligibility and application materials have been drafted.
- The county-wide allocation will be calculated based on number of employees per jurisdiction.
- In addition, Bellingham will allocate additional funding to the City Center and Fairhaven business districts.
- The Regional Economic Partnership will oversee the application process with input from local jurisdictions –
- The grant program should be launched within the next 3-4 weeks.
- $15,000 maximum grant amount – simple reimbursement process based upon expenses and revenue.
- Criteria weighted to need, adaptation, likelihood of success.

Childcare will be a separate funding process. The Childcare Recovery Taskforce, led by the Opportunity Council's Childcare and Early Learning Department, will be advising on the allocation of the childcare dollars. Staff is expecting to receive recommendations in the next week or two.

Housing & Human Services Recovery				
	Whatcom County	**Bellingham**	**Small Cities**	**Total**
Food Security	$400,000	$200,000		$600,000
Housing Security	$700,000			$700,000
Behavioral Health	$350,000			$350,000
Homeless	$550,000	$500,000		$1,050,000
Digital Infrastructure (Schools)	$500,000			$500,000
			$200,000 TBD	$200,000
				$3,400,000

- Food delivery to residents, including, for example, senior citizens and other vulnerable populations, to enable compliance with COVID-19 public health precautions.
    - Developing program with the Whatcom County Food Security Network – waiting on guidance.
- Housing security to ensure residents, including, for example, senior citizens and other vulnerable populations, to mitigate COVID-19 effects.
    - Rent/Mortgage Payments to 80% AMI, Agency Staffing Costs to distribute assistance, Motel Stays
    - Compliance with COVID-19 public health precautions
- Care for behavioral health homeless populations provided to mitigate COVID-19 effects and enable compliance with COVID-19 public health precautions.
    - Lighthouse Mission COVID-19 relocation, PPE, sanitation and janitorial support for housing program
    - Technology for telehealth, behavioral health support in housing and residential treatment facilities
- Facilitate distance learning, including technological improvements tied to school closings

Public Health Emergency Response - A Safe Whatcom

- Payroll expenses for public safety, public health, human services, and similar employees whose services are substantially dedicated to mitigating or responding to the COVID19 public health emergency.
- Expenses for acquisition and distribution of medical and protective supplies, including sanitizing products and personal protective equipment, for public health or safety workers in connection with the COVID-19 public health emergency

- Costs of providing COVID-19 testing, including serological testing
- Cost for telemedicine capabilities

Essential Government Services

- Any other COVID-19-related expenses reasonably necessary to the function of government that satisfy the Fund's eligibility criteria
- County and City operations, Whatcom Unified Command, telework technology, etc.

Cost-sharing agreement addendum's, if required, and subsequent budget ordinances will require future Council action. The respective administrations will coordinate with each other to ensure the programs are administered in a uniform manner and that the program goals will be accomplished to the greatest extent possible. Flexibility in the specific funding amounts are subject to change in order to meet the October deadlines, apply additional funding that becomes available and respond to the most urgent needs.

City Council Agenda Bill

22665

Bill Number

Subject: **Consideration of Lease Terms for a COVID-19 Emergency Shelter/Temporary Building Encampment at 1530 Cornwall Avenue**

Summary Statement: The Administration will present the background and essential lease terms for an emergency shelter/temporary building encampment at 1530 Cornwall Avenue. The essential lease terms for both the lease with the landowner and the sublease with Lighthouse Mission Ministries are outlined in the attached staff memorandum.

Public comment will be accepted before action is taken by Council.

Previous Council Action: **Emergency Ordinance 2020-03-007 related to emergency facilities; 1st and 2nd reading of ordinance appropriating funding on June 8, 2020; Approval of interlocal cost sharing agreement on June 8, 2020**

Fiscal Impact: **Estimated financial commitment to the City is $1.5m, but total cost for the duration of the lease cannot be fully anticipated.**

Funding Source: **CARES Act $500k; Home Fund Levy $200k; Whatcom County $800k**

Attachments:
1. STAFF MEMO
2. FREQUENTLY ASKED QUESTIONS
3. DRAFT AGREEMENT CONDITIONS
4. GOOD NEIGHBOR GUIDE
5. LEASE AGREEMENT
6. PUBLIC COMMENT

Meeting Activity	Meeting Date	Recommendation	Presented By	Time
Special Meeting Full Council	6/16/2020	Vote to Approve	Mayor Seth Fleetwood & Staff	30 minutes

Recommended Motion: Please see the recommended action in the staff memorandum.

Council Committee:

Agenda Bill Contact:
Brian Heinrich, Exec, x8117

Council Action:

Reviewed By	Department	Date
Brian M. Heinrich	Executive	6/12/2020
Rick M. Sepler	Planning & Community Development	6/12/2020
Forrest W. Longman	Finance	6/12/2020
Peter M. Ruffatto	Legal	6/15/2020
Seth M. Fleetwood	Executive	6/15/2020

City of Bellingham
210 Lottie Street
Bellingham, WA 98225

MEMORANDUM

TO: BELLINGHAM CITY COUNCIL

FROM: PETER RUFFATTO, CITY ATTORNEY
TARA SUNDIN, COMMUNITY & ECONOMIC DEVELOMENT MANAGER
RICK SEPLER, PLANNING & COMMUNITY DEVELOPMENT DIRECTOR
ERIC JOHNSTON, PUBLIC WORKS DIRECTOR

CC: MAYOR SETH FLEETWOOD

SUBJECT: LEASE TERMS FOR A COVID-19 EMERGENCY SHELTER/TEMPORARY BUILDING ENCAMPMENT AT 1530 CORNWALL AVENUE

DATE: JUNE 12, 2020

This memorandum provides background and outlines the lease terms for a COVID-19 Emergency Shelter/Temporary Building Encampment at 1530 Cornwall Avenue and requests Council approval of the essential terms. If the lease terms are approved, the City will also seek to execute a sublease with Lighthouse Mission Ministries to operate the shelter. Accordingly, this memorandum also requests approval of essential terms of a sublease with Lighthouse Mission Ministries (LMM) for its Drop-In Center, which the Mayor would be authorized to execute without further action by City Council.

BACKGROUND

When the Governor declared a Public Health Emergency due to the novel coronavirus outbreak, it was necessary to rapidly find a new home for the Drop-in Center. The former location in Old Town is too small to accommodate the social distance that is necessary during a pandemic. Bellingham Public Schools graciously stepped forward to offer Bellingham High School as a short-term site. The Drop-In Center has been housed there since late March.

The status quo is not an option. Since Covid-19 will likely remain a threat to our community into the coming school year, it is necessary to find a more enduring location for the Drop-in Center. Approximately 160 guests stay each night at the Drop-In Center at Bellingham High School. The Whatcom County Health Department provided guidelines to reduce the risk of a COVID-19 outbreak at the shelter and protect the community at large. If the Drop-In Center were to move back to its original Old Town location, the space could only accommodate 50 individuals per night under the new public health guidelines. That would mean 110 people would lose their shelter and have to sleep outside. Attached is a letter from the Whatcom County Health Department supporting this proposal.

SUMMARY OF PROPOSAL

The City of Bellingham, Whatcom County and LMM are partnering to provide a safe alternative to the Old Town Drop-in Center. All three parties will share the cost of this proposal.

Property: 25,000 sf building with a very large parking area that will be utilized in part as a large outdoor courtyard for guests.

Lease: City as Lessee with ability to Sublease to LMM. The Lease has been drafted as a three-year term with an opportunity to renew for one additional year.

Funding: The City will contribute $700,000; the County $800,000 and LMM estimates a minimum of $1.5M for three years of operation. The City and County will contribute towards leasing and improving the property and LMM will be responsible for all costs to operate the facility. This cost sharing arrangement with the County has been approved by both the City Council and the County Council as part of an interlocal agreement.

Use: At the Drop-In Center, along with meals and a bed, guests will also have access to restrooms, laundry facilities, showers, basic storage for overnight guests, important document and medication storage, a café, mail services, a SeaMar community health center, space for telehealth meetings, case management with LMM and strategic partners, meeting space, emotional and spiritual support, and a rich community while navigating next steps. Up to 200 guests can be served.

Timeline: Upon execution of a Lease Agreement and the Sublease Agreement, contractors will begin construction on the Tenant Improvements. The goal is to move guests from Bellingham High School by mid-July.

Please see the attached Frequently Asked Questions for more detailed information.

1530 CORNWALL AVENUE/PUBLIC MARKET LOCATION

Over the last several years, city staff have been looking at options to lease or purchase property to support the need for a Drop-in Center. With the COVID-19 outbreak, a new criterion for operation was imposed as described above. City staff were heavily involved in Whatcom Unified Command in securing the Bellingham High School site as a temporary location. Relocating to BHS was a relatively quick albeit temporary alternative providing appropriate space for safe operations. The BHS was available for use until July. Once the Drop-In Center was relocated to the BHS, staff from the Port of Bellingham, City, County and WUC continued to explore to look for locations that could be used longer term for either medical isolation, medical surge units or drop-in Center operations facilities. A key requirement for Drop-In Center is a large open area that can be monitored from a central location, adequate restroom and shower facilities, and space for outside day use with minimal spill over to adjacent properties.

Engineers, Planners and building facilities experts completed documentation reviews and physical inspections of multiple possible locations. Sites physically examined during this process included: dormitories, hotels, motels, apartment complexes old St. Joseph's hospital, vacant land, empty warehouses and public schools within the City of Bellingham. Most locations were rejected as options for a Drop-In center facility due to the size requirement and open floor space. From this paper review and on-site inspections, 4 sites were examined in greater detail for specific use as a Drop-In Center. For sites on vacant land, both temporary tent structures as well as modular building units were considered.

A brief synopsis of the evaluation of the 4 sites is provided below.

- **600 W. Holly (City of Bellingham)** – Site requires construction of a structure, utilities installation, shoreline permitting and project mitigation. Construction of facilities is expected to cost atleast $3.2 -$4million. This site falls within the Shoreline jurisdiction and permitting is a minimum of 90 days with construction taking 4-6months. Site is an old landfill and is listed as a MTCA site for cleanup and would require Department of Ecology approval which. Confidence in the costs and schedule duration is very low due to the high risk of unknown factors.

- **F-street location (Port of Bellingham**) Site requires construction of a structure, utilities installation, shoreline permitting and project mitigation. Construction of facilities is expected to cost $4-6 million. Permitting would be quicker than 600 W Holly but would still require Port Commission approval and Department of Ecology approval given the site is within a cleanup site. Construction taking 6-8 months. Requires interlocal agreement with the Port of Bellingham. Confidence in the costs and schedule duration is very low due to the high risk of unknown factors.

- **Lignin Building (Port of Bellingham**) Site requires construction of a structure, utilities installation, permitting and project mitigation. Permitting would be quicker than 600 W Holly but would still require Port Commission approval and Department of Ecology approval given the site is within a cleanup site. Construction of facilities is expected to cost $4-6 million. Construction is expected to take 6-8 months. Confidence in the costs and schedule duration is very low due to the high risk of unknown factors.

- **County-owned Property** We have received comments suggesting we consider County-owned property. We briefly explored the county-owned parking lot parcel located behind the public market. The "Annex" site, adjacent to the County's Courthouse is similar to 600 W Holly – a shoreline permit would be required, and significant site work needed to ready it for a 15,0000-sf modular unit.

- **1530 Cornwall Avenue (private property) Site** requires remodel of interior space for separation sanitation, showers, laundry, fencing, security devices and similar minor tenant improvements. Construction is expected to cost $500k- $650k. Construction can be completed in approximately 30 days. The property owner has expressed support in serving the community using this building as a Drop-In Center. Confidence in the estimated costs and schedule is medium-high since the risks of unknowns is low.

After reviewing these options in detail, staff from City of Bellingham, Whatcom County and LMM concluded that 1530 Cornwall is the location best meeting the relocation timeline. The former Public Market building at 1530 Cornwall is also the best financial choice for relocating the Drop-In Center as the risks of unknowns leading to added costs during construction or operations is low. In addition, 1530 Cornwall is available immediately, has enough space for social distancing, and is within walking distance to public transportation and other necessary services. A significant factor in this locations is the property owners willingness and desire to support the community by leasing the building for this purpose at a reduced cost to the public.

An oft repeated concern is daytime use of property and public spaces surrounding the Drop-In Center facility. Another advantage to this facility is the substantial parking lot area on the property that can be fenced off providing spaces for tenants to be outside but still within the facility. The building is also

within the Central Business District, which has a prohibition against sitting or lying on public sidewalks (BMC.10.24.070). That means police will be able to ask people who congregate and remain outside the shelter, but are not seeking services, to move along. Additionally, the site itself and the plan for its configuration will allow LMM to manage persons who tend to congregate at or near the actual shelter but are not seeking services.

PERMIT PROCESS AND CONDITIONS

Washington State, Whatcom County, and the City of Bellingham have all declared emergencies in response to the COVID-19 pandemic and called for emergency action to protect public health and safety. During this time, measures to ensure that community members are safe can be (and have been) implemented immediately. In the case of the public market building, the Mayor approved the action (consistent with Executive Order 2020-02 and Emergency Ordinance 2020-03-008) after determining that the usual approval process would cause undue delay and put guests at the Drop-in Center at significant risk. Under the current Executive Order and Emergency Ordinance, the Drop-in Center may remain in the public market building for the duration of the declared emergency. However, in order to remain at the new location beyond the public health emergency (for a period of up to 4 years), LMM must obtain a permit under the City's temporary shelter code (BMC 20.15.030). This will entail an extensive public input process with an option to appeal, just like any other temporary encampment permit application.

The Drop-in Center is currently permitted to remain in the public market building only for the duration of the declared emergency, and it is uncertain how long the declaration will last. It will likely be at least 18 months before a vaccine for Covid-19 is available. We need to plan for a Drop-In Center that will allow LMM to serve our community for the duration of the public health crisis (or until it's no longer necessary to maintain physical distance), and until they can secure an appropriate permanent location.

Religious Organizations are permitted to establish temporary encampments in existing buildings by State law (RCW 35.21.915). The City of Bellingham has a process for reviewing such applications (BMC 20.15.030). This process will be used to develop appropriate conditions to protect public health and safety as long as the Drop-in Center is located at this site. Please see attached Draft Conditions.

LEASE AGREEMENT – ESSENTIAL TERMS

As set forth in the accompanying Lease Agreement, the essential terms are as follows:

1. **Parties:** JMC1, L.L.C. as Lessor and City of Bellingham as Lessee;

2. **Premises:** 1530 Cornwall Avenue, which includes a 25,106 square foot building as well as a large parking lot.

3. **Duration:** The primary term of the lease is three years, with the option to renew for a one-year term. 6 months' notice must be provided by Lessee to exercise the renewal term of one-year.

   [Note: LMM must meet milestones toward completing its permanent facility for the City to request the one-year renewal and the City will not be required to assume any cost during the fourth year.]

4. **Approvals Required:** The Lease may be terminated in the event the following approvals are not granted:

    a. City Council approval of the Lease Terms.

    b. Lighthouse Mission Ministries approval of the Sublease Agreement.

    c. A Temporary Building Encampment permit will likely be required to continue this use through the full three-year term. This Lease is being executed under the emergency conditions of a pandemic health crisis. In the event a necessary approval is denied or in the event an appeal or other legal action is successful, termination can occur.

5. **Monthly Rent:** Base rent is based upon $6.00 per square foot per year or $12,553 per month or $150,636 per year. Monthly Rent is Base Rent plus Additional Rent. Additional Rent, which is based on actual expenses of certain items identified below in No. 6, is estimated to be $3,900 per month. [Note: The property was listed at $12.00/sf.]

6. **Operating Expenses and Additional Rent:** Lessee pays all direct and additional expenses relating to the premises such as maintenance and repair, utilities, insurance, management fees, and property taxes, except for "Major Repairs". [Note: These expenses will be shared between the City/County and LMM.]

7. **Major Repairs:** A Major Repair is a repair or replacement cost that exceeds $5,000 for a single project. Cost sharing between the Lessee and Lessor will occur for Major Repairs, 50% paid by the Lessee and 50% paid by the Lessor. The Lessee's responsibility for Major Repairs is further limited to the following maximum annual contribution limits:

    During the first year of the Primary Term - $50,000

    During the second year of the Primary Term - $40,000

    During the third year of the Primary Term - $30,000

    During the Renewal Term, if applicable - $20,000

8. **Parking:** The entire parking area is part of the Lease premises. Lessee shall ensure that the sublessee routinely monitors the entire parking lot for litter and debris and maintains the parking area in an orderly and clean condition. Lessee shall ensure that no vehicles parked on the Leased Premises are used as living or sleeping quarters and shall ensure that no camping is allowed outside of the building. Lessee agrees to maintain, at its expense, the parking areas identified in Exhibit C-1, including stall markings, striping, and signage and associated landscaping in order to keep the parking lot in clean, neat, and presentable condition. [Note: The City plans to retain the parking area identified as "Restricted Parking" in order to provide management, oversight and enforcement as it does at nearby areas. Agreement and coordination with Lessor are required for this item.]

9. **Use:** Use is limited to a COVID-19 emergency shelter/temporary building encampment (consistent with the requirements of the Bellingham Municipal Code) for people experiencing homelessness to be operated by LMM.

10. **Alterations:** Lessee, with approval from Lessor, may at its sole cost install tenant improvements. [Note: See Lease Agreement Exhibit C-3 for a list of Tenant Improvements anticipated at this time.]

SUBLEASE AGREEEMENT – ESSENTIAL TERMS

A Sublease agreement between the City and LMM is currently being drafted. The City Council's approval of the essential terms below provides the Mayor with the authority to execute a Sublease agreement, provided that the actual legal document incorporates, in substance, the essential terms outlined below. In the description of terms below the Lease may be referenced as the Master Lease, the City as Sublessor, and LLM as Sublessee.

1. **Parties:** City of Bellingham as Sublessor and Lighthouse Mission Ministries as Sublessee.

2. **Premises:** 1530 Cornwall Avenue, which includes a 25,106 square foot building as well as a large parking, but excludes the Restricted Parking area designated on Exhibit C-1 of the Master Lease.

3. **Duration:** The primary term of the Master Lease is three years. The City will seek renewal of the Master Lease and provide the option for LMM to renew the sublease for a one-year term, subject to conditions below. Six months' notice must be provided by the City to the Lessor to exercise the renewal term of one-year.

    a. LMM must apply for a Temporary Building Encampment Permit within 7 days of execution of Sublease, or sooner. Further, LMM shall comply with the permit and any conditions provided. The City has the option to terminate the Master Lease if a permit does not perfect.
    b. Permanent Facility Milestones:
        i. Sublessee must begin working towards a permanent facility by applying for an Interim Housing Permit for a permanent facility within 6 months of execution of Master Lease.
        ii. Sublessee must demonstrate there is a high-likelihood that it will meet its capital campaign goals and has applied for its land-use entitlement process on a permanent facility within 2 years of execution of the Master Lease.
        iii. Sublessee must commence construction on a permanent facility within 2 years and 5 months of execution of the Master Lease.
        iv. If Sublessee fails to receive an Interim Housing Permit, or other permit needed for a permanent facility, or fails to meet any of the above Milestones, it must immediately begin developing an alternative solution and the lease will not be renewed.
        v. Council action will be required to modify any of the above Milestones.

4. **General Obligations of LMM:** Sublessee will be obligated to satisfy and honor all of the terms of the Master Lease (between City and Lessor) as if it were the Lessee, except for those provisions specifically identified as being satisfied by the City. There will be a division of financial and maintenance and repair as outlined below.

5. **Rent, Expenses, And Maintenance Obligations - Primary Term:** During the Primary Term, Sublessee will be responsible for: (1) all Direct Expenses set forth in the Master Lease; (2) Special Expenses set forth in the Master Lease; (3) the portion of Additional Rent that represents property taxes owed for the property, if applicable; and (4) all maintenance, repair, and replacement obligations other than Major Repairs. "Major Repair" is defined as a single project involving maintenance, repair, or replacement to mechanical, electrical, plumbing, and/or life safety systems when the total project cost exceeds $5,000. Sublessor shall be responsible for Major Repair costs as set forth in the Master Lease.

6. **Rent, Expenses, And Maintenance Obligations – Renewal Term:** During the Renewal Term, Sublessee shall be responsible for all rent, expenses, and maintenance obligations set forth as its responsibility during the Primary Term and, additionally, will be responsible for all rent, expenses, costs, and other financial obligations assumed by the City during the Primary Term. In short, LLM will be responsible for all financial obligations during the Renewal Term, including Major Repairs.

7. **Parking:** LMM shall routinely monitor the entire parking lot, including the "Restricted Parking" for litter and debris and maintain the parking area in an orderly and clean condition. LMM shall ensure that no vehicles parked on the Leased Premises are used as living or sleeping quarters and shall ensure that no camping is allowed outside of the building.

8. **Use:** Use is limited to a COVID-19 emergency shelter/temporary building encampment (consistent with the requirements of the Bellingham Municipal Code) for people experiencing homelessness to be operated by Sublessee. Key operational conditions, similar to those identified above related to the permitting process, will be incorporated into the sublease.

9. **Alterations:** Sublessor will pay for and undertake alterations/tenant Improvements, not to exceed its Maximum Financial Obligation. Anticipated Tenant Improvements are outlined in Exhibit C-3 of the Master Lease. Sublessee must seek approval from Sublessor in order to make any additional alterations.

10. **All other costs:** Sublessee is responsible for all costs for operating the shelter, including but not limited to furnishings, unless otherwise supplied by the City, utilities, staffing. City may purchase furnishings in the event monies are available after TI expenses are known. The Parties will reach agreement on priorities.

11. **Financial Commitment:** The City and County approved an Interlocal Agreement for Cost-sharing totaling $1.5 M. Given this is a triple net lease, exact cost cannot be fully anticipated.

RECOMMENDED ACTION BY CITY COUNCIL

Staff recommends that Council approve the essential elements of the Lease and the Sublease as outlined above.

Drop-In Center Relocation FAQs

Updated June 12, 2020, with new FAQs added

Why does the Drop-In Center need to move?

When the Governor declared a Public Health Emergency due to the novel coronavirus outbreak, it was necessary to rapidly find a new home for the Drop-in Center. The former location in Old Town is too small to accommodate the social distance that is necessary during a pandemic. Bellingham Public Schools graciously stepped forward to offer Bellingham High School as a short-term site. The Drop-In Center has been housed there since late March.

The status quo is not an option. Since Covid-19 will likely remain a threat to our community into the coming school year, it is necessary to find a more enduring location for the Drop-in Center. Approximately 160 guests stay each night at the Drop-In Center at Bellingham High School. The Whatcom County Health Department provided guidelines to reduce the risk of a COVID-19 outbreak at the shelter and protect the community at large. If the Drop-In Center were to move back to its original Old Town location, the space could only accommodate 50 individuals per night under these new public health guidelines. That would mean 110 people would lose their shelter and have to sleep outside.

Why do we need a Drop-in Center in the first place?

Since moving into the High School, the Drop-in Center has provided a safe, supportive 24-hour environment with next-step opportunities to 475 unique individuals. Without the Drop-in Center, these individuals would have had nowhere else to stay. That would be unacceptable for our community. Additionally, the law requires that if the City seeks to enforce certain ordinances against public camping, people who are experiencing homelessness need a place to stay. In order to keep our public spaces clean and orderly, we need a place where anyone who needs shelter can find it.

But won't all those people congregating in one place just spread the disease?

No guests at Lighthouse Mission Ministries (LMM) have yet to test positive for Covid-19, thanks in part to additional measures taken to create physical distancing at the Drop-In Center. LMM is carefully following health and safety protocols that have been laid out by the Whatcom County Health Department and Washington State Department of Health. Such measures include masks available for all guests, CDC recommended bed placement, ample hygiene supplies, handwashing, respiratory etiquette, sanitation of surfaces, and daily health checks by public health nurses or community paramedics. These practices will continue at the Drop-in Center's new location.

Why did you choose this location?

After reviewing all the options, the City of Bellingham, Whatcom County, and LMM concluded that the public market building was the option that met the relocation timeline and was also a financially responsible choice for relocating the Drop-In Center. This new site is also better suited to meet our community's needs for shelter than the former Old Town location for several reasons. The public market building is available immediately, has enough space for social distancing, adequate restroom facilities for the expected number of guests, and is within walking distance to public transportation and other

necessary services. The building is also within the Central Business District, which has a prohibition against sitting or lying on public sidewalks (BMC.10.24.070). That means police will be able to ask people who are loitering outside the shelter but not seeking services to move along.

How is this project being paid for?

Using federal funding and housing levy funds, the City of Bellingham and Whatcom County are sharing the cost to relocate the Drop-In Center. The Lighthouse Mission Ministries will continue to cover its operational costs. The City of Bellingham plans to spend $500,000 of the $2.7 million it is receiving from the Coronavirus Aid, Relief, and Economic Security (CARES) Act toward this effort. This federal funding specifically identifies, "Expenses for care for homeless populations provided to mitigate COVID-19 effects and enable compliance with COVID-19 public health precautions" as an approved use for this emergency funding (Department of Commerce). An additional $200,000 from the City of Bellingham will be spent from the Housing Levy as part of the Community Development Division's 2020 Action Plan. An interlocal cost-sharing agreement was approved by the Whatcom County Council on June 2, 2020, and the Bellingham City Council on June 8, 2020. The County will provide the remaining relocation support of $800,000 using federal funds that are specifically designed to support the homeless during this epidemic. The City and County will provide financial assistance for lease payments, make the renovations necessary to convert the site into a 24-hour shelter, and purchase some furnishings such as outdoor seating. LMM will continue to rely on private donations to cover the Drop-in Center's operating costs which are estimated at $500,000 per year.

How long will the Drop-in Center be located here?

The public market building is available for a period of up to 4 years; that will give LMM enough time to construct a new, permanent location in Old Town. The City of Bellingham, in partnership with Whatcom County and LMM, has negotiated an agreement in principle with the property owner for 3-year lease with an option to extend for one additional year. The one-year extension will only be exercised if LMM needs additional time for completion of a permanent facility. A lease agreement for City Council consideration is being drafted.

Is a former grocery store really suitable for sheltering people?

There are a number of site improvements that will be made in and around the building to make it more welcoming and comfortable for guests, and also to minimize the impact on the surrounding neighborhood. Privacy fencing and plantings will be installed around the parking lot to create a courtyard where guests can get some fresh air while remaining on the premises. There will also be a space for guests to check in and out, so staff will know who is on-site at all times. A number of other site modifications will be made to ensure that the building is suitable for this use, such as proper heating, cooling, ventilation and plumbing.

How will the Drop-in Center affect the businesses and homes in the area?

The City acknowledges that unwelcome behaviors have occurred in the vicinity of the Drop-in Center at its previous locations; BPD and LMM staff are actively working to put plans and polices in place that will deter illegal conduct around the public market building site. At the Drop-in Center's former location in Old Town, shelter guests and non-guests regularly congregated along and set up encampments in the public right-of-way. LMM staff did not have the authority or ability to police individuals on public

property. At the new location, a large courtyard that is set back from the property line will allow staff to patrol the perimeter and bar individuals who are engaging in problematic behaviors, either on or off-site. Large windows, a wide-open courtyard, and extensive security cameras will make it much easier to monitor the site and surrounding area. The fact that the public market building is within the Central Business District also means BPD will be able to ask people who are loitering outside the shelter during the day to move along. The City will propose changes to parking regulations in the vicinity of the new location to prohibit overnight parking, which will deter car camping in the neighborhood.

Additionally, the Drop-in Center will be required to adhere to all safety and security conditions within the City's temporary shelter code (BMC 20.15.030). This will include providing neighborhood outreach and a 24-hour contact number as a condition of approval. Additionally, through the review process for the Temporary Encampment Permit, community members and businesses will have 14 days to raise concerns that are specific to the site. The City and LMM can then develop appropriate strategies and conditions to address these concerns. In doing so, it is our hope that the community will not only remain safe, but also become a safer place than it was previously. Without this new shelter location, downtown residents and businesses would be negatively impacted by many additional people who are unsheltered and without access to food or hygiene facilities.

What about public safety?

Public safety is a top priority. The Bellingham Police Department (BPD) has worked closely with LMM to design Crime Prevention Through Environmental Design recommendations (lighting, visibility, design, etc.) to create a safer, more secure site for all. Security cameras inside and outside of the facility will continuously monitor the area. Having more personal space also reduces stress, and this results in fewer conflicts. Since the Drop-in Center has been housed at Bellingham High School there have been fewer conflicts among guests, and we expect this trend to continue at the new location.

To further encourage safe behaviors, guests will be required to adhere to a Code of Conduct, and LMM staff will work with the BPD in order to create a responsive crisis referral process for instances where it is appropriate (conflict resolution, theft, trespassing, unruly behaviors, and mental health crisis, etc.). A database will be in place for alerting all staff of any potential safety issues.

How can the Drop-in Center move into the public market building for up to 4 years without a permit, or even providing public notice?

Washington State, Whatcom County, and the City of Bellingham have all established Health Emergencies in response to the COVID-19 pandemic. During this time, measures to ensure that community members are safe can be implemented immediately. In the case of the public market building, the Mayor approved the action (consistent with the requirements of Emergency Ordinance 2020-03-008) after determining that the usual approval process would cause undue delay and put guests at the Drop-in Center at significant risk. Under the current Emergency Ordinance, the Drop-in Center may remain in the public market building for the duration of the declared emergency. However, in order to remain at the new location beyond the public health emergency (for a period of up to 4 years), the LMM must obtain a permit under the City's temporary shelter code (BMC 20.15.030). This will entail an extensive public input process with an option to appeal, just like any other temporary encampment permit application.

Why weren't the public agencies involved "more transparent" about this project?

The City has been operating with a sense of great urgency in this emergency shelter site selection and negotiation process, due to the current health crisis and the need to vacate Bellingham High School by mid-July. These circumstances required site selection, negotiation, and steps toward implementation to occur simultaneously. The City Council will consider and vote on the terms of the proposed lease for the former Public Market space after hearing public comment at a special meeting now scheduled for Tuesday, June 16, 2020.

Public agencies generally do not negotiate land transactions in public; it is not required by state law and is not a best practice. The law recognizes site selection and negotiation are administrative functions and highlights a duty to keep those steps confidential. The City Council has authority over City finances and properties, however, and reviews and votes on such transactions with attendant public comment and input. In addition to the lack of a legal requirement to make negotiations for property transactions public, it is not a best practice or in the public interest because the price may be affected if other potentially interested parties are aware of terms being discussed. If the price increases, that cost is borne by the public.

The need for more adequate shelter space has been a community-wide discussion for many years prior to COVID-19. Whatcom Unified Command identified providing a temporary shelter as a priority for COVID-19 emergency response, as has been noted in public meetings and announcements. The move to Bellingham High School was always identified as temporary with identification of another alternative site necessary for the duration of the emergency. An interlocal agreement to share costs for an alternate site was published in advance and approved at public meetings of the Whatcom County Council on June 2 and the Bellingham City Council on June 8.

Why does the Lighthouse Mission plan to apply for a permit if the Drop-in Center is already allowed to move into the public market building?

The Drop-in Center is currently permitted to remain in the public market building only for the duration of the declared emergency, and it is uncertain how long the declaration will last. It will likely be at least 18 months before a vaccine for Covid-19 is available. We need to plan for a Drop-In Center that will allow LMM to serve our community for the duration of the public health crisis (or until it's no longer necessary to maintain physical distance), and until they can secure an appropriate permanent location.

In addition, Religious Organizations are permitted to establish temporary encampments in existing buildings by State law (RCW 35A.21.360). This statute specifies that any conditions imposed by a city must be necessary to protect public health and safety and must not substantially burden the decisions or actions of a religious organization regarding the location of housing or shelter for homeless persons on property owned or controlled by the religious organization. The City of Bellingham has a process for reviewing such applications (BMC 20.15.030). This process will be used to develop appropriate conditions to protect public health and safety as long as the Drop-in Center is located at this site.

Why is the City working with LMM instead of a secular non-profit?

Local government agencies typically rely on non-profit social service organizations to carry out the direct work of providing shelter because these organizations have the expertise necessary to do so. The City partners with and funds over a dozen local housing and human services non-profits, including the

Opportunity Council, Lydia Place, Northwest Youth Services, Sun Community Services, Catholic Community Services, YWCA, Interfaith Coalition, Mercy Housing Northwest and Sean Humphrey House. All of these providers have unique missions and offer different types of services to address and prevent homelessness in our community. Currently, the Drop-in Center is the only shelter in Bellingham that accepts adults on a daily basis without a referral. The City would likely support any qualified agency that stepped forward to run a secular emergency drop-in shelter, but so far, only the LMM has offered to provide this service. LMM offers its services without discrimination. Though religious activities are available, they are voluntary, and LMM does not require participation to access food or shelter at the Drop-in Center. The City of Bellingham and Whatcom County are grateful that LMM is able to offer shelter to so many who are in need. For more information about other efforts to address and prevent homelessness, visit www.cob.org/stateofhousing.

What facilities will be available for guests at the Drop-In Center?

At the Drop-In Center, along with meals and a bed, guests will also have access to restrooms, laundry facilities, showers, basic storage for overnight guests, important document and medication storage, a café, mail services, a SeaMar community health center, space for telehealth meetings, case management with LMM and strategic partners, meeting space, emotional and spiritual support, and a rich community while navigating next steps. When the center opens, showers will be temporarily available with the use of a shower trailer before permanent shower facilities will be built on-site at a later date. To learn more about regular services at the Drop-In Center, please visit www.thelighthousemission.org/what-we-do/drop-in-center/.

Attachment: _____

The Planning and Community Development Director has identified the following **DRAFT Preliminary Conditions** that will likely be placed on the proposal by the temporary shelter (building encampment) permit issued by the City. As Preliminary Conditions, they may be further refined, modified, or added to based on public comment received on the proposed permit and any appeal of the permit to the Hearing Examiner:

1. The City has concluded that appropriate standards, requirements and conditions have been established to protect public health/safety and to ensure the successful operation of the shelter for the duration of the approved permit. Violations of any of the required provisions of BMC 20.15 and/or the conditions of the permit will be assessed by the City on a case-by-case basis with the expressed intent of seeking timely compliance. However, certain actions and activities that significantly increase risk to both shelter guests and the general public shall warrant the closure of the shelter. The City may immediately close the temporary shelter for cause if any of the following occur:

    a. Violation(s) of any conditions of approval (which cannot be immediately remedied by LMM) that would present a significant adverse health and/or safety risk to LMM guests, visitors, and/or the general public.
    b. The required on-site supervision of the temporary shelter by a LMM staff member or non-guest volunteer is found not to occur.
    c. The required on-site supervision is found to be inadequate to control behaviors occurring within the temporary shelter.
    d. Obstruction by LMM's staff members, guests, or visitors of City and County staff, including police officers, fire and emergency crews, and approved social service agency personnel (e.g. caseworkers, counselors, the Homeless Outreach Team (HOT), etc.) from having unrestricted access to the common areas of the site.
    e. Refusal by LMM to provide a list of guests upon the request of the BPD or other City department.
    f. Any series of events that the Chief of Police or Fire Chief deem to be a danger to the temporary shelter and/or surrounding community, including calls for service regarding assaults, disorderly behavior, or illegal substance use.
    g. Repeated violations of the code of conduct.
    h. Criminal conduct or multiple violations of the permit conditions by LMM's staff, volunteers, or guests.
    i. Demonstrated inability of LMM's staff to operate the temporary shelter consistent with BMC 20.15, the temporary shelter application and the conditions of approval.

2. The temporary shelter permit shall be issued for the dates (to be determined), provided the conditions of approval are strictly followed. A subsequent application for an additional one (1) year period of operation may be submitted for review consistent with the requirements of BMC 20.15. **However, the temporary shelter permit will not be renewable at this location beyond July 2024 (maximum of 4 years total). Additionally, no extension shall be permitted beyond July 2024.**

3. The temporary shelter shall be limited to a maximum of 200 overnight guests (excluding staff and volunteers.) The applicant may apply to allow additional guests (consistent with the provisions of BMC 20.15). However, the temporary shelter shall be limited to one bed per 35 square feet of floor area. In no case shall the site be expanded beyond its current boundaries.

4. Upon occupancy, LMM shall designate a point of contact to the public and the patrol operations commander for the Bellingham police department. The contact information for the point of contact shall be made available on LMM's website and distributed by LMM to property owners, residents, and business owners within 500 feet of the site boundary. The point of contact shall be available 24 hours a day, seven days a week to address non-emergent concerns or issues associated with behaviors or actions directly attributable to temporary shelter guests. LMM may at its discretion take corrective action, up to and including directing a guest to leave the temporary shelter, as a means of addressing verifiable and attributable off-campus behaviors that are inappropriate.

5. LMM shall keep a log with the full name and date of birth of its guests. LMM shall provide this list to the BPD upon request for warrant, sex offender, and "officer safety" checks upon request. LMM shall not obstruct the arrest of guest, or service of any warrant when such action is required by the BPD.

6. All LMM staff shall be informed of emergency protocols and complete de-escalation training provided by the BPD before acting as a site manager.

7. LMM staff members, non-guest volunteers, guests and visitors shall be required to comply with a code of conduct that includes a prohibition on the on-site use or sale of alcohol or illegal drugs and threatening or unsafe behavior.

8. LMM's may invite visitors to tour the temporary shelter if accompanied by LMM staff. Visitors shall not be allowed to stay overnight.

9. Shelter guests shall provide acknowledgment that they have reviewed and accept the rules and requirements contained within the code of conduct before they are permitted into the temporary shelter.

10. LMM staff shall be physically present at the temporary shelter at all times for the duration of the permit. The staff shall serve as the site manager and shall supervise the operation of the shelter. The site manager is the primary point of contact for public safety and emergency services at the shelter and shall address day-to-day operational and behavioral issues as they arise. A complete listing of all LMM staff who will serve as a site manager shall be submitted to the City. Other staff may be added to the site manager list as long as contact information is provided to the City. LMM shall ensure that site managers are made aware of their duties, receive de-escalation training and understand to call 911 in an emergency.

11. LMM shall assume responsibility for people approved as guests. The City shall not make the final decision on who is approved as a guest.

12. Registered sex offenders, people who are required to register as a sex offender, people who have active warrants, and people who are flagged as "officer safety" shall be prohibited from the site.

13. LMM shall provide Crime Prevention Through Environmental Design (CPTED) and other security measures as described in their application. These measures include a video surveillance system (directed toward the shelter only, not adjacent properties), lighting (low-intensity, shielded, and downward facing), improved visibility, and on-site fencing (set back 10 feet from the sidewalk). Other measures may be identified by either the City or

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LMM during the operation of the temporary shelter. These measures shall be implemented by LMM after reaching agreement with the City on the nature of such measures needed to increase individual and public safety on site, as well as on surrounding properties. In the event the City has already installed an identified measure for its own purposes as a property owner, LMM may be excused from implementing such measure.

14. LMM shall implement and apply its "Good Neighbor Program" in the area surrounding the temporary shelter site. A copy of the "Good Neighbor Program" shall be provided to the City prior to occupancy and any updates to the program shall be provided to the City thereafter.

15. LMM shall hire a neighborhood liaison to focus on implementing the "Good Neighbor Program."

16. LMM shall meet with PCDD and BPD staff at least twice per month to address emergent issues and adaptive responses. Surrounding residents, business and property owners shall be included as necessary. LMM is currently evaluating the formation of a neighborhood advisory group to help address emergent issues. Should this group be formed, it may supersede the need for these bi-weekly meetings as PCDD and BPD staff would attend the advisory group meetings instead.

17. To minimize inappropriate activities and the congregation of individuals who are not using the shelter, the City of Bellingham may prohibit overnight parking in the street rights-of-way adjacent to the site, including portions of York St, Railroad Ave, E Champion St, and Cornwall Ave. The City reserves the right to modify this parking restriction as needed.

18. Loud, amplified music shall be prohibited. Any condition or activity that causes a public noise disturbance is prohibited for the duration of the shelter.

19. All functions and activities associated with the shelter, including adequate waiting space, shall take place on site. Additionally, LMM shall be prohibited from distributing food to individuals in the right-of-way immediately surrounding the temporary shelter site.

20. Resources provided by LMM at this location, including, but not limited to, food, shelter and social services are intended for guests of the shelter only and, in general, shall not be provided to people who have not been admitted into the shelter as a guest. Guest include those who use the shelter facilities during a portion of the day as well as overnight.

21. The temporary shelter site shall be kept clean and free from trash.

22. The City may contract with LMM to maintain areas immediately surrounding the site (area to be delineated). This would include the daily inspection of both public and private areas fronting on surrounding public streets and alleys and the removal of trash and/or debris (as warranted) from public areas and private areas with permission.

23. All individuals and shelter operations shall adhere to up-to-date Whatcom County Health Department guidance and CDC guidance related to COVID-19, especially as it pertains to people experiencing unsheltered homelessness. Up-to-date guidance and information shall be posted in a visible location on site at all times.

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24. LMM staff, volunteers and guests shall not prevent City and county staff, including police officers, fire and emergency crews, and approved social service agency personnel (i.e. caseworkers, counselors, the Homeless Outreach Team (HOT), etc.) from having unrestricted access to common areas of the site. If legal cause exists to access additional areas by City officials, including police officers, such access shall not be restricted.

25. LMM shall cooperate with the BPD for the purposes of ensuring safety, security, and compliance with permit conditions, including, without limitation, issuing trespass notices as appropriate. LMM shall remain the responsible party for implementing such strategies.

26. An agreement granting LMM the legal right to use City property shall be required prior to issuance of the temporary shelter permit and shall be maintained in full force and effect for the duration of the temporary shelter. The agreement will contain terms and conditions in addition to the conditions imposed as part of the permit.

27. LMM shall obtain all necessary Building, Fire and Health Department permits prior to occupancy of the temporary shelter. LMM shall immediately cease operation of the temporary shelter should the City's Building Official and/or Fire Marshal and/or Whatcom County Health Department determine that circumstances associated with the issued permits have changed (and are irremediable) and that there is a threat to human life, health and safety.

28. In the event the City terminates the temporary shelter permit for cause in accordance with the permit, LMM's guests shall be provided no less than 24 hours' notice to vacate the site. Every effort shall be made by the City to connect guests with social service agencies to find alternate shelter or housing; however, neither the City nor LMM can guarantee alternate shelter or housing.

29. LMM shall provide notice of closure of the temporary shelter no less than 14 days prior to the scheduled end date of the temporary shelter permit. Every effort shall be made by the City to connect LMM's guests with social service agencies to find alternate shelter or housing; however, neither the City nor LMM can guarantee alternate shelter or housing.

30. The City has the right to amend the temporary shelter permit, as long as the amendments are in keeping with the scope, purpose and intent of the original permit.

31. These conditions of approval shall be posted in a conspicuous place on site and made available to LMM's guests and visitors upon request.

32. Should conditions imposed herein not be met and/or circumstances change, the Planning and Community Development Director or designee reserves the right to close the temporary shelter or add new permit conditions necessary to protect the public health and safety.

33. There are no third party beneficiaries to this permit. Only the City of Bellingham, and not members of the public, may enforce these permit conditions.

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Lighthouse Mission Ministries - Good Neighbors Guide

Purpose – Lighthouse Mission Ministries (LMM) aims to be a valuable resource and supportive ally to local businesses during the temporary placement of LMM's Drop-In Center. The *Good Neighbors Guide* was developed by LMM to enhance the neighborhood feel, build a community-partnered response to homelessness, and mitigate potential challenges arising from relocating the Drop-In Center two blocks from Bellingham High School to the Public Market at 1530 Cornwall Ave. The Drop-In Center's name is changing to "Base Camp" (to be carried to the new permanent Mission site in 2024).

Good Neighbor Vision – Through Base Camp, LMM will provide an early-stage *Enhanced Interim Housing* experience that serves our friends and neighbors experiencing homelessness with consistent friendship, 24-hour motivational environments, and next step opportunities. The purpose of this is three-fold: 1) Radical hospitality in safe grace-based environments builds the trust and stability needed to engage next-stage life-recovery programs. 2) Its proximity to the urban center with secure outdoor areas has the added advantage of drawing chronically homeless individuals out of the downtown core and into homeless services. 3) Downtown business engagement toolboxes are expanded to confidently and compassionately solve problems and prevent conflict with troubling individuals.

Email and Voice Contact: For all electronic and digital communication please contact Jessica Hess at jessicah@thelighthousemission.org

Person to Person Contact: Loran Zenonian – Director of Advancement
Loranz@thelighthousemission.org - 360.733.5120 ex. 144

LMM proactively supporting businesses:

1. *Lighthouse Mission Ministries: Base Camp Staff* - LMM staff have years of experiences in homelessness issues and are highly trained in dealing with the issues and impact of a 24 hour *Enhanced Interim Housing* facility. LMM staff will engage guests about the Mission Code of Conduct as well as monitor behaviour and inspect the physical perimeter of Base Camp on a regular basis keeping it an attractive part of the neighborhood.

2. *Joy Riders (In Development)*: LMM is training and buying supplies to outfit staff and volunteers that will travel within the downtown core on a regular basis doing outreach and inviting individuals experiencing homelessness out of the downtown core and into Base Camp services.

3. *Base Camp Guide:* These fold over cards have basic information about Base Camp for homeless individuals and a coupon for free espresso at Base Camp's indoor *Cafe Renovare*. Local businesses will have these on hand to encourage folks to go to Base Camp.

4. *Webinar* [date TBD] : A 60 minute Webinar helping those in proximity understand the overall impact of homelessness and how to mitigate challenges. Topics could include: Missions Role in Outreach/Reaction, When to call Law Enforcement, How to Interact with Homeless Neighbors and other important resources/skills as needed.

5. *Neighbor Advisory Forum (In Development)*: A LMM generated forum including neighbors, social workers, a BPD representative, a LMM guest, and LMM's Community Outreach Coordinator. Would meet as needed but not less than monthly to talk over problems and advise tangible solutions for the overall impact of homelessness at Base Camp.

6. *De-Escalation Training*: Compassionate de-escalation and interaction training by LMM staff and BPD officers – quarterly training for local business owners and staff on how to compassionately interact with homeless individuals.

7. *Bellingham FACELIFT:* LMM will serve as a catalyst to engage community groups, service groups, and local faith organizations that would like to engage with opportunities to pray for and clean up our downtown core, including alleyways. July Project: Alley Facelift -- Clean, beautify, and enhance the alley between Cornwall & Railroad from Champion to Chestnut in the downtown area.

8. *REACT Team (In Development):* The Mission would provide, through its LMM Community Outreach Coordinator (Temporarily Loran Zenonian), a response team with two or more staff/volunteers to help downtown businesses engage with homeless impact as a step within Compassionate Contact Work. Hours would be from 7:00 am – 3:00 pm Monday – Saturday.

LEASE AGREEMENT

This lease agreement ("Lease") is made this ____ day of June 2020, between JMC1, L.L.C., a Washington limited liability company authorized to do business in the State of Washington under UBI #603157188 **("Lessor")**, and the City of Bellingham, a first class city and municipal corporation of the State of Washington (**"Lessee" or "the City").**

For and in consideration of the mutual agreements herein contained, the parties hereby covenant to and with each other as follows:

1. Leased Premises, Term of Lease, and Approvals.

1.1 Leased Premises. Lessor owns property in Bellingham, Washington legally described on Exhibit A attached hereto (the "Property"). Lessor does hereby lease to Lessee said Property, which includes a building (approximately 25,106 square feet), parking spaces, and other area as shown in Exhibit B attached hereto, collectively known as the ("Leased Premises").

1.2 Effective Date, Rent Commencement Date, Possession Date, and Term of Lease. This Lease shall become binding and effective as of the date it is fully executed by Lessor and Lessee. The Monthly Rents set forth in Paragraph 2 shall commence on the effective date of this Lease. The rent due for a portion of June 2020 shall be paid together with the rent due by July 1, 2020. Lessee shall take possession, to have and to hold, the above described Leased Premises, upon the terms and conditions herein for a term commencing on June 17, 2020 (or on the execution date, whichever is earlier), and extending through June 17, 2023 ("Primary Term"). Subject to the terms and conditions herein, Lessee (or its assignee) shall have the right to renew this Lease for a one (1) year period ("Renewal Term") by giving written notice of such intention to the Lessor at least six (6) months prior to the expiration of the initial three (3) year term. The terms and conditions of any renewal shall be the same as set forth in this Lease, except that the rent shall be as set forth below in Subparagraph 2.1. Lessor acknowledges the parking lot is still under lease to Crown Plaza until June 30, 2020 and will continue to accommodate those cars parking with permits in the lot until June 30, 2020. In the event Lessee begins construction which interferes with delineated permit parking areas, permit holders will be provided alternative locations on site.

1.3 City Council Approval. The essential lease terms contemplated by this Lease and the Interlocal Cost Sharing Agreement Related to COVID-19 Health Crisis between the City and Whatcom County must be duly approved by the Bellingham City Council. The City Council's decision regarding approval is wholly discretionary. If City Council approval is not obtained by June 24, 2020, this Lease may be terminated by Lessee, at its sole discretion, by providing written notice of termination to Lessor, in which case neither party will have any further rights or obligations under this Lease. The right to terminate this Lease set forth in this Subparagraph 1.3 shall expire on July 15, 2020.

1.4 Lighthouse Mission Ministries Approval. The parties acknowledge that this Lease Agreement is intended to provide a site for a low barrier shelter to be operated by Lighthouse Mission Ministries ("LMM"). Accordingly, a sublease must be duly executed by LMM to carry out the intent of this Lease. If said sublease has not been executed by LMM by June 24, 2020, this Lease may be terminated by Lessee, at its sole discretion, by providing

written notice of termination to Lessor, in which case neither party will have any further rights or obligations under this Lease. The right to terminate this Lease set forth in this Subparagraph 1.4 shall expire on July 15, 2020.

1.5 Land Use Approvals and Consistency with Law. The Parties acknowledge that this Lease is being executed under the emergency conditions of a pandemic health crisis and that use of the Premises as a temporary shelter beyond the health crisis may require one or more land use approvals. Additionally, continued use may be subject to a land use appeal following the issuance of one or more approvals. In the event a necessary approval is denied or in the event an appeal or other legal action is successful such that the use or arrangement contemplated by this Lease or the sublease referenced above is found to be contrary to land use regulations or other law, this Lease shall be subject to termination by Lessee at its sole discretion. Termination under this Subparagraph 1.5 may only occur with 6 months' advance written notice provided by Lessee to Lessor and such notice may not be provided until after an adverse decision has been issued by an administrative decision-maker, quasi-judicial decisionmaker, or judicial decisionmaker. Upon termination under this Subparagraph 1.5, neither party will have any further rights or obligations under this Lease.

2. Monthly Rent.

Lessee does hereby agree to pay the Monthly Rents, by checks or drafts payable to the Revocable Living Trust of John M. Canterbury and mailed to Pacific Continental Realty, LLC at 114 W Magnolia Street, Suite 201, Bellingham, WA 98225, or as designated in writing by Lessor. Monthly Rent is payable in advance on the first day of each calendar month, except as provided in Subparagraph 1.2 regarding rent for June 2020.

2.1 The Monthly Rent is the sum of Base Rent plus Additional Monthly Rent to be calculated as follows:

(a) 1) Base Rent during the Primary Term in the amount of Twelve Thousand Five Hundred Fifty Three and No/100 Dollars ($12,553); or

2) Base Rent during the Renewal Term in the amount of Ten Thousand Four Hundred Sixty One and No/100 Dollars ($10,461); so long as LMM remains a sublease or assignee of the Lease. If at any time during the Renewal Term, LMM is no longer the sublease or assignee of the Lease, then the Base Rent shall be Twelve Thousand Five Hundred Fifty Three and No/100 Dollars ($12,553);

and:

(b) Additional Monthly Rent, throughout the Lease Term, of all Common Expenses relating to the use, maintenance, ownership, insurance, and repair of the Property as specifically set forth in Subparagraph 6.3.

2.2 Advance Payment. At Lessee's option, Lessee may pay rent for multiple months in advance without penalty. If this Lease terminates, for any reason, with Monthly Rent or Base Rent being paid up beyond the termination date, the amount of rent representing rent paid for the time period subsequent to the termination date shall be deemed an overpayment under Subparagraph 6.4.5 and shall be rebated to the Lessee

in accordance with the terms of Subparagraph 6.4.5. Lessor agrees that any advance payment shall be maintained in an account so that a rebate may be made, if required under the Lease; provided, however, that Lessor shall not be required to pay interest if a rebate is required

3. Parking.

Lessee shall be entitled to use of all parking spaces and parking area located on the Premises. Lessee shall ensure that the sublessee routinely monitors the entire parking lot for litter and debris and maintains the parking area in an orderly and clean condition. Lessee shall ensure that no vehicles parked on the Leased Premises are used as living or sleeping quarters and shall ensure that no camping is allowed outside of the building.

If at any time during the term of this Lease certain parking spaces are not used for shelter operations (which include parking for staff, volunteers, visitors, visitor/handicap parking, deliveries, trash/recycle, emergency services, and the like) and either Party seeks to make parking spaces open for public parking of any type, the Parties shall first come to agreement regarding the terms of such an arrangement and memorialize the agreement as an amendment to this Lease. Until such agreement is reached, the entire Leased Premises shall be reserved for the use set forth in Paragraph 4.

4. Use.

Lessee agrees that the leased premises shall be used for a COVID-19 emergency shelter/temporary building encampment (consistent with the requirements of the Bellingham Municipal Code) for people experiencing homelessness to be operated by LMM (or its successor in interest), and for all uses incidental to such use, and for no other use without the written permission of Lessor. This use includes housing accommodation for individuals who are homeless, that provides shelter and food to individuals without imposition of time limits or other program requirements. Individuals using the shelter are subject to a code of conduct administered by LMM. The elements of the services provided include: a safe place to stay both night or day; free breakfast and lunch, and dinner every day; showers and public restrooms; supportive staff and volunteers; and a community-oriented atmosphere. A significant portion of the parking stalls will be fenced in to provide a space for day use. The remaining parking stalls will be used for vehicular parking as set forth above. Attached hereto as Exhibit C-1 is a site layout that shows the approximate location and square footage dedicated to the allowed uses.

5. Right of Entry Reserved.

Lessee agrees that Lessor may, at any time during regular business hours and upon 24 hours' prior written notice, enter upon the leased premises for the purpose of inspecting the same; provided, however, that Lessor shall coordinate entry with sublessee to ensure that entry does not interfere with the regular operations of sublessee. Lessor may enter without notice to do emergency repairs, and with reasonable notice to do maintenance. Lessee hereby waives all claims for damages occasioned by such entry. Lessor may retain a key with which to unlock all of the doors in the Leased Premises (excluding Lessee's vaults, safes and files). No entry by Lessor shall be construed or deemed to be a forcible or unlawful entry into, or a detainer of, the Leased Premises, or an eviction of Lessee from all or any portion of the Leased Premises.

Six months prior to the ending of the Lease term, or when the Lessee posts a moving or closing notice in its window, whichever comes first, the Lessor will have the right to install two (2) "For Lease" signs on the exterior of the Leased Premises or in the common area of the Property.

Lessee agrees that Lessor is entitled to park a vehicle on the premises for any purpose.

6. Operating Expenses.

Net Lease. The purpose of this Paragraph is to ensure that, in addition to Base Rent, Lessee pays all direct expenses and certain additional expenses relating to the use, maintenance, ownership, and repair of the Property.

6.1 Direct Expense. The expenses listed in this Subparagraph 6.1 are to be paid directly by Lessee:

6.1.1 Utilities and Services. Lessee agrees to pay or shall require sublessee to pay before delinquency and at its sole cost and expense, all charges for utilities and services including, but not limited to, water, sewer, stormwater, electricity, Parking Lot Lighting (including electricity for and repair of), telephone, internet, gas, heating, air conditioning, ventilating, lighting, waste disposal, security, fire-life safety and any related inspections throughout the Lease Term. Lessor shall not be liable for the failure of any of these services for any reason whatsoever.

6.1.2 Personal Property Taxes. Lessee agrees to pay, prior to delinquency and if applicable, any and all taxes and assessments that may be assessed or levied on or against any of Lessee's personal property, fixtures, or equipment placed on or in the Leased Premises, and/or their expenses incidental to Lessee's use thereof and the operation of Lessee's business therein.

6.1.3 Licenses and Taxes. Lessee shall be liable for, and shall pay throughout the Lease Term, all license and excise fees and occupation taxes covering the business conducted on the Premises, if applicable.

6.1.4 Cost Related to Code Violations. Costs of alterations, additions and capital improvements required by any laws, codes, regulations or ordinances now or hereafter in effect necessitated by Lessee's use of the Leased Premises shall be incurred and paid directly by Lessee, as needed.

6.2 Special Lessee's Expenses. Where any expense over and above normal operating expenses is incurred or paid by Lessor specifically for the benefit of and at the request of Lessee, such expense shall be charged directly against Lessee and shall not be included in Specific Common Expenses for the purpose of Subparagraph 6.3 (Additional Monthly Rent).

6.3 Additional Rent – Specific Common Expenses. Lessee shall pay as Additional Rent, in the manner set forth in Subparagraph 6.4 "Payment of Additional Rent", Common Expenses. The Common Expenses shall be the direct costs of maintaining and operating the entire property and all improvements therein including without limitation the parking lot, as set forth below. Lessee shall pay the following Common Expenses of the Property in the manner set forth in Subparagraph 6.4.

6.3.1 All real property taxes and general and special assessments levied and assessed against the land, building and improvements that make up the Leased Premises. If at any time there exists a gross receipts tax on rental income, any such cost incurred by Lessor shall be included in Common Expenses. Each year Lessor shall notify Lessee of Lessor's calculation of real property taxes and assessments. Taxes and assessments payable shall be prorated in the first and last calendar years of the Lease term. If the Lessee, sublessee or sublessee's operation falls within an exemption under the applicable law such that a certain tax or assessment is not payable, such tax shall not be included in Additional Rent; and

6.3.2 All maintenance and repair costs incurred by Lessor that result from: (a) Lessee's breach of its obligations under this Lease; (b) Lessee's acts or omissions or those of Lessee's sublessee, employees, agents or contractors; or (c) improvements made by Lessee or its sublessee.

6.3.3 All maintenance and repair costs incurred by Lessor including mechanical, electrical, plumbing, and life safety systems; provided, however, that the total amount of a repair or replacement cost that exceeds Five Thousand Dollars ($5,000) for a single project ("Major Repair") shall be apportioned between the Lessor and the Lessee. The portion of the total cost of such project that shall become Additional Rent shall be fifty percent (50%), and the remaining cost (50%) shall be at the cost of the Lessor; provided, however, that the Lessee's responsibility for Major Repairs shall be further limited to the following maximum annual contribution limits, based on the date it becomes known to the Lessor or Lessee that a repair or replacement is necessary:

(a) During the first year of the Primary Term, the maximum contribution shall be Fifty Thousand Dollars ($50,000), annually;
(b) During the second year of the Primary Term, the maximum contribution shall be Forty Thousand Dollars ($40,000), annually;
(c) During the third year of the Primary Term, the maximum contribution shall be Thirty Thousand Dollars ($30,000), annually; and
(d) During the Renewal Term, if applicable, the maximum contribution shall be Twenty Thousand Dollars ($20,000), annually.

The cost of Major Repairs above the maximum annual contribution by Lessee shall be at Lessor's cost. The maximum amounts set forth above shall not carry forward from one year to the next.

The following are specific non-exhaustive examples of maintenance items that shall be included in Additional Rent if the cost is incurred by the Lessor: cleaning; painting; monitoring; testing; inspection, permits and repairs of the fire protection system; maintenance of the electrical service and switch gear; snow removal and supplies; garbage, refuse sewer charges; lighting of parking areas; landscaping, sidewalk and paving repairs; parking lot striping; drainage repairs; maintenance and repair of parking lots and driveways; groundskeeping; pest control; and all other maintenance expenses, whether or not of like nature.

6.3.4 The cost incurred by Lessor for property, sign, general liability insurance policies, obtained and maintained by Lessor, insuring the Lessor and Lessor's lender.

6.3.5 The costs of management contracts or the costs of equivalent management services (not to exceed the then prevailing rate charged from time to time by companies generally engaged in the management business).

All Common Expenses shall be reasonable and charged in accordance with generally accepted accounting practices. In the event Lessee pays for any expense directly, it shall not be included in Additional Rent.

6.4 Payment of Additional Rent.

For and during the entire term hereof, Lessee shall pay to Lessor as Additional Rent, the average monthly estimated Common Expenses (computed on the basis of known or estimated operating expenses for each calendar year).

6.4.1 Additional Monthly Rent. On the Rent Commencement Date and by January 15 of each succeeding calendar year as set forth herein, Lessor shall submit to Lessee a statement of the estimated total Additional Rent owed by Lessee. Lessee shall pay such estimated Additional Rent in monthly payments equal to the amount of the Additional Rent divided by the number of full months remaining in the period from the Rent Commencement Date to the end of the calendar year ('the Additional Monthly Rent'). The Additional Monthly Rent shall be paid concurrently with the monthly payment of the Base Rent and shall be adjusted as provided in Subparagraphs 6.4.2 and 6.4.3 herein.

6.4.2 Adjustments Statement. By March 1 of each year of the Lease Term, Lessor shall endeavor to provide Lessee with a statement showing the actual Additional Rent for the prior calendar year (the "Adjustments Statement"). If the total of the Additional Monthly Rent payments which Lessee has made for the prior calendar year is less than Lessee's Proportionate Share of the actual Additional Rent for such period, Lessee shall pay within ten (10) calendar days after receipt of the Adjustments Statement, an amount equal to (a) the deficiency for the previous calendar year, plus (b) the deficiency due to Additional Monthly Rent payments made in the current calendar year prior to such Additional Monthly Rent being adjusted as set forth in Subparagraph 6.4.3 herein. In the event of an overage, the amount equal to the overage will be credited to Lessee's Additional Monthly Rent payment. Failure of Lessor to submit Adjustment Statements shall not be deemed to be a waiver of Lessee's obligation to pay such sums.

6.4.3 Adjustment of Additional Monthly Rent. The amount of Additional Monthly Rent owing in the current calendar year shall be adjusted concurrently with Lessor's provision of the Adjustments Statement to Lessee. Taking into account the actual amount of the Additional Rent for the previous calendar year, Lessor shall submit to Lessee as part of the Adjustments Statement (1) an estimate of the total Additional Rent for the current calendar year and (2) the adjusted Additional Monthly Rent amount based on such estimate.

6.4.4 Amortization of Major Maintenance, Repairs, and Replacements. If during the term of the Lease, Lessor carries out major maintenance, and/or repairs, and/or replacements to the Property and such costs are required to become Additional Rent under the provisions of Subparagraph 6.3, and which costs are greater than existing in the reserve account, then the costs more than said reserve account shall be paid first from the security deposit and, if costs exceed the security deposit, they shall be amortized by Lessor over a period of seven (7) years at five percent (5%) interest rate and paid by Lessee as Additional Rent. The Additional Rent

due from Lessee will be the principal and interest of Lessee's Proportionate Share of the actual cost. Lessee may at any time prepay the outstanding balance. Notwithstanding the provisions of this Subparagraph, Repairs or replacements that fall within the definition of Major Repair set forth in Subparagraph 6.3.3 shall be subject to cost sharing as set forth in Subparagraph 6.3.3.

6.4.5 Deficiency/Overpayment. Even though the term has expired and Lessee has vacated the Leased Premises, when the final determination is made of Lessee's Proportionate Share of the Additional Rent for the year in which the Lease terminates, Lessee shall immediately pay any deficiency between the total of the Additional Monthly Rent Payments made and the actual Additional Rent due. Any overpayment made shall be immediately rebated by Lessor to Lessee, provided there are no outstanding rents or charges due. If any outstanding charge is due, Lessor may apply the overpayment to such charges first, then rebate the balance, if any, to Lessee. This provision shall survive termination of this Lease.

7. Maintenance, Repairs, Alterations.

7.1 Maintenance and Repair by Lessor. Lessor shall maintain and repair the roof, the roof membrane and the exterior of the building (except for painting as set forth below in Subparagraph 7.2). Costs incurred by Lessor for such maintenance shall be included in Additional Rent. Lessor shall perform such repair or maintenance work called to its attention by Lessee within a reasonable period of time after receipt of such notice from Lessee. There shall be no abatement of rent, and no liability of Lessor, due to injury to or interference with Lessee's business arising from Lessor's performance of any maintenance or repair which it is required or permitted to perform.

7.2 Maintenance and Repair by Lessee. Except as specifically set forth above in Subparagraph 7.2, Lessee agrees, at Lessee's expense, to properly maintain and repair the Leased Premises and all improvements thereon (including, without limitation, all heating, ventilating and cooling equipment, electrical panels, wiring, lighting, plumbing, drains, doors, locks, and plate glass) during the lease term; provided, however, that certain Major Repairs as set forth in Subparagraph 6.3.3 shall be subject to cost sharing between Lessor and Lessee and provided further that Lessor and Lessee shall coordinate any work involving Major Repairs. Lessee shall be responsible for maintaining (or requiring sublessee to maintain) the paint on the exterior of the building; provided, however, that preparation and application of paint on the exterior of the building shall be performed by professional painters using Behr best quality paint (by Home Depot) or equivalent quality paint. Lessee shall remove graffiti promptly and may use employees or require sublessee to perform work where painting is necessary, using matching quality and color of paint. Further, Lessee agrees to require that the sublessee maintain the Leased Premises clean and debris-free. Lessor acknowledges that Lessee will require Lighthouse Mission Ministries, as sublessee, to perform repair and maintenance work on the Leased Premises; provided, however, that this acknowledgment does not lessen Lessee's responsibility for proper maintenance and repair of the Leased Premises under this Lease. Lessee agrees that it shall not make any alterations, additions, or remodeling improvements in the Leased Premises without first obtaining Lessor's written consent, which consent Lessor agrees shall not be unreasonably withheld; provided, however, that Lessee may, at Lessee's option and expense, without having to obtain Lessor's written consent, make such alterations, additions and remodeling improvements to the Leased Premises which: (1) may reasonably be necessary for the proposed use of the Leased Premises by Lessee; (2) will not cost more than the sum of Five Thousand and No/100 Dollars ($5,000.00); and (3) do not involve any structural alterations, additions or remodeling improvements to the Leased

Premises. Failure to obtain such approval from the Lessor shall be reasonable grounds for the withholding of Lessor's consent to any such alterations, additions or improvements. All such alterations, additions or improvements shall be reasonably necessary for the proposed use of the premises by Lessee and shall be made in a workmanlike manner and shall not impair the structural soundness of the Leased Premises. Such alterations, additions, or improvements shall not materially reduce the market value of the Leased Premises. Lessee agrees that, prior to commencing any alterations or improvements, Lessee shall obtain a building permit. Lessee shall obtain all necessary governmental permits, licenses and approvals with respect thereto and shall fully comply with all governmental statues, ordinances, rules and regulations pertaining thereto. Lessee's contractor shall name Lessor as additional insured on contractor's insurance policies. Lessee agrees that all alterations and improvements constructed by Lessee shall immediately become a part of the realty and shall become and at all times be the property of Lessor. At the expiration or termination of this Lease, or any extension, or renewal thereof, Lessee shall leave the Leased Premises in as good a condition as upon commencement of the Lease and shall be required to restore the Leased Premises to such condition; provided, however that: (1) such obligations shall not extend to any aspect of the Leased Premises identified in Subparagraph 7.1 as maintenance or repair obligations of the Lessor; (2) major repair or replacement items (Major Repairs) shall be subject to cost sharing as provided in Subparagraph 6.3.3; and (3) Lessor shall accept the Leased Premises with such alterations or any new improvements as may have been made pursuant to the authorization contained in this paragraph. Lessee agrees that it will not permit any mechanics', materialmen's, or other liens to stand against the Leased Premises for work or materials furnished Lessee in connection with any such alterations, remodeling, additions or new construction. Lessee may place or install in or on the Leased Premises such fixtures and equipment as it shall deem desirable for the conduct of business therein. Lessee may paint the interior of the building improvements except for the acoustic ceiling tile and aluminum window frames, without the Lessor's permission. Personal property, fixtures and equipment used in the conduct of Lessee's business (as distinguished from fixtures and equipment used in connection with the operation and maintenance of the building improvements) placed by Lessee in the Leased Premises, shall not become a part of the realty, even if nailed or screwed or otherwise fastened to the Leased Premises, but shall retain their status as trade fixtures/personalty and may be removed by Lessee at any time. Lessee shall remove all fixtures, furniture, and equipment at the termination of the tenancy. Any damage caused to the Leased Premises by the removal of such property shall be repaired by Lessee at its expense. Lessee will not alter in any manner, the outside appearance or structure of the building without first obtaining approval from Lessor, Lessor may withhold such approval without cause. By executing this Lease, Lessor approves and authorizes the initial improvements and alterations identified in Exhibits C-2 and C-3, to be completed by Lessee at Lessee's expense. Lessee shall provide to Lessor documentation of the cost of any and all permanent upgrades to the Leased Premises.

7.3 The Parties shall mutually prepare a pre and post site assessment report based upon a pre and post site inspection, to include photographic documentation, for the purpose of documenting any obligation on the part of the Lessee to repair damage to the Leased Premises or to restore the Leased Premises as required above.

8. Maintenance of Parking Areas.

Lessee agrees to maintain, at its expense, the parking areas identified in Exhibit C-1, including stall markings, striping, and signage and associated landscaping in order to keep the parking lot in clean, neat, and presentable condition.

9. Early Possession.

Should early Possession be granted, all terms of the Lease will become effective except for Base Rent and Additional Rent.

10. Casualty Insurance.

Lessor agrees that it will, during the term hereof keep in effect upon the Property, fire insurance with extended coverage endorsement, property, sign, and general liability insurance and earthquake coverage if available at rates reasonable to Lessor written by a responsible insurance company or insurance companies authorized to do an insurance business in the state in which the Leased Premises are located, in an amount equal to one hundred percent (100%) of the replacement value of the building improvements thereon, said policy or policies of insurance to provide that payment for any losses covered under or by said policy or policies of insurance shall be made to the Lessor and/or any mortgagee and/or assignee designated by Lessor from time to time, as their respective interests may appear. Lessee agrees to pay to Lessor as Additional Rent, its Proportionate Share of the premiums paid by Lessor for said insurance. Should the Leased Premises be damaged by fire, the elements or other casualty, Lessor shall promptly repair all damage and restore the Leased Premises to their condition just prior to the damage, except as hereinafter provided. If the reasonable estimated cost of repairing such damage exceeds the insurance proceeds by Fifty Thousand and No/100 Dollars ($50,000.00), and Lessee does not agree in writing to reimburse Lessor for the excess over Fifty Thousand and No/100 Dollars ($50,000.00), then, in such event, Lessor may, at its option, terminate this Lease as of the date of damage by notice to Lessee within fifteen (15) days after the date of notice from Lessee of Lessee's decision not to pay the excess. Lessee agrees that if the Leased Premises are damaged by fire, the elements or other casualty and Lessor is either required to restore the Leased Premises or elects to do so within the time period hereinabove provided, and Lessor commences such repairs and prosecutes same diligently, Lessee will not exercise any option it may have under the Lease to terminate the Lease; provided however, that if such fire or other casualty shall have damaged the Leased Premises, and if such damage is not the result of the negligence or willful misconduct of Lessee or Lessee's employees, contractors, licensees, or invitees, Lessor shall allow Lessee a proportionate abatement of rent during the time and to the extent the Leased Premises are unfit for occupancy for the purposes permitted under this Lease, and not occupied by Lessee as a result thereof. It is further provided that in the event the Leased Premises are substantially destroyed by fire, the elements or other casualty within two (2) years prior to the time the Lease term (assuming Lessee's extension thereof) expires, Lessor shall have the right and option to terminate this Lease as of the date of such damage by the delivery of written notice thereof to Lessee. In the event this Lease is terminated for any reason and Lessor has not repaired all damage and restored the Leased Premises to their condition, just prior to the damage, all insurance proceeds shall be payable to Lessor.

11. Condemnation.

In the event any person or corporation, municipal, public, private or otherwise, shall at any time during the term hereof condemn and acquire title to such portion of the Leased Premises so as to take a substantial portion of the Leased Premises, thereby rendering the remainder of the building unsuitable for the conduct of business upon the Leased Premises, Lessee may elect, within fifteen (15) days after such condemnation or acquisition of title, to give written notice to Lessor of its intention to terminate this Lease. Should Lessee, however, remain in possession and elect not to give such notice of termination of this Lease, this Lease shall be deemed to continue as to the remaining portion of the Leased Premises. In such event, Lessor shall be entitled to and shall receive any and all award or payment made in said condemnation proceedings.

With the proceeds of the award of payment so assigned to Lessor, Lessor shall make all repairs or alterations (if any) to the Leased Premises made necessary by such condemnation. Should the Lessee give notice of termination pursuant to the provisions of this Paragraph 11, or should the entire Leased Premises be condemned at any time during the original term or any renewal, and this Lease be terminated by operation of law rather than through the exercise of Lessee‘s option to terminate, as hereinabove provided, then in such event, Lessor shall be entitled to the entire condemnation award.

12. Default, Bankruptcy.

In case default is made in the payment of any Rent or Additional Monthly Rents herein agreed to be paid, or in case default is made in the performance of any other covenant or agreement herein contained on the part of the Lessee and any such default shall continue for ten (10) days after notice thereof in writing given by Lessor, its agents or attorney to Lessee, or if any receiver for all or a substantial part of the business of Lessee be appointed by any court, and such petition or proceeding shall not be set aside or dismissed or the appointment of said receiver revoked within thirty (30) days of the filing of said petition or proceeding or the appointment of said receiver, or, if Lessee makes an assignment for the benefit of creditors or permits any committee or representative of Lessee’s creditors to oversee Lessee’s business, or should an attachment or execution be levied against Lessee’s fixtures in the Leased Premises and the same not be released within thirty (30) days after levy, then, in any of such events, Lessor, at its option may: (a) cure such default with the expenses incurred by Lessor in curing such defaults to be payable by Lessee to Lessor as additional rent within thirty (30) days following the date Lessor advises Lessee, in writing, of such expenses; and/or (b) cancel and terminate this Lease on the giving to Lessee notice in writing; and/or (c) re-enter upon the Leased Premises either with or without process of law, and without demand for possession thereof, and remove all persons, goods, chattels and equipment therefrom, using such force as is necessary so to do, repossess and enjoy the Leased Premises without prejudice to any remedy or claim for arrears of rent or breach of covenant or agreement. Such property may be removed and stored in a public warehouse or elsewhere at the cost of and for the account of Lessee. Should Lessor decide to re-enter, as herein provided or should it take possession pursuant to legal proceedings or pursuant to any notice provided by law, it may either terminate this Lease, or it may, from time to time, without terminating this Lease, re-let the premises or any part thereof for such term or terms and at such rental or rentals and upon such other terms and conditions as Lessor in its sole discretion deems advisable with the right to make alterations and repairs to the Leased Premises. Rentals received by Lessor from such re-letting shall be applied: First, to the payment of any indebtedness, other than rent, due

hereunder from Lessee to Lessor; second, to the payment of any cost of such re-letting and to the payment of the cost of any alterations or repairs to the Leased Premises; third, to the payment of rent due and unpaid hereunder; and fourth, the residue, if any, shall be held by Lessor and applied in the payment of future rent as same may become due and payable hereunder. Should such rentals received from such re-letting during any month be less than that agreed to be paid during that month by Lessee hereunder, then Lessee shall pay such deficiency to Lessor. Such deficiency shall be calculated and paid monthly. Lessee shall also pay Lessor, as soon as ascertained, the costs and expenses incurred by Lessor in such re-letting or in the making of such alterations and repairs. No such re-entry or taking possession of said Leased Premises by Lessor shall be construed as an election, on its part to terminate this Lease, unless a written notice of such intention be given by Lessor or unless the termination be by decree by court of competent jurisdiction. Notwithstanding any such re-letting or termination, Lessor may, at any time thereafter, elect to terminate this Lease for such previous breach. Should Lessor at any time terminate this Lease for any such breach in addition to any other remedy it may have, it may recover from Lessee all damages it may incur for a reason of such breach including the cost of recovering the Leased Premises. Lessee agrees to pay all costs, attorney's fees and expenses incurred by Lessor in enforcing any of the terms, provisions, covenants and agreements herein contained. No waiver by Lessor of any breach of Lessee's covenants or agreements herein contained shall be construed as a waiver of any subsequent breach of the same or of any other covenant or agreement hereby imposed upon Lessee and furthermore the acceptance of rental or other payments hereunder by Lessor with knowledge of a breach shall not be construed as a waiver of either that breach or any subsequent breach of the same or any other covenant or agreement hereby imposed upon Lessee. If Lessor fails to perform or observe any of the terms, covenants or conditions contained in this Lease on its part to be performed or observed within thirty (30) days after receipt of written notice specifically describing such default from Lessee or, when more than thirty (30) days shall be required because of the nature of the default, if Lessor shall fail to proceed diligently to cure such default after receipt of written notice thereof from Lessee, said failure shall constitute a default by Lessor under this Lease. In the event of a default by Lessor as set forth in this Paragraph, Lessee shall have the right thereafter, while such default continues, at its sole and absolute option, to (a) reduce the Base Rent by a just and proportionate amount until the date Lessor cures such default, and/or (b) terminate the Lease.

13. <u>Indemnification and Defense</u>

Lessee agrees to indemnify and provide a defense for Lessor at Lessee's cost. from any and all liability, damage, expense, cause of action, suits, claims or judgments resulting from injury to person or property on the Property or on the adjoining streets and sidewalks which arise out of the act, or negligence of Lessee, Lessee's agents, employees, invitees, or guests and/or any claims relating to or challenges to the use of the Premises for the temporary low barrier shelter use contemplated by Lessee, including but not limited to, those seeking relief based upon zoning or land use laws or regulations. In the event that any such claim is asserted or threatened against Lessor, or any of its owners and/or affiliates, Lessor shall provide notice to Lessee, and Lessee shall promptly arranged for the payment of all reasonable fees and costs incurred by counsel engaged by Lessor to defend any such action or threatened action, as well as indemnifying Lessor from any all awards made against Lessor arising out of any such action.

14. <u>Insurance</u> Lessee further agrees that Lessee will, at all times during the term of the lease, maintain and pay for comprehensive general liability insurance affording protection to the Lessor for a combined personal bodily injury and property damage limits of liability of not

less than Two Million and No/100 Dollars ($2,000,000.00) single limit each occurrence and Two Million and No/100 Dollars ($2,000,000.00) general aggregate, and an additional One Million and No/100 Dollars ($1,000,000.00) excess liability policy. Lessee also agrees to maintain special form fire and extended coverage insurance covering Lessee's fixtures and equipment in an amount equal to not less than eighty percent (80%) of the actual cash value thereof. Lessee further agrees to deliver to Lessor, prior to the commencement of the term hereof, and during the term of the Lease, a certificate or certificates of an insurance company or insurance companies satisfactory to Lessor, evidencing such insurance Notwithstanding the provisions contained in this Paragraph 14, the Parties acknowledge that the City is a municipal entity that utilizes a program of self-insurance and excess insurance to provide coverage for liability and property losses, and the Parties agree that the City's program of insurance as of the date of execution of this Lease, and as reasonably modified from time to time, satisfies the insurance requirements of this Paragraph 14. Pursuant to Bellingham Municipal Code 4.16, the City is self-insured up to $1,000,000 for liability claims. In addition, the City maintains excess liability insurance in the sum of $15,000,000. The City's self-insurance/excess insurance program covers those claims typically covered under an industry-standard commercial general liability policy.

15. Notices and Operations Contact.

Any notice provided for herein shall be given by certified or registered United States mail, postage prepaid, addressed, if to Lessor, to it at the address to which the rental checks are mailed. The party to whom and the place to which notices are to be mailed may change from time to time by either party by written notice given to the other party. Unless modified by such written notice, any notice to be provided to the City shall be provided to:

Community & Economic Development Manager
City of Bellingham
210 Lottie Street
Bellingham, WA 98225

For any contact regarding the operations of the low barrier shelter/drop-in-center, Lessor shall contact as set forth below, or as changed by further notice provided by Lessee to Lessor.

Hans Erchinger-Davis
910 W Holly St.
Bellingham, WA 98225
360-733-5120

16. Assignment and Subletting.

Except as expressly provided herein, Lessee agrees that it will not sublet any portion of the Leased Premises and further agrees it will not sublease or assign this Lease without the written approval from Lessor, which approval shall not be unreasonably withheld. In no event shall Lessee sublease or assign any of the parking or operate daily or hourly pay parking, mobile sales vehicles, trailers, without the written approval from the Lessor and as further set forth in Paragraph 3. Lessee will reimburse Lessor for all costs and expenses incurred by Lessor in connection with the assignment, including all costs for credit checks as to the credit worthiness of the proposed assignee and all attorneys' fees. Lessor acknowledges that Lessee intends to sublease the Leased Premises to LMM and hereby approves such sublease. Lessor

acknowledges and agrees that the use of the Leased Premises may change in the event an assignment or sublease is made following relocation of LMM to a site other than the Leased Premises. Prior to an assignment of this Lease, Lessor shall require that the City remain a guarantor of the Lease obligations and such obligations shall be memorialized and made part of a written assignment.

17. Compliance with Laws.

Lessee agrees, throughout the original term of the Lease or any renewal thereof, to comply with all laws, ordinances, orders, rules, regulations and requirements of all governmental authorities having jurisdiction of the Leased Premises.

18. Remedies Cumulative.

No remedy herein conferred upon or reserved to Lessor or to Lessee is intended to be exclusive of any other remedy herein or provided by law, but each shall be cumulative and shall be in addition to every other remedy given hereunder now or hereafter existing at law or in equity or by statute.

19. Holding Over.

If Lessee holds over or remains in possession of the Leased Premises after expiration of this Lease or after any sooner termination thereof, without any new lease of said Leased Premises being entered into between the parties hereto, or any option herein contained being exercised by written notice, such holding over or continued possession shall, if rent is paid by Lessee, and accepted by Lessor for or during any period of time Lessee holds over or remains in possession, create a tenancy from month-to-month at 125% of the last monthly rental and upon the terms (other than length of term, or option for renewal, purchase or cancellation) herein specified, which may at any time be terminated by either party by fifteen (15) days' written notice given to the other party.

20. Late Charge.

Lessee hereby acknowledges that late payment by Lessee to Lessor of rent and other sums due hereunder will cause Lessor to incur costs not contemplated by this Lease, the exact amount of which will be extremely difficult to ascertain. Such costs include, but are not limited to, processing and accounting charges and late charges which may be imposed on Lessor by the terms of this Lease and/or any other agreements which may involve the Leased Premises. Accordingly, if any installments of rent or other sums due from Lessee shall not be received by Lessor or Lessor's designee within ten (10) days after such amount shall be due, Lessee shall pay to Lessor a late charge equal to five percent (5%) of such overdue amount. The parties hereby agree that such late charge represents a fair and reasonable estimate of the costs Lessor will incur by reason of late payment by Lessee. Acceptance of such late charge by Lessor shall in no event constitute a waiver of Lessee's default with respect to such overdue amount, nor prevent Lessor from exercising any of the other rights and remedies granted hereunder.

21. Document Execution and Change.

This Lease contains the entire agreement between the parties hereto and that in executing this Lease, Lessee does not rely upon any statement, promise, or representation not herein expressed; that this Lease once executed and delivered shall not be modified, changed or altered in any respect except by a written amendment executed and delivered in the same manner as required for this Lease; that all covenants, agreements and conditions shall apply to and bind and inure to the benefit of the successors and/or assigns of Lessor and Lessee.

22. Paragraph Headings.

The paragraph headings of this Lease are inserted only for reference and in no way define, limit, or describe the scope or intent of this Lease nor affect its terms or provisions.

23. Protection of Lenders.

23.1 Subordination. Lessor shall have the right to subordinate this Lease to any deed of trust encumbering the Property, any advances made on the security thereof and any renewals, modifications, consolidations, replacements or extensions thereof, whenever made or recorded. Lessee shall cooperate with Lessor and any lender which is acquiring a security interest in the Property of the Lease. Lessee shall execute such further documents and assurances as such lender may require, provided that Lessee's obligations under this Lease shall not be increased in any material way (the performance of ministerial acts shall not be deemed material), and Lessee shall not be deprived of its rights under this Lease. Lessee's rights to quiet possession of the Property under the lease term shall not be disturbed if Lessee pays the rent and performs all of Lessee's obligations under this Lease and is not otherwise in default.

23.2 Attornment. If Lessor's interest in the Property is acquired by any beneficiary under a deed of trust or purchaser at a foreclosure sale, Lessee shall attorn to the transferee of, or successor to, Lessor's interest in the Property and recognize such transferee or successor as Lessor under this Lease.

23.3 Signing of Documents. Lessee shall sign and deliver any instrument or documents necessary or appropriate to evidence any such attornment or subordination or agreement to do so. If Lessee fails to do so within ten (10) days after written request, Lessee hereby makes, constitutes and irrevocably appoints Lessor, or any transferee or successor of Lessor, the attorney-in-fact of Lessee to execute any such instrument or document.

23.4 Estoppel Certificates

(a) Upon Lessor's written request, Lessee shall execute, acknowledge and deliver to Lessor a written statement certifying (i) that none of the terms or provisions of this Lease have been changed (or if they have been changed stating how they have been changed); (ii) that this Lease has not been canceled or terminated; (iii) the last date of payment of the Base Rent and other charges and the time period covered by such payment; (iv) that Lessor is not in default under this Lease (or, if Lessor is claimed to be in default, stating why); and (v) such other representations or information with respect to Lessee or the Lease as Lessor may reasonably request or which any prospective purchaser or encumbrancer of the Property may require. Lessee shall deliver such statement to Lessor within ten (10) days after

Lessor's request. Lessor may give any such statement by Lessee to any prospective purchaser or encumbrancer of the Property. Such purchaser or encumbrancer may rely conclusively upon such statement as true and correct.

(b) If Lessee does not deliver such statement to Lessor within such ten (10) day period, Lessor, and any prospective purchaser or encumbrancer, may conclusively presume and rely upon the following facts: (i) that the terms and provisions of this Lease have not been changed except as otherwise represented by Lessor; (ii) that this Lease has not been canceled or terminated except as otherwise represented by Lessor; (iii) that not more than one month's Base Rent or other charges have been made in advance; and (iv) that Lessor is not in default under the Lease. In such event, Lessee shall be estopped from denying the truth of such facts.

24. Lot 14 Pole Sign.

Lessee may at its sole cost and expense place its sign on the pole sign at the corner of the Property. Lessee will be allowed, free of charge, the use of the existing storefront sign. Lessor will have the right of approval of the contents and design of the sign.

25. Other Signage.

Lessee may install a storefront fascia sign and signage on the North and East exterior walls of the Leased Premises subject to location and design approval in writing from the Lessor, which approval shall not be unreasonably withheld.

26. Common Electrical Rooms.

Telephone and electrical meters and main switch are located in the electrical switch gear room. Puget Power hold keys for access through the exterior door. The Lessor reserves the right to store building maintenance equipment and supplies in the south electrical room.

27. Security Deposit.

Lessee shall deposit with Lessor upon execution hereof a total of Thirty Thousand Dollars ($30,000) as security for Lessee's faithful performance of Lessee's obligations hereunder. This amount is based, in part, on Lessee's obligations under Paragraphs 6 and 7 of this Lease. If Lessee fails to pay rent or other charges due hereunder, or otherwise defaults with respect to any provision of the Lease, Lessor may sue, apply or retain all or any portion of said deposit for the payment of any rent or other charge in default for the payment of any sum to which Lessor may become obligated by reason of Lessee's default, or to compensate Lessor for any loss or damage which Lessor may suffer thereby. If Lessor so uses or applies all or any portion of said deposit, Lessee shall, within ten (10) days after written demand therefor, deposit cash with Lessor in an amount sufficient to restore said deposit to the full amount required of Lessee. Lessor shall not be required to keep said security deposit separate from its general accounts. If Lessee performs all of Lessee's obligations hereunder, said deposit, or so much thereof as has not theretofor been applied by Lessor shall be returned, without payment of interest or other increment for its use, to Lessee (or, at Lessor 's option, to the last assignee, if any, of Lessee 's interest hereunder) at the expiration of the term hereof, and after Lessee has vacated the Leased Premises. No trust relationship is created herein between Lessor and Lessee with respect to said Security Deposit.

28. Rent Deposit.

Lessee shall deposit with Lessor upon execution of this Lease, Zero and No/100 Dollars ($0.00) to be applied to the first month's Base Rent.

29. Arbitration.

In the event that a dispute arises over any of the terms or conditions of the Lease, and Lessee and Lessor fail to agree upon the resolution of such conflict, then Lessor and Lessee hereby mutually agree that they shall submit to binding arbitration which shall be conducted in accordance with the Expedited Procedures of the then-current version of the Commercial Arbitration Rules and Mediation Procedures established by the American Arbitration Association and implemented by its Washington State Chapter, unless the amount in controversy exceeds the sum of $75,000.00, in which event the regular procedures shall apply, absent the parties' agreement to the contrary. Venue shall be located in Bellingham, Washington, or such other location as may be agreed by the parties. The decision of the arbitrator shall be binding on all parties, and may be entered as a judgment in a court of competent jurisdiction. Each party shall equally share the costs, fees and expenses of the arbitrator; provided, however, that the decision of such arbitrator shall include an award to the prevailing party of those sums previously paid and/or incurred by such prevailing party for such arbitrator costs.

30. Agency.

At the time of this Agreement, no agent represented Lessee and the Listing Agent, Heather Baker, Licensee of Pacific Continental Realty, LLC represented Lessor.. Each party signing this Agreement confirms that prior oral and/or written disclosure of agency or non-agency was provided to him/her in this transaction and that no other agents are entitled to a commission in this transaction.

31. Authority.

If Lessee is a corporation, trust, or general or limited partnership, each individual executing this Lease on behalf of such entity represents and warrants that he or she is duly authorized to execute and deliver this Lease on behalf of said entity. If Lessee is a corporation, trust, or partnership, Lessee shall, within thirty (30) days after execution of this Lease, deliver to Lessor evidence of such authority satisfactory to Lessor.

Lessor and Lessee have carefully read and reviewed this Lease and each term and provision contained herein and, by execution of the Lease show their informed and voluntary consent thereto. The parties hereby agree that, at the time this Lease is executed, the terms of the Lease are commercially reasonable and effectuate the intent and purpose of Lessor and Lessee with respect to the premises.

32. Exhibits.

The Exhibits attached hereto (A, B, C-1, C-2 and C-3) are hereby incorporated into this Lease.

EXECUTED on this _____ day of June, 2020, for JMC1, L.L.C. (Lessor) by:

_____
John M. Canterbury, Manager

STATE OF WASHINGTON)
) ss.
COUNTY OF WHATCOM)

I certify that I know or have satisfactory evidence that **JOHN M. CANTERBURY** is the person who appeared before me, and said person acknowledged that he signed this instrument, on oath stated that he was authorized to execute the instrument and acknowledged it as the Manager of JMC1, L.L.C. to be the free and voluntary act of such party for the uses and purposes mentioned in this instrument.

DATED this ____ day of _____, 2020.

_____
NOTARY PUBLIC in and for the State of Washington
Printed Name: _____
My appointment expires: _____

EXECUTED on this _____ day of June, 2020, for the City of Bellingham (Lessee) by:

_____
Seth Fleetwood, Mayor

Attest:

_____
Andy Asbjornsen, Finance Director

Approved as to Form:

_____
Office of the City Attorney

STATE OF WASHINGTON)
) ss.
COUNTY OF WHATCOM)

I certify that I know or have satisfactory evidence that **SETH FLEETWOOD** is the person who appeared before me, and said person acknowledged that he signed this instrument, on oath stated that he was authorized to execute the instrument and acknowledged it as the Mayor of the City of Bellingham to be the free and voluntary act of such party for the uses and purposes mentioned in the instrument.

DATED this ____ day of June, 2020.

_____
NOTARY PUBLIC in and for the State of Washington
Printed Name: _____
My appointment expires: _____

EXHIBIT A

LOTS 1, 2, 3, 4, 5, 6, 10, 11, 12, AND 13, BLOCK 3, CORNWALL AVENUE SUBDIVISION, ACCORDING TO THE MAP RECORDED IN BOOK 6 OF PLATS, PAGE 45, RECORDS OF WHATCOM COUNTY, WASHINGTON, EXCEPT THAT PORTION OF SAID LOT 1 CONVEYED TO THE CITY OF BELLINGHAM FOR STREET PURPOSES BY DEED RECORDED UNDER AUDITOR'S FILE NO. 880359, SAID PORTION BEING MORE PARTICULARLY DESCRIBED AS: BEGINNING AT THE NORTHWEST CORNER OF SAID LOT 1; THENCE EASTERLY, ALONG THE NORTHERLY LINE OF SAID LOT 1 A DISTANCE OF 75 FEET TO THE TRUE POINT OF BEGINNING; THENCE CONTINUE EASTERLY AND NORTHERLY LINE OF LOT 1, A DISTANCE OF 50 FEET TO THE NORTHEAST CORNER OF SAID LOT; THENCE SOUTHWESTERLY, ALONG THE EASTERLY LINE OF SAID LOT, A DISTANCE OF 22.5 FEET TO A POINT, THENCE NORTHWESTERLY IN A STRAIGHT LINE A DISTANCE OF 54.5 FEET, MORE OR LESS, TO THE TRUE POINT OF BEGINNING.

LOT 14 BLOCK 3, "CORNWALL AVENUE SUBDIVISION:, A PART OF THE CONSOLIDATED CITY OF BELLINGHAM WHATCOM COUNTY, WASHINGTON, AS PER THE MAP THEREOF, RECORDED IN BOOK 6 OF PLATS, PAGE 45, IN THE AUDITOR'S OFFICE OF SAID COUNTY AND STATE.

EXHIBIT B – Site Map

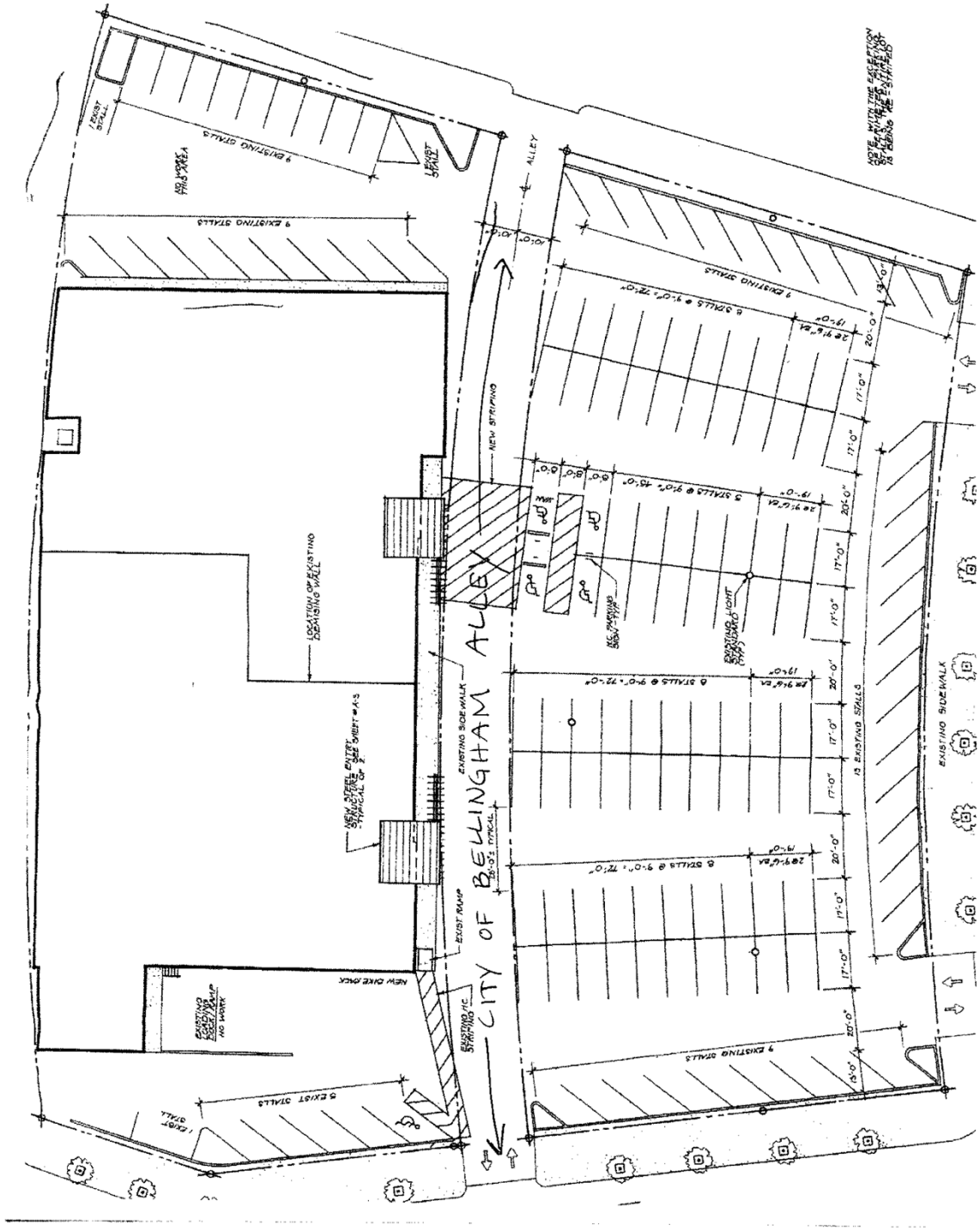


EXHIBIT C-1 – Site Layout

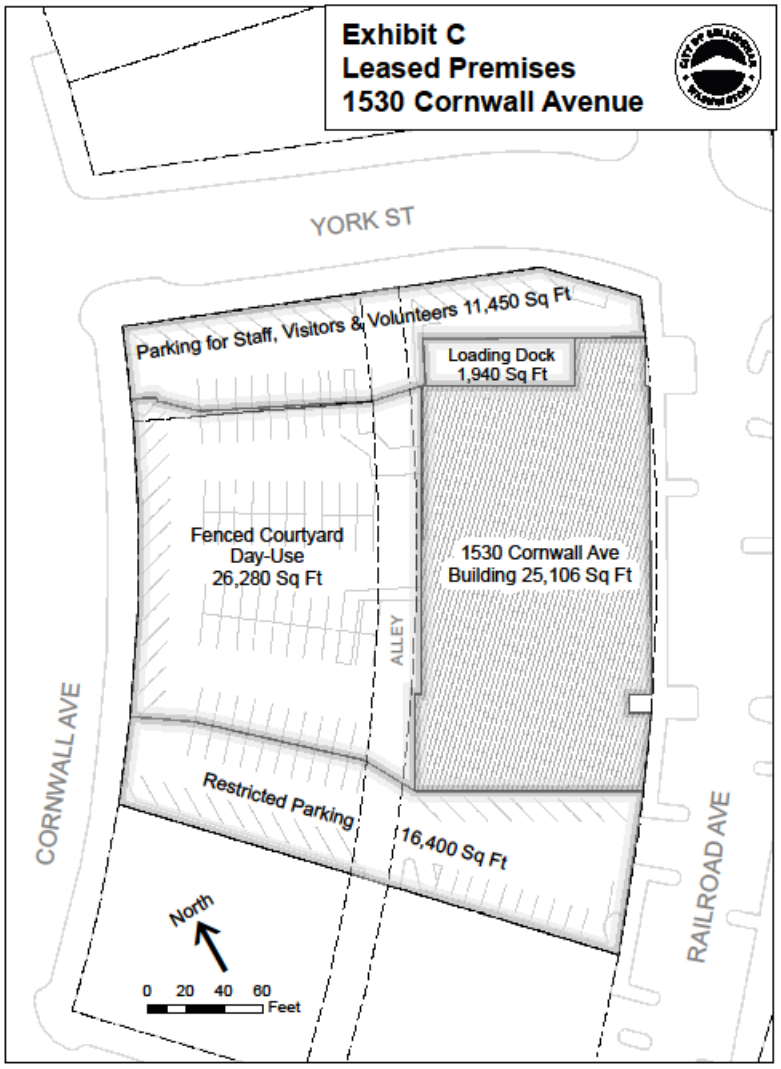


EXHIBIT C-2 Building Layout and Approved Alterations

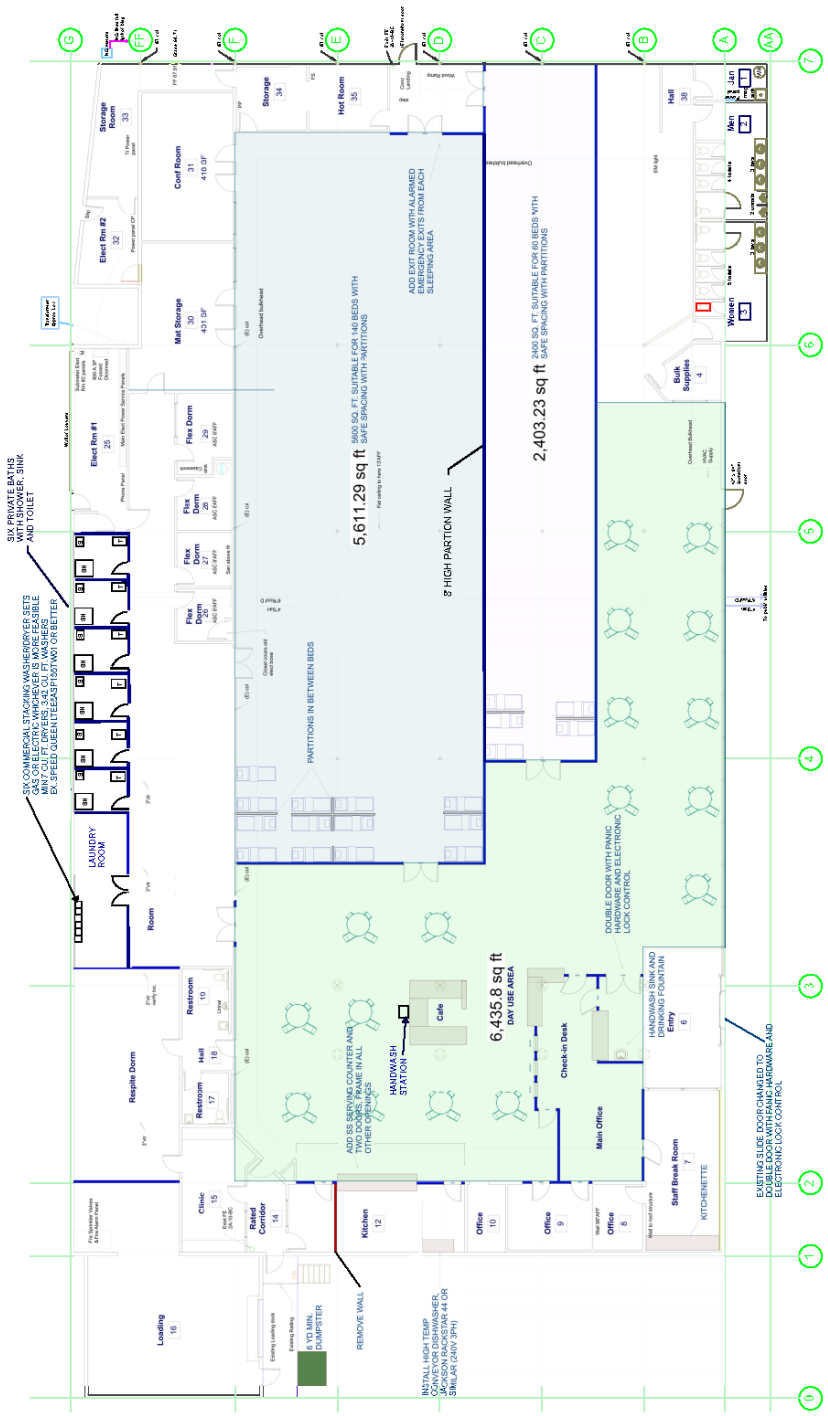


EXHIBIT C-3

Approved List of Tenant Improvements

Lessor hereby approves and authorizes Lessee (or Lighthouse Mission Ministries) to perform certain tenant improvements to meet the needs of the use set forth in the Lease.

As of the date of the Lease, the following improvements are approved by Lessor. Additional improvements require Lessor's approval prior to commencing construction as set forth in the Lease.

- Privacy fencing installed in the parking area creating a courtyard. See Exhibit C.1 for approximate location. Fencing will be removed at the end of the lease term and fence post holes will be filled in and made flush with adjacent surface.
- Installation of approximately 4- 6 individual shower stalls to remain on site for use by owner at the end of the lease term.
- Installation of washers and dryers to be removed by tenant at end of the lease term.
- HVAC make up air system improvements and repair.
- Plumbing system improvements, if required or desired by Lessee.
- Restroom (toilet/sink) improvements, if required or desired by Lessee.
- Construction and minor carpentry work for the creation of separation of sleeping quarters, coffee bar, hand-washing stations and check-in desks. Lessee will utilize the existing vendors to the degree possible.
- Construction of warming and serving station for meals, at a minimum. We anticipate using previous vendor stalls. Installation of an industrial kitchen is desired by LMM in the event funding is available.
- Interior Painting, if desired by Lessee.

Bellingham City Council

Public Comment for a COVID-19 Emergency Shelter/Temporary Building Encampment at 1530 Cornwall Avenue

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:51 PM
To: Kerr, Monea J.
Subject: FW: Proposed low barrier shelter

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Sunday, June 14, 2020 7:34 PM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@co.whatcom.wa.us
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Ruffatto, Peter M. <pruffatto@cob.org>
Subject: RE: Proposed low barrier shelter

Elected Officials:

Please allow me to bend your ear one more time. Let me first say that I am a "government guy." I have been honored to have spent a good part of my legal career representing ports, fire districts, and even some cities all across Washington State. I have worked closely with City staff and respect their work. So, it is unnatural for me to be on the other side.

Give the citizens more than 27 hours to read and comment on documents. Give the community a week (if not two) to interact on this. The City council can continue its meeting for one week before signing the lease and sublease which will not even be available to 3:00 tomorrow. Let people read the documents and have a chance to reflect and comment. I have heard staffs of governments for years tell elected officials' words to the effect of "there is no time -you must act now and as we recommend." In my experience there is always a week or even two to consider a decision and get public input and the decision is always better for it. I am saying *"trust the people to help inform your decision".*

Understand the documents and the whole issue before you act. Several City and County council members told me that they were "unaware" and "had not seen the documents" and "thought there were several sites under consideration". I say to all of you that as elected officials (and as I have said to many elected officials of governments I have represented over the years) "it is you and not the staff to which the citizens have entrusted their government and all its power."

The Public Market is a bad location because it costs too much. The proposal for the Public Market location will negatively impact all the businesses and property owners downtown. I have been downtown since 1994 when Mayor Douglas encouraged us to buy an old dilapidated warehouse and look to the future. And, I must say the City staff and elected have worked with us to encourage the vitality of the downtown with landscaping and lighting and the Bellingham Farmers Market at the south end of Railroad.. Now it is a place where people

live in apartments and I am sure more are coming in the properties formerly occupied by the feed and seed companies. Before last week, if asked, I would tell anyone from anywhere that Bellingham had a vibrant downtown and had survived the mall of the 1980s and the Barkley development of the 2000's and was a place with a vibrant sense of place.

- The life blood of downtown are the young entrepreneurial families that give it their all and risk their finances to build these small businesses. Think of Café Adagio, the Local Restaurant, the gaming place, the chocolate place, the crepe store, the hair salons. BTC made a big commitment with the hairstyling campus on Railroad. My point is that these will be the real casualties of this decision. Coming off of Covid-19 closures they will not survive. I know this because the downtown only started to thrive after the Housing Authority built Walton Place and the anti-social behavior began to decline. I am struck that downtown Bellingham is one of the last places a young citizen can get into a business small business space. What I am trying to say is I will survive 3-4 years – these poor folks will not. What also strikes me is the somewhat caviler attitude and lack of empathy given to these peoples'(and their employees) lives on such short notice. I understand that sentiment of combining an emergency that will not last longer than six months with the desire to leverage CARES Act funds into a 3-4-year facility. But our society should bear the full cost and not pick a segment of society to bear part of the cost.

- One County Councilmember called me and said words to the effect that this was the "cheapest alternative" and "nobody wants it around them". I replied for "cheapest for who?" The true cost of this facility is the $1.5 million of federal dollars *and* the costs to all the local businesses visited upon them by this decision *and* the cost to all of Bellingham of the damage to downtown. For example only, if a temporary homeless shelter was placed in a residential neighborhood (which I certainly am not advocating) people may be inconvenienced and the anti-social behavior would be unwelcome, but they would not lose their homes or their jobs because of the behavior. In downtown, many of these small businesses and their employees will lose their livelihoods. They depend on customers choosing to go downtown for their services and dinning (as opposed to Barkley or Fairhaven). When the antisocial behavior increase the people vote with their wallets.

We must and should treat everyone, including the homeless with empathy and compassion. We all understand the need to treat the homeless with compassion and empathy. We are all better because of our empathy but that great empathy also leads to a more difficult problem . I have been interacting with this segment of the homeless population since we move our offices downtown in 1994. I try to be very polite and ask folks to pick up their mess, bought cups of coffee and told folks they could sit under our entry canopy if they promised to leave it clean (about 50% success on that). This population of homeless presents the most challenge. I have observed that it is largely a mental illness issue maybe fueled by self-medication with drugs and alcohol. But I have also seen the ugly antisocial behaviors. It is a very tough challenge that, in my view, was precipitated when large mental health facilities were closed with the promise of the federal and state governments to support community mental health and that never happened.

The Courthouse Annex and the Sah and Door Sites are superior temporary 3-4-year alternatives. The old Courthouse Annex site is owned by the County and used to have the two-story Courthouse Annex so it has water and sewer to the site and can support any structure. In 2018 the Homeless Strategies Workgroup identified that as a potential site for a **permanent drop in shelter** and the then County Executive reasonable said "no" because it would be need in the future County uses perhaps for a jail. Well now we have an emergency, mental health is a County issue, and the need is now a **temporary shelter** with no immediate

plans on the five-year horizon to use the property. It is free to the County. I understand that a lightweight fabric structure could be erected there in about 6 weeks. Our group has pledge financial support, a local contractor said it would build it at cost and Construction Supply has offered materials at cost. These structures can be dismantled and moved when the use is over. "Why not now on a temporary basis and in an emergency?" The effects of a temporary homeless shelter in that location will largely be on government property, it is near the Sheriff's office and the BPD station. Most importantly it is near the County Health Department so that appropriate resources can be close by. **I have spoken with Sheriff Elfo and he would support the location of the temporary shelter at the Courthouse Annex site**. Likewise, as previously discussed the City owned Sash and Door site could be used on a temporary basis. I have read the agreement with Northwest Recycling and they have failed to do what they said they would do. So that is not an impediment.

- Even if it took longer than six weeks there are alternatives especially as we enter summer. The Washington National Guard could provide GP medium tents (the kind our soldiers live for six weeks in during winter field exercises) on Civic Field for several months. A call to our Governor for a use of tents should be made. Or the City could rent the big white party tents (certainly there are no big parties now). The surface is suitable for cots or mattresses and it certainly could lend itself to social distancing. Civic Field will not be used this fall for football games (and if it was planned for games this is an emergency – there are other football fields in Whatcom County), it is enclosed with a fence already, has bathrooms and food service facilities. Here again it is surrounded by government owned facilities. We could then use the time to build a proper temporary structure aa the Courthouse Annex or the Sash and Door Site easily ready in a few months.

Public Market Site. If it must be the Public Market, then I have several observations:

1. People are concerned that after four years the LHM will continue to lease directly from the property owner or buy the property and then the City will say "sorry nothing we can do.".

2. Use the City's proprietary rights as a tenant and then as a landlord to require the owner (in the Lease) and the LHM (in the sublease) to commit not to use the Public Market site beyond 4 years. This is fair because the landlord is receiving rent using public money. The claim that the BMC limits this ability is inaccurate. The BMC is on the regulatory side of government The City also acts in a proprietary capacity (for example when it rents space out for businesses in the Parkaide). After all the City and County are using $1.5 million of public money.

3. To assure the public make the business owners and property owners within 500 feet of the Public Market "third-party" beneficiaries of this promise to vacate ant the end of the lease and not use it as a homeless shelter again without a right to sue for damages but with a right to seek injunctive court relief. It is common to have a promise on future use as a condition of agreeing to lease a property or imposing a limitation on future use by a tenant as a condition of getting a lease. Airports all over this country have entered into agreements with their neighbors. This will provide the needed trust and show that the City really does mean what it says – no more than 4 years.

4. Build an infrastructure that includes a committee made up of representatives of local business, the City council, the County council, the LHM, the police and mental health folks. They should meet often and review problems and concerns. Information would flow and transparency would ensue. Moreover, the solutions would be community based.

5. Require the LHM to take responsibility for off-site impacts of its operations. Require the LHM to utilize "adaptive management" for the effects outside their facility. Provide a sublease provision which allows the City Council to require additional mitigation if it becomes necessary. Fundamentally, governments always seek to make a landowner or business responsible for its impacts both on and off its property (park impact fees, storm water fees, traffic concurrency fees). As the situation changes so does the management strategy. After all, this is $1.5 million in public money.

6. Do not put the police into the enforcement business with the homeless. The FAQ put out by the City says the police will enforce the no sitting or lying down on City rights of way. Offering to use the police to keep homeless folks from siting or sleeping on City streets is counter to the long overdue national discussion on policing and has proven ineffective. This leads to two frequent outcomes - the police take no action and profess to have no authority to act (the usual outcome) or the situation escalates. This is unfair to put the police in this situation and unfair to the homeless population that is (usually as a result of mental health issues) engaging in anti-social or destructive behavior. This is not a law breaker problem. It is a mental health problem for which empathy and treatment is needed. The City and County should step up and fund a group of mentally heath trained folks to act like the old "beat cops". They can be walking the Downtown every day and night and interact with the businesses, the community and the homeless. These folks can always call the police if things start to escalate. Let's decriminalize this. Sure, it would cost money but how much is the Downtown worth?.

In closing I think one of the primary principles of government should always be "do no harm".

Respectfully,

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: Bill - Construction Supply <bill@cscbellingham.com>
Sent: Monday, June 15, 2020 12:39 PM
To: MY - mayorsoffice@cob.org; CC - Shared Department; ssidhu@co.whatcom.wa.us; council@co.whatcom.wa.us
Subject: Proposed Downtown Homeless Shelter

Dear Mayor, County Executive, City and County Council Members,

Just an addendum to my previous comments. Approximately two years ago, I attended a joint City/County Council, Mayor and County Executive meeting at the Whatcom County Courthouse to discuss potential locations for the low barrier shelter, the same shelter that is now presently planned to be located in the old Safeway/Terra Organica/Public Market site on Cornwall Avenue and York Streets.

One of the proposed sites was the County owned (I believe) parking lot directly west of the Walton public housing site on Champion Street. After vigorous debate and discussion that included input from Council Members, the Mayor and Executive, the Lighthouse Mission executive and many concerned downtown business owners in attendance, that Champion Street parking lot site (along with MULTIPLE other downtown core sites) was REJECTED, primarily due to the close proximity to the Walton public housing. The meeting ended with the Whatcom County Health Department site (across Whatcom Creek from City Hall) as the best potential site. I understand that ultimately that site was ALSO rejected by surrounding neighborhood opposition.

The current proposed site for the low barrier shelter is now only a half block west of that PREVIOUSLY REJECTED Champion Street parking lot site. I understand there are time constraints and pressures on relocating the shelter from Bellingham High School, but I don't understand why a previously, resoundingly rejected location would be chosen for the present relocation.

From that meeting, I remember the Lighthouse Mission desiring locations that are as close to their main location on F Street as possible so they can physically provide their services. Shouldn't we be looking in the Old Town area and NOT in a struggling but recovering downtown core to relocate the low barrier shelter? Why spend millions, sign multi-year leases and damage the fragile downtown business environment (and the tax base they provide) by locating the shelter in an area already determined to be unacceptable, determined by a VERY PUBLIC PROCESS that was NOT RUSHED OR FORCED? LET'sS PLEASE NOT PANIC AND MAKE A VERY POOR DECISION! Again, I ask what is wrong with the old Sash & Door site the City owns at the foot of Holly Street, or possibly many other empty buildings in Old Town?

I look forward to hearing your thoughts, thank you for hearing mine, listening to my plea and RECONSIDER/REJECT the Cornwall and York Street location.

Sincerely,

Bill Eiford
360-739-5407

Kerr, Monea J.

From: Lydia Bennett <lbennett@ccim.net>
Sent: Sunday, June 14, 2020 3:15 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org; Lilliquist, Michael W.; Anderson, Lisa A.; Vargas, Pinky T.; Huthman, Hollie A.; Stone, Hannah E.; Knutson, Gene R.; Hammill, Daniel C.; abarker@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us
Subject: Bellingham City Council - Special Meeting

Greetings -

I am signed up for the special City Council meeting on June 16. Please see my comments and questions below.

I've been in the commercial real estate business in Bellingham, Whatcom County, and the greater Pacific NW Region for all of my career. I have advised and brokered many sale and lease transactions within the Bellingham CBD, including with and for the City of Bellingham; I also operated a small business for many years in downtown Bellingham. I write this so you know that I completely and thoroughly understand leases and leasing from both a landlord and tenant perspective, and I am a passionate advocate of downtown Bellingham.

The City will seek to approve the lease for the "temporary" homeless shelter at this special meeting. The City is providing public money to lease the building on Cornwall Avenue from a private property owner, and then the City will sublease the building to Lighthouse Mission (LHM). The City insists this is a "temporary" shelter and that the Shelter will relocate once LHM raises enough money to construct a permanent location. Relative to that, here are my thoughts and questions:

- The City *can* include a condition to the Master lease agreement with the Owner -- a covenant upon the property - that precludes any use of the building as a homeless shelter for a period of time AFTER this lease is over. This provides assurance to local business people and adjoining property owners that indeed this use will be "temporary". There is no law or regulation that precludes the City adding this type of condition to the lease.

  Will the City - as a recognition of the harm and detriment this facility will cause the Urban Village of Downtown CBD -- assure the anxious and disappointed downtown business people that a condition precluding the Cornwall Building Owner from using the property as any kind of homeless shelter for a period of 10 years after LHM leaves will be added to the lease?

- "Temporary" has a tendency to become "permanent". LHM has tried to raise funds privately and find a location for a permanent drop-in facility for many years and has been unsuccessful. Because they have been unable to do so thus far:

  How long does the City intend to continuously allow this use in our downtown core if no permanent facility is built? Forever? Please provide a DATE CERTAIN in which -- regardless of whether a permanent facility is built -- this downtown facility will close.

  Will the City and County commence work on developing the corner lot between City Hall and the County Courthouse building as a permanent facility? If not, why not? This is the perfect location.

- The Downtown Urban Village -- one that is FINALLY thriving -- will suffer from this decision.
    - **What financial support will the City offer the businesses, residents, and property owners of the Downtown Urban Village that are harmed by this decision?** A government is in place to make decisions to benefit the public good, not just one segment of the public.

And two final questions:

If saving lives is truly one reason for this emergency shelter to be put into place, and if State Building Codes are in place to save lives, Why is the City asking to exempt itself from following State Building Codes and the City's own building permit process?

This -- exempting itself from following its own rules -- is because the City knows its building permit and inspection process is overburdensome, time consuming, and arbitrary (depending on the assigned planner and inspector). An ancillary question:

If the above statement isn't true, why would the Downtown Bellingham Partnership set up a place for citizens to lodge complaints about the City through a professional mediator so the citizen doesn't have to fear retaliation by City inspectors or staff? (I know this question is rhetorical, however it completely deserves comment by the Council).

It is a kick in the gut of every person who's tried to navigate the permit and inspection process to know that the City itself will not have to follow its own rules -- because they know it is flawed yet will do nothing to fix it. This is the very definition of a government that is arrogant and self-serving.

Thank you for reading this long email and answering my questions.

Sincerely,

Lydia Bennett

Lydia Bennett, CCIM, CPM
Commercial Real Estate West Coast
lbennett@ccim.net
360-224-6600

Kerr, Monea J.

From: joel litwin <joel@redcandle.net>
Sent: Sunday, June 14, 2020 1:25 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Subject: Bellingham Sportsplex

Dear Mayor Fleetwood and City Councilmembers Stone, Hammill, Anderson, Huthman, Knutson, Vargas & Lilliquist,

It has come to my attention that you are considering repurposing the Bellingham Sportsplex facility as a homeless shelter. Is this true? If it's not true, please accept my apologies and disregard this letter. But if it IS true, please read on for some of my thoughts on the matter.

While I understand the need for expanding the homeless facilities in town, especially in light of the recent social distancing guidelines, I would urge you to pursue options other than the Sportsplex, like the former Terra Organica building, for example. Here's why the Sportsplex is so important in its current capacity:

- The Sportsplex receives an estimated 600,000 visitors annually, according to former Whatcom Sports & Recreation Director Lance Calloway. This is an incredible amount of patronage, and I'd be hard pressed to think of another Bellingham facility with anywhere near that amount of visitors each year.

- Thanks to the tireless work of current Director Marc Ronney & staff, the Sportsplex is a beloved treasure here in Whatcom County for thousands of recreationalists, parents, friends, groups, and people of all demographics & beliefs.

- The Sportsplex is a jewel of the community. I personally have been a member for the past 6 years and have been consistently frequenting it 2-4 times a week up until the shutdown.

- The Sportsplex is critical to the well-being of the community. Not just the physical well-being of its inhabitants, but also the mental and psychological well-being, which are likely even more important. A few quotes I've heard from fellow members include:

> "The Sportsplex is my anti-depression medicine."
>
> "So many rely on [the Sportsplex] for recreation, community, and their SANITY."

- The Sportsplex promotes community, friendship, teamwork, learning to work together, leadership, communication and so much more. It encourages personal growth and, of course, contributes to health and fitness, in an age where we desperately need both.

- In this time of divisiveness and polarization, the Sportsplex is an oasis of camaraderie and welcoming. We all look out for each other and care about each other. Division 4 hockey, which I can personally speak to from experience, is a perfect example of this. All are welcomed with open arms, regardless of abilities, beliefs, backgrounds, etc. We help each other, protect each other, encourage and challenge each other, and build long-lasting friendships and bonds. It's been a beautiful and life-changing experience for me, and I know for so many others.

- Every week on the ice, I was meeting people from all over the region: Canada, Anacortes, San Juan Islands, Oak Harbor, etc. The Sportsplex is the only US ice rink north of Everett, and enjoys a wide-ranging geographic patronage.

- The Sportsplex, as a hockey and skating facility, is in a perfect position to reap the benefits of the imminent roll-out of Seattle's new professional hockey franchise. It was shown in the case of Las Vegas that the region's hockey interest and participation skyrocketed upon the arrival of the Golden Knights.

- While I realize that many people in positions of power think of recreational and leisure activities as "non-essential," and "frivolous," I very much beg to differ. I believe that recreational and leisure pursuits are the very things that make life worth living. We were not put on this earth solely to Work, in my opinion. I think we can learn from the recent pandemic and associated lockdown, where cases of depression, anxiety, suicide attempts, and domestic violence have spiked, in the midst of closure of recreation, sports and opportunities to gather and congregate.

These are just some of my thoughts – I have more, but I wanted to spare you! I appreciate your time and willingness to listen and consider. If you need more convincing, I stand by, ready to mobilize a very-willing taskforce to gather signatures to keep the Sportsplex operational as a valuable recreational and sports facility here in our beloved Bellingham and Whatcom County.

Again, I urge you to retain the Sportsplex as the wonderful community treasure that it is, and to support it and help it grow in this time of great need and opportunity.

And I urge you to look elsewhere to meet the important needs of sheltering the homeless and needy in our community.

Thank you,

Sincerely,

Joel Litwin
Citizen of Bellingham

Kerr, Monea J.

From: Mandy McCoy <studiogalactica@comcast.net>
Sent: Friday, June 12, 2020 8:04 PM
To: CC - Shared Department
Subject: Business owner concerns about transparency

The following letter was sent to the Mayor's office. Please read prior to June 16th meeting

To whom it may concern:

For nearly 20 years I have owned a small business across the street from the site that has apparently already been chosen for the "temporary" homeless shelter. I have 4 coworkers (who are also small business owners) who have shared my space cooperatively for many years. The community we serve is diverse and we have supported our homeless population in various ways over the years. This letter is being written by someone who understands the complexities that accompany the struggles to house the homeless.

I want to believe that people, especially those elected to serve a community, are trying to do the right thing. I'm currently finding it difficult to adhere to that belief in regard to the mayor and others involved in the process of securing a homeless shelter, given the complete lack of transparency of the selection process. Over the past couple of days, I have spoken to several individuals who have been involved in the process to varying degrees. They were directed to keep this project a secret. Does good work need to be done in secrecy? Does ethical action need to be hidden from public view? Please think about it. The trust of the community is earned through transparency, a willingness to have open process and conversation, and an ability to make necessary decisions based on facts and research that are openly and appropriately shared along the way. I understand that Seth Fleetwood has the power to make certain decisions during this emergency and I would be able to respect the Mayor if he owned his authoritarian actions publicly despite political risk, rather than pretending there was an ethical approach to this process after the lease is all but signed.

My livelihood and the ability for all of the surrounding small businesses to survive this depends on how you choose to move forward. Many of us serve an elderly population. Many of us have struggled to stay afloat in a downtown that has only recently begun to thrive. I would like to submit the following requests for your consideration:

-Please place the entrance to the shelter and any outdoor congregation areas in the least conspicuous area possible and as close to the city bus depot as possible to create a direct path for the people walking from the shelter to the bus and vice versa. The back or side of the building that is not directly in view of surrounding businesses would greatly reduce the visual impact as well as the potential for verbal and physical contact with our clients who are elderly or vulnerable. Not facing entrances or outdoor areas toward businesses also allows us to be obscured from the line of sight of the residents of the shelter, which would likely help reduce the number of people entering our businesses. In the evening when the lights are on, we are very visible to anyone in the parking lot and it can draw people over to us like a beacon.

-Please add large concrete planters with greenery along the sidewalk to obscure the view of the shelter from local businesses and also to obscure the view of the businesses from the shelter for the reasons previously stated.

-Please use the existing parking lot for monthly permit parking for downtown residents or employees. This would create a mixed use and would ensure that many different community members would be using the area rather than just the homeless population. The current rate to park in that lot is $50 a month. 100 spots would generate $5,000 monthly to go toward costs of shelter staff, supplies, or clean up of the area.

-Please come up with a safety plan for businesses and individuals who have established businesses near the site you have already selected.

We are doing everything we can to keep our staff and clients safe during the current pandemic. Many businesses are already experiencing a diminished capacity to earn as we follow new regulations as well as a steep increase in overhead spending on cleaning supplies and other safety measures. We are already stressed, fearful, and uncertain about our ability to survive financially. Adding additional financial, safety, and property risk to us as we try to earn a living is hard to fathom at this point. If this is the best property for the site, you should absolutely be able show that due diligence was followed and the community as a whole was considered. You should absolutely be able to show that nothing publicly misleading was stated at recent City and/or County council meetings. My expectation is that there is complete transparency throughout the remainder of this process. My hope is that there is an ability to show that other locations were as carefully and thoroughly considered as the one you've already chosen, and that the other locations such as light industrial spaces (that are more cost effective and not in the middle of city commerce) were ruled out for legitimate reasons that can be shared readily with the public.

Amanda McCoy

1519 Cornwall Avenue

Bellingham WA 98225

360-220-3322

Kerr, Monea J.

From: Ken Reinschmidt <ken@saratogacom.com>
Sent: Friday, June 12, 2020 5:50 PM
To: CC - Shared Department
Subject: Bellingham City Council - Special Meeting

1. The Mayor mentions that the City will be prepared to help minimize and mitigate problems that locating the shelter at the Public Market location may create downtown. Are there any specific actions plans in place. For example, If daytime loitering on the sidewalks on Railroad, Cornwall, and Holly Streets begins to interfere with access to businesses, can anything be done to help?
2. I have heard that there are plans for fencing around the parking lot in front of the market. Where is it planned, and what will it look like?
3. Are there plans for beautification of the fenced in yard in front of the shelter? Planters and greenery would be nice and provide for some dignity for those passing through or gathering in that yard.

Kerr, Monea J.

From: tallie@mindport.org
Sent: Friday, June 12, 2020 1:49 PM
To: CC - Shared Department
Subject: drop-in center location

Dear Council Members,

I am writing in support of the relocating the Drop-In Center to the building that formerly housed the Bellingham Public Market. I appreciate that it meets the need for social distancing, is close to essential services, and can be made ready quickly so that people experiencing homelessness won't be unsheltered as the city searches for another site.

Tallie Jones
Director, Mindport Exhibits
210 W. Holly St.
Bellingham, WA 98225
(360-441-7162)/tallie@mindport.org
pronouns: she/her/hers

Kerr, Monea J.

From: Cindy Madigan <cindymadigan@hotmail.com>
Sent: Friday, June 12, 2020 12:40 PM
To: MY - mayorsoffice@cob.org; CC - Shared Department
Subject: Support for using Terra Organica site for shelter

Dear Mayor Seth and council members,

I am writing in support of using the Terra Organica site for transitioning the shelter for people without homes from the high school. It's a well-thought out and researched and the price and availability are right for this emergency.

Temporary shelter is just one of many solutions for us to consider in finding homes for our residents. I also appreciate the Homes Now model, grateful you extended the moratorium on manufactured home park usage, and feel we will benefit from as many solutions as the diverse needs of our unsheltered neighbors require.

I'm writing this from inside my cozy home during a November like rainy day and appreciate the work you are all doing to solve this crisis. There is so much we can't do, but finding homes for our neighbors is possible in this wealthy and compassionate city.

Best regards,
Cindy

Kerr, Monea J.

From:	dbobena@yahoo.com
Sent:	Thursday, June 11, 2020 6:11 PM
To:	CC - Shared Department; Lilliquist, Michael W.; Hammill, Daniel C.; Stone, Hannah E.; Huthman, Hollie A.; Anderson, Lisa A.; Vargas, Pinky T.; Knutson, Gene R.; MY - mayorsoffice@cob.org
Cc:	council@co.whatcom.wa.us; Satpal Sidhu; Cathy Halka; Health
Subject:	We need much more than one sheltering solution and we need those solutions to be facilitated and expedited

Dear Bellingham City Council and Mayor Fleetwood:

I am conflicted about the move of the Drop-In Center from Bellingham High School to the Public Market location for a four year period. I understand that the people that go to the Lighthouse Mission Drop-In center need a safe place to be, especially during the pandemic. But to me, this is a little like a mega-jail situation in some aspects. This new space is expected to be in use for four years, while during that time I understand that the Lighthouse Mission plans to expand their facility. While I don't necessarily object to it, I find it very difficult to support. However, I do put the immediate safety of our community members before my frustration with unsheltered people being put in this scrambling and not very advantageous situation.

I don't feel large congregate shelters are a great solution. They are definitely not a very good solution during a pandemic. There was a good recent article in High Country News that made some comparisons between options with the backdrop of actions happening in Seattle during COVID-19. I feel like we have this sense that we aren't in a crisis situation yet like Seattle is. But I feel we are. The crisis, and the trauma and injury and illness and death numbers that come with it just hasn't reached as high a count. Our percentage of tragedy is just somewhat less. https://www.hcn.org/articles/covid19-pushed-seattle-to-provide-housing-for-homeless-people

Putting more eggs in the basket of the Drop-in Center at this point - and a lot of public funds will be used for this - is likely not going to leave us much better prepared for physical distancing when the next pandemic comes around. Plus, it's going to leave us only slightly better prepared for sheltering people right now and when the expanded Drop-In Center facility opens.

Congregate shelters are one solution and having one of them that isn't overly huge may be okay for awhile, especially because we have that provider and their dedicated staff and all the relationships they have with social services, donors, etc.

But our government agencies, including your Council, donate a disproportionate amount of attention to this one religious, mission-driven, congregate shelter. For example, no other sheltering service providers have their own guaranteed position on Whatcom County's Homeless Strategies Workgroup except for Lighthouse Mission, the Opportunity Council, and Northwest Youth Services.

Then we have the whole issue of dealing with businesses and alarmed downtown folks over 200 people without shelter being concentrated in one new particular area. It's a big facility and people are more likely to make big noise about it.

Meanwhile, as you know, the process for neighborhood engagement and education, has been really successful for smaller sheltering communities, like Unity Village, Winter Haven, and Safe Haven. If we were to invest some time, effort, (and potentially less funds than for one large facility) into facilitating 10 small villages of 20 people each in different locations around the city/county - this would serve 200 people, lessening the load on the other providers and accommodating more of the 500 or so unsheltered community members that aren't currently being served at all. Plus, these would be ideal sheltering solutions for during winter conditions and health emergencies. The City could develop some of their own, plus the last I heard, you have a provider right now who has already indicated they have goals to expand their tiny home communities, and would, if you will help facilitate them in doing so.

There are other smaller sheltering models that could be considered, as well. For over a year I have heard very, very little meaningful discussion about or encouragement of or facilitating of other models, except through the voices of the providers and residents of those other models.

Despite a large amount of effort being expended, we had another huge failure this winter in terms of providing shelter during freezing weather. Again, this was a by-product of having the congregate shelter be placed in an integral role in deciding when emergency shelters would be opened. And sadly, here it is June and to my knowledge, we do not have any additional winter sheltering resources at all that have been identified, let alone any that are preparing for serving unsheltered community members this next cold season during the pandemic. This is infuriating and unacceptable!

Every single successful sheltering service provider in the County should be being actively sought out - if they aren't already - be brought into every sheltering conversation, be recognized, encouraged, and facilitated in improving and, potentially, expanding their capabilities to shelter our community members.

Also, I call on Council Members who are on the Homeless Strategies Workgroup to insist on unsheltered individuals being offered a number of positions on the workgroup.

Sincerely,
Dena Jensen
Birch Bay, WA

dbobena@yahoo.com

Kerr, Monea J.

From: Peter Frazier <peter@heliotropehotel.com>
Sent: Thursday, June 11, 2020 5:12 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org; Sundin, Tara J.
Cc: robert hall; Ken Mann
Subject: We support the temporary Cornwall Avenue shelter

Hello, All

Downtown property owners **Robert Hall** and **Ken Mann**, and myself **Peter Frazier** (co-owner of the Heliotrope Hotel and Hotel Leo) are in support of Lighthouse Mission's low-barrier shelter on the 1500 block of Cornwall. None of us think it is an ideal location but we understand that it must be sited somewhere, and you've found an acceptable location for three years, under the circumstances. This support is conditional on the stated plan to build a permanent shelter at the LHM's property on F and Holly within three years. As downtown Bellingham businesses recover from the economic downturn due to Covid, it will be critical that we all work together to minimize impacts on businesses in the downtown. We request that every effort will be made by the City to do so.

We understand how important it is to offer shelter and services to our neighbors experiencing homelessness and appreciate the City's efforts in this regard. We recognize that homelessness is a federal-sized problem that, under current circumstances, sadly must be dealt with at the municipal and county level in such a fashion.

On an individual note, I have reached out to the ED of the LHM and offered to help fundraise for the effort.

Thank you,
Peter Frazier

Peter Frazier
Managing Partner
360.201.0390 (text or call)
peter@heliotropehotel.com
Heliotropehotel.com
TheHotelLeo.com

HELIOTROPE HOTEL

HOTEL LEO

Kerr, Monea J.

From: Lee Glendening <leeg@twothimbles.com>
Sent: Thursday, June 11, 2020 12:24 PM
To: MY - mayorsoffice@cob.org; ssidhu@co.whatcom.wa.org; CC - Shared Department; council@cowhatcom.wa.org
Subject: Fwd: Proposed homeless shelter

Greetings - Mayor, County Executive, City and County Council Members:

I am writing as a Bellingham resident, property owner and business owner. I am concerned about the announcement to continue operating the 'temporary' homeless shelter in the former Public Market on Cornwall. Since there was no opportunity to provide input about the current 'temporary' location to the Bellingham High School I certainly hope that the continued path to infiltrate existing areas without any due process of notification and community involvement for affected areas stops. I cannot believe the city government has so little disregard for core downtown businesses, the public and community residing and conducting business in the area.

The impact to the downtown area with the recent use of the school district property has been significant. My business in the immediate area has seen camping, garbage, voluminous quantities of abandoned personal belongings, human waste, vandalism to the exterior, aggressive behavior, loitering, and non-social distancing. I have placed more police calls in the last 10 weeks than in the past 3 years. The mission has assumed no responsibility for any impact to the community and is relying on city and adjacent property owners to support and compensate for their endeavor. While downtown businesses were required to abandon their livelihoods due to the pandemic, we were greeted with added maintenance, clean-up and costs to keep our properties clean and safe. Not to mention the endless use of city resources for cleanup of abandoned property and police callouts. This new proposed location will continue to be very damaging to the Bellingham downtown business environment, potentially irrecoverably. ALL businesses and their employees and owners are already severely struggling with the effects of COVID19 - adding a homeless shelter to the mix does not offer any support or opportunity for improvement and will only further exacerbate the deteriorating environment.

This 'quick fix' simple use of an existing structure in the same neighborhood zoned for business activity is not acceptable. The city and mission need to find a solution that addresses the COMMUNITY needs, that provides tax payers and property owners with responsible action and places responsibility for what occurs to the surrounding area on the mission. Ignoring what happens outside the walls of the mission facility is not acceptable.

The sole focus to consider and serve one segment of the population who does not provide the funding for city operations while sacrificing the surrounding business community is shortsighted and not good for fostering a partnership with Bellingham businesses and property owners. The mission has access to significantly more potential resources and could require service in exchange for services provided rather than rely on other property owners and city resources.

The impact to the neighborhood for any chosen location needs to be part of the missions responsibility. Parking, garbage, safety, loitering, security should be concerns that are on the agenda along with the services provided. It is unconscionable that the city focus does not fully consider the significance to the community as a whole, and in particular the stress this places on the downtown core businesses trying to recover from the pandemic. If there is any hope for businesses to survive and recover the downtown area needs to WELCOME customers, provide a safe and clean environment.

I have also been made aware that full and public due process and zoning code compliance may not be transpiring regarding this plan. That is VERY DISAPPOINTING. Despite the challenges of COVID19 and "emergency powers" granted to our government, that does not mean turning a blind eye to the future and the VITAL importance of a healthy downtown core to live and work in. The pandemic does not create an excuse to deny an OPEN, FAIR, PUBLIC DISCUSSION regarding matters that will affect the health of downtown Bellingham for decades to come. Please hear this reasoning and consider better options to address homelessness in Bellingham than gutting the economic, social and community health of an already reeling downtown Bellingham. Please also provide an open forum for this decision to be debated.

Please consider your decision from the standpoint of a property owner, local business owner, and tax payer and perhaps a community member concerned about the viability of Bellingham.

Lee Glendening
Two Thimbles Quilt Shop
360 715 1629
leeg@twothimbles.com

Kerr, Monea J.

From: Cathy Buckley <CathyB@bellinghamathleticclub.com>
Sent: Thursday, June 11, 2020 7:55 AM
To: MY - mayorsoffice@cob.org; ssidhu@co.whatcom.wa.org; CC - Shared Department; council@co.whatcom.wa.org; MY - mayorsoffice@cob.org; ssidhu@co.whatcom.wa.org; CC - Shared Department; council@co.whatcom.wa.org
Cc: BAC Operations
Subject: Potential Homeless Shelter at York and Cornwall

Hello Mayor, County Executive, City and County Council Members,

I am hearing that there is a plan afoot to relocate the temporary homeless shelter from Bellingham High School to a property across the street from my business Bellingham Athletic Club (at York and Cornwall) 1616 Cornwall. BAC has been at this location since 1993. BAC has 80 employees and 4,000 members, and has been in business since 1975.

I am very much aware of the homeless problem in Bellingham and Whatcom County, I deal with the homeless on a daily basis at both my businesses. I am thankful and grateful for the community effort working to improve this situation in order to help community members that struggle without shelter. And indeed through my position in the Rotary Club of Bellingham have donated countless efforts and dollars to help fix the issue. However, if what I hear is correct, the plans for relocating the temporary homeless shelter at Bellingham High School to the old Safeway location is a VERY BAD IDEA and will be very damaging to the Bellingham downtown business environment, potentially irrecoverably. ALL businesses and their employees are already severely struggling with the effects of COVID19. Adding a homeless shelter to a struggling downtown will only exacerbate that problem.

May I offer an alternative? The old Sash and Door site in Old Town at the foot of Holly Street (owned by the City) is an alternative. This area is already a focal point with the caring folks at The Lighthouse Mission just a few blocks away. I am aware of plans and offers by Ram Construction to construct (at cost) a temporary structure on the site. Many other downtown business and property owners are willing to donate and support this plan. Is this not a better alternative than to open a shelter in a suffering downtown that needs every advantage to recover from COVID19?

I have also been made aware that full and public due process and zoning code compliance may not be transpiring regarding this plan. That is VERY DISAPPOINTING. Despite the challenges of COVID19 and "emergency powers" granted to our government, that does not mean turning a blind eye to the future and the VITAL importance of a healthy downtown core to live and work in.

We live in a democracy. The pandemic does not create an excuse to deny an OPEN, FAIR, PUBLIC DISCUSSION regarding matters that will affect the health of downtown Bellingham for decades to come. Please hear this reasoning and consider better options to address homelessness in Bellingham than gutting the economic, social and community health of an already reeling downtown Bellingham. Please also provide an open forum for this decision to be debated.

I trust a sound decision will be made regarding this issue. Please do not hesitate to contact me if I may be of help in any way, as I care deeply about our community and home.

Sincerely,

Cathy Buckley
Owner
Bellingham Athletic Club
360.676.1800

Kerr, Monea J.

From: Betty Miller <bemiller52@comcast.net>
Sent: Wednesday, June 10, 2020 9:04 PM
To: MY - mayorsoffice@cob.org; CC - Shared Department; ssidhu@co.whatcom.wa.us; council@co.whatcom.wa.us
Subject: Proposed Downtown Homeless Shelter

Dear Mayor, County Executive, City and County Council Members,

I am writing to voice my concern regarding locating a homeless center on the property located at York and Cornwall Ave in the downtown. I realize there is a homeless problem in Whatcom County. As an owner of the property housing Habitat for Humanity, Grace Church, Two Thimbles and Mobile Music, we have been greatly impacted by the temporary housing center at Bellingham High School. Our tenants have complained because of the loitering and continual garbage left behind.

We are struggling with the impact of the Covid19 shut down and have had to reduce our rents by half at the request of our tenants. In the past, we have tried two programs to feed the homeless on our property, but both resulted in unhappy tenants and customers. One tenant was ready to vacate and break her lease. We also deal with homeless camps behind our property. Many mornings the employees are greeted with human feces.

Please consider another location. We don't need our already struggling downtown businesses to be impacted by a homeless center. I'm afraid we won't survive.

Thank you for your consideration.

Betty Miller
Lifetime Resident
Co Owner of Cornwall Center Inc
370-927-1905
Bemiller52@comcast.net

Kerr, Monea J.

From: Bezanson, Matt J.
Sent: Wednesday, June 10, 2020 5:24 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Cc: Niedermeyer, Steven J.
Subject: FW: Feedback on www.cob.org

Feedback received at webmaster account

Regards,

Matt Bezanson
Senior Applications Developer Analyst

IT Services Dept
City of Bellingham, WA
Phone: (360) 778-8078
Email: mjbezanson@cob.org

My incoming and outgoing email messages are subject to public disclosure requirements per RCW 42.56

-----Original Message-----
From: Laurel <laurelcook@aol.com>
Sent: Wednesday, June 10, 2020 5:21 PM
To: Grp.IT.Web Administrators <webmaster@cob.org>
Subject: Feedback on
https://gcc02.safelinks.protection.outlook.com/?url=http%3A%2F%2Fwww.cob.org%2F&data=02%7C01%7Ccc%40cob.org%7Cd87fc7ad18674d8ceb8b08d80d9dbe37%7Cd438603ec0cb4a1286e40001e1d225b9%7C0%7C0%7C637274318448039294&sdata=1ce9Ry4kG1LPN%2BgzXxbIygH%2BE3vf9ExNH8TvfpfJOD0%3D&reserved=0

https://www.cob.org/gov/council
The former Public Market is a wonderful location for the homeless shelter.
Good idea!
Laurel Cook

Sent from my iPad

Kerr, Monea J.

From: Joeen Daughters <jdaughters@haskellcorp.com>
Sent: Wednesday, June 10, 2020 5:13 PM
To: MY - mayorsoffice@cob.org; ssidhu@co.whatcom.wa.org; CC - Shared Department; council@co.whatcom.wa.org
Subject: Homeless Shelter

To the Mayor, County Executive, City and County Council Members,

I am writing as a lifelong Bellingham resident, Bellingham business and property owner, and very concerned citizen regarding recent news I heard about potentially locating a "temporary" homeless shelter in the old Safeway building (former Terra Organica) at York Street and Cornwall Avenue.

I am very much aware of the homeless problem in Bellingham and Whatcom County. I am thankful and grateful for the community effort working to improve this situation in order to help community members that struggle without shelter. However, if what I hear is correct, the plans for relocating the temporary homeless shelter at Bellingham High School to the old Safeway location is a VERY BAD IDEA and will be very damaging to the Bellingham downtown business environment, potentially irrecoverably. ALL businesses and their community employees and owners are already severely struggling with the effects of COVID19. Adding a homeless shelter to a struggling downtown will only further exacerbate that problem.

I have also been made aware that full and public due process and zoning code compliance may not be transpiring regarding this plan. That is VERY DISAPPOINTING. Despite the challenges of COVID19 and "emergency powers" granted to our government, that does not mean turning a blind eye to the future and the VITAL importance of a healthy downtown core to live and work in.

We live in a democracy. The pandemic does not create an excuse to deny an OPEN, FAIR, PUBLIC DISCUSSION regarding matters that will affect the health of downtown Bellingham for decades to come. Please hear this reasoning and consider better options to address homelessness in Bellingham than gutting the economic, social and community health of an already reeling downtown Bellingham. Please also provide an open forum for this decision to be debated.

I trust a sound decision will be made regarding this issue. Please do not hesitate to contact me if I may be of help in any way, as I care deeply about our community and home.

Sincerely,

Joeen Daughters

Kerr, Monea J.

From: Bill - Construction Supply <bill@cscbellingham.com>
Sent: Wednesday, June 10, 2020 3:30 PM
To: MY - mayorsoffice@cob.org; CC - Shared Department; ssidhu@co.whatcom.wa.us; council@co.whatcom.wa.us
Cc: fchmelik@chmelik.com; Bemiller52@comcast.net
Subject: Proposed Downtown Homeless Shelter

Hello Mayor, County Executive, City and County Council Members,

I am writing as a lifelong Bellingham resident, Bellingham business and property owner, and very concerned citizen regarding recent news I heard about potentially locating a "temporary" homeless shelter in the old Safeway building (former Terra Organica) at York and Cornwall Avenue.

I am very much aware of the homeless problem in Bellingham and Whatcom County. I am thankful and grateful for the community effort working to improve this situation in order to help community members that struggle without shelter. However, if what I hear is correct, the plans for relocating the temporary homeless shelter at Bellingham High School to the old Safeway location is a VERY BAD IDEA and will be very damaging to the Bellingham downtown business environment, potentially irrecoverably. ALL businesses and their community employees and owners are already severely struggling with the effects of COVID19. Adding a homeless shelter to a struggling downtown will only further exacerbate that problem.

May I offer an alternative? The old Sash and Door site in Old Town at the foot of Holly Street (owned by the City) is an alternative. This area is already a focal point with the caring folks at The Lighthouse Mission just a few blocks away. I am aware of plans and offers by Ram Construction to construct (at cost) a temporary structure on the site. Many other downtown business and property owners are willing to donate and support this plan. My business, Construction Supply Company, will gladly provide discounted construction materials to this effort. Is this not a better alternative than to open a shelter in a suffering downtown that needs every advantage to recover from COVID19?

I have also been made aware that full and public due process and zoning code compliance may not be transpiring regarding this plan. That is VERY DISAPPOINTING. Despite the challenges of COVID19 and "emergency powers" granted to our government, that does not mean turning a blind eye to the future and the VITAL importance of a healthy downtown core to live and work in. We live in a democracy. The pandemic also does not create an excuse to deny an OPEN, FAIR, PUBLIC DISCUSSION regarding matters that will affect the health of downtown Bellingham for decades to come. Please hear this reasoning and consider better options to address homelessness in Bellingham than gutting the economic, social and community health of an already reeling downtown Bellingham. Please also provide an open forum for this decision to be debated.

I trust a sound decision will be made regarding this issue. Please do not hesitate to contact me if I may be of help in any way, as I care deeply about our community and home.

Sincerely,

Bill Eiford
360-739-5407
billeif@icloud.com

Kerr, Monea J.

From: Chris Renoud <Chris.Renoud@fse.com>
Sent: Wednesday, June 10, 2020 2:35 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Cc: council@co.whatcom.wa.us
Subject: Requesting transparency and public input for shelter at the Public Market building
Attachments: Requesting Transparency.pdf

Dear Mayor and City Council,

We are writing this letter petition, attached, to request information and transparency in the process for choosing a temporary and eventual permanent homeless shelter in Bellingham. We would expect and request robust public input into this project including but not limited to **public health, security and other important issues**.

This is singed by most of the businesses on the block opposite the old Public Market, and several more just this morning and we will continue to gather signatures in a wider radius. There is a lot of interest in this issue, it will not wane.

Regards,

Chris Renoud PE | **FSE Inc.** | President
T +1.360.734.7040 | **M** +1.360.201.5000
www.fse.com

Kerr, Monea J.

From: Greg Winter <greg_winter@oppco.org>
Sent: Wednesday, June 10, 2020 8:27 AM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Subject: Opportunity Council support for new Drop-In Center location

Dear Members of Bellingham City Council and Mayor Fleetwood,

I was pleased to learn today that the City intends to continue its partnership with Lighthouse Mission to relocate the Drop-In Center to the Public Market space.
On behalf of our organization, our Homeless Service Center, and our Homeless Outreach Team, Opportunity Council is in full support of this move. I offer this support, not only as a human service organization, but also as a long-time Downtown Bellingham business, with one of our main locations just one block away from the new Drop-In Center site.

You know all too well how challenging it can be to site a facility like this, so I am grateful for your leadership in support of the many people who will seek safe shelter, especially during this urgent public health crisis.

Failure to quickly relocate the Drop-In Center will create an additional public health emergency within the ongoing public health emergency. There are precious few ways to site an adequate facility where this many people can safely be co-located and comply with social distancing rules that are required to keep our entire community safe. Though I do not know the owner(s) of the Public Market, I would also like to express my gratitude to them for their willingness to make this space available.

Greg Winter
Executive Director
Opportunity Council
(360) 734-5121 x346

Kerr, Monea J.

From: Rud Browne <RBrowne@co.whatcom.wa.us>
Sent: Tuesday, June 9, 2020 7:25 PM
To: CC - Shared Department
Subject: Unexpected Positive consequences of providing shelter in Renton

I thought you might find this an article about the unexpected positive consequences of providing better for the homeless during COVID

"In an approach being tested across the West Coast, King County paid to put the equivalent of an entire downtown shelter into a hotel to protect the residents — some of the most medically fragile and mentally ill people living without homes — from COVID-19. At this hotel, the emergency move appears to have also demonstrated, at least through data from the first month, the benefits of an approach that houses people before asking them to get an income or agree to change their behavior.

Inside the shelter, reports of fights, overdoses, violence and threats are down; Renton police are responding to far fewer calls at the hotel than Seattle police did at the Third Avenue shelter. (There are slightly fewer residents in the hotel than there typically are in the main shelter.) People in mental health crisis are staying more often, instead of walking off and potentially wandering streets in distress. In other King County cities hosting smaller shelters in hotels, shelter staff say similar things are happening."

https://www.seattletimes.com/seattle-news/homeless/at-hotels-for-homeless-seattleites-fear-and-frustration-outside-but-comparative-calm-within/

Be well.

Rud
Rud Browne
Councilmember - District One
Whatcom County Council
311 Grand Ave. Suite 105
Bellingham, WA 98225
Phone: 360-820-9494
Email: RBrowne@co.whatcom.wa.us

NOTICE: All emails and attachments sent to and from Whatcom County are public records and may be subject to disclosure pursuant to the Public Records Act (RCW 42.56)

Kerr, Monea J.

From: Lydia Bennett <lbennett@ccim.net>
Sent: Tuesday, June 9, 2020 3:51 PM
To: CC - Shared Department
Subject: Fwd: Low barrier shelter

The low-barrier shelter MUST NOT happen in downtown Bellingham. If you support businesses AND the health of downtown you will NOT approve the lease with the Mission. This is truly suicide for the City.

Please see my emails to Tara below.

Lydia Bennett, CCIM, CPM
Commercial Real Estate West Coast
lbennett@ccim.net
360-224-6600

---------- Forwarded message ---------
From: **Lydia Bennett** <lbennett@ccim.net>
Date: Tue, Jun 9, 2020 at 3:48 PM
Subject: Re: Low barrier shelter
To: Sundin, Tara J. <tsundin@cob.org>

Sooo...just heard that this is probably going to happen despite the lack of public input and the secrecy with which it was pursued (does the Council know that people were asked to "keep this secret"?). I watched the recording of the City Council meeting last night.

There will be so many businesses that leave downtown. Guaranteed. Glad to know the homeless have now more importance than:

- businesses that pay taxes to support the homeless,
- business people that pay taxes to support the homeless,
- citizens who like to go downtown and pay taxes to support the homeless people, and
- the health of the downtown

Does anyone in the city know how to do the math relative to the short-term "easy" fix (this lease) vs. the long-term cost to the City (businesses leaving, vacant buildings)? Clearly not. This is truly ridiculous.

Please pass this along to the Council and the Mayor. Thanks.

Lydia Bennett, CCIM, CPM
Commercial Real Estate West Coast
lbennett@ccim.net

360-224-6600

On Tue, Jun 9, 2020 at 2:53 PM Sundin, Tara J. <tsundin@cob.org> wrote:

> Thanks, Lydia. I'll be sure to pass your feedback along.
>
> -----Original Message-----
> From: Lydia Bennett <lbennett@ccim.net>
> Sent: Tuesday, June 9, 2020 1:56 PM
> To: Sundin, Tara J. <tsundin@cob.org>
> Subject: Low barrier shelter
>
> Hey Tara -
>
> Hope you and your fam are doing well. Crazy times right now...
>
> Concerned with 1) the low-barrier shelter going anywhere downtown, and 2) the "secrecy" with which it's been pursued.
>
> The health of the City and the businesses downtown are at stake - not to mention the City budget and reputation. And, calling this an "emergency action" so as to avoid any public input — which you know would be overwhelming against this action — goes against everything democratic in our form of government.
>
> This placement of the homeless shelter downtown cannot happen. It needs to go in the Irongate area.
>
> Thanks for listening.
>
> Lydia
>
> And PS: it would be really informative to learn how long our each of our "unhoused" people have lived in this area, but I understand that information is suppressed by homeless advocates. I've heard that a large percentage have traveled to Bellingham because we have "free" services. Without factual information to the contrary, many voters, taxpayers, and business owners believe that to be true, including me. Do you have any data about that? Thanks again.
>
> Lydia Bennett, CCIM, CPM
> CRE West Coast
> Lbennett@ccim.net
> 360-224-6600

Kerr, Monea J.

From: Chris Renoud <Chris.Renoud@fse.com>
Sent: Tuesday, June 9, 2020 1:34 PM
To: CC - Shared Department
Subject: Opposition of the Homeless Shelter in Downtown

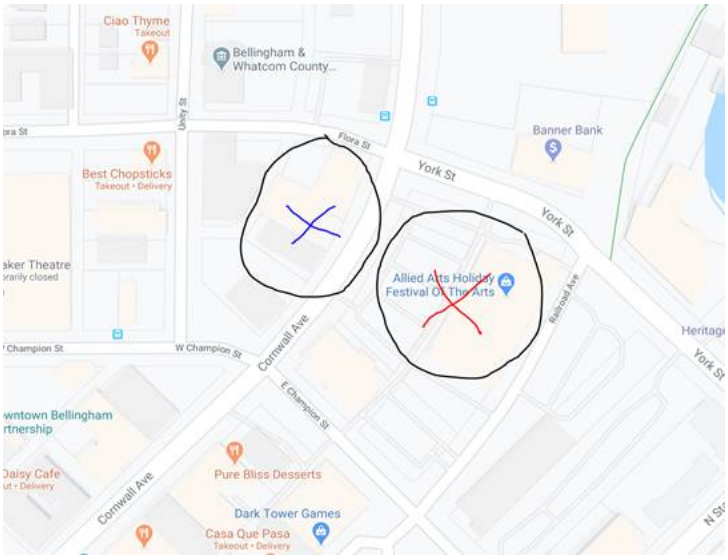
Dear City Council,

Over the last two years I purchased the three buildings across the street from the Public Market, the proposed new shelter location. I was born in Bellingham in 1972 and raised in Bellingham and live in Fairhaven at 209 Parkridge Rd.

I own the following buildings that have the following addresses across from the Public Market Building and lease to 9 tenants (at the blue X):

- 1509 Cornwall, Mount Baker Planned Parenthood
- 1511 Cornwall, Fiberglass Structural Engineering
- 1515 Cornwall, Sunrise Services
- 1517 Cornwall, The Fencing Academy and a second space to lease
- 1519 Cornwall, Studio Galactica Hair Salon
- 1521 Cornwall, Gown and Glove
- 1523 Cornwall, Morrie Barber
- 1525 Cornwall, Arlis's Restaurant

Putting this shelter in any town that you want to thrive, is absurd and backwards. Many of my tenants are already struggling to survive the shutdown, they already pay below market rent and they will all reconsider renewing their lease if this goes through. The Bellingham Business Community is mobilizing to counter this terrible path the city is considering and from what I can see is, very little to no community input so far.

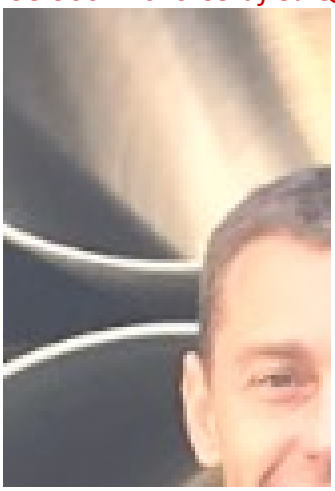


Please have public input into the idea and please do not put the homeless shelter in the downtown area.

Regards,

Chris Renoud PE | **Fiberglass Structural Engineering Inc.** | President
| United States | Saudi Arabia | United Arab Emirates | Kuwait

T +1.360.734.7040 | **Direct Line** 360.255.5811
M +1.360.201.5000 **USA** | +966.50.779.6379 **KSA**
www.fse.com | chris.renoud@fse.com
ISO 9001:2015 Certified QMS



Kerr, Monea J.

From: Chris Kobdish <Chris.Kobdish@ucnw.org>
Sent: Monday, June 15, 2020 7:40 AM
To: CC - Shared Department
Subject: Unity Care NW Letter of Support for Temporary Shelter
Attachments: Public Market Shelter Support Letter.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

Good afternoon,

On behalf of Unity Care NW I am sending a letter in support of the proposed temporary shelter location at the former Public Market.

If you have any questions please feel free to contact me directly.

Warm regards,

Chris

Chris Kobdish (she/her)
Director of Planning and Development
Unity Care NW
1616 Cornwall Avenue #115
Bellingham, WA 98225
Direct (360) 788-2624 Fax (360) 925-3044

Unity Care NW
Health Care for Everyone
Respect. Accountability. Integrity. Collaboration. Innovation.

RECOGNIZED NCQA PATIENT-CENTERED MEDICAL HOME

Unity Care NW
Health Care for Everyone

June 12, 2020

Dear Members of Bellingham City Council and Mayor Fleetwood,

As the CEO of Unity Care NW, I am writing to you to convey our agency's full support for the temporary relocation to the former Public Market on Cornwall of the Drop-In Center Shelter operated by Lighthouse Mission Ministries. The health and well-being of our entire community is dependent upon our ability to offer safe shelter to our most vulnerable community members during this COVID-19 crisis.

As a Federally Qualified Community Health Center, public health is at the heart of our mission. We have worked to implement systems to prevent the spread of COVID-19 to both our staff and patients. Securing temporary shelter for our community's homeless in the midst of this pandemic is a critical need. Without adequate space, many of the people who have been served at the Lighthouse Mission's Drop-in Center would be unhoused and on the street, leaving them and the rest of our community vulnerable to virus transmission and spread.

Unity Care NW already provides healthcare services to many of Bellingham's homeless men, women, and children. We will be across-the-street neighbors to the relocated Drop-In Center, which will create new opportunities for us to partner. And we remain committed to continued collaborations with the City, County, and other key partners in seeking long-term solutions to the crisis of homelessness in our community.

Thank you for your expeditious action to create this solution. We invite the entire community to join us in supporting this temporary plan as the Lighthouse Mission develops its new expanded facility.

Jodi Joyce
Chief Executive Officer

Kerr, Monea J.

From: John and Janet Crews <jjcrews@me.com>
Sent: Sunday, June 14, 2020 2:05 PM
To: CC - Shared Department; MY - mayorsoffice@cob.org; Lilliquist, Michael W.; Anderson, Lisa A.; Vargas, Pinky T.; Huthman, Hollie A.; Stone, Hannah E.; Knutson, Gene R.; Hammill, Daniel C.; abarker@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us
Cc: Frank Chmelik; Ken Reinschmidt; Lydia Bennett; Dianna DelGiorgio; Chris Renoud; Bruce Gryniewski
Subject: NW Citizen Op Ed
Attachments: Op Ed.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

We would like to share with everyone an Op Ed piece that we were asked to submit to the NW Citizen for publication today. It is intended to show our hopes and intentions of working with the City to find positive solutions, and not to be nay-sayers who do not offer constructive ideas that can be beneficial for all.
Our continued thanks to all of you who are putting your efforts and best intentions towards finding the best solutions for all concerned.
John & Janet Crews

Op Ed for the NW Citizen

As a member of the North Downtown Property and Business Owners Working Group, I would like to share some of my views related to the new low-barrier shelter proposed for the Public Market building on Cornwall Ave.

We do not believe that the Public Market site is a reasonable area for a low-barrier shelter, as confirmed by the City's own 2018 report. Our focus in communicating to the mayor's office and city and county council members has not been on trying to stop the creation of a new drop-in shelter. Instead, we are trying to re-frame the question by suggesting and supporting alternative sites, along with practical and financial support for a temporary shelter. There are sites available on government-owned property that would not threaten the survival of downtown businesses already struggling on the brink of collapse due to the Covid-19 restrictions.

We understand that the recent coronavirus pandemic has hit homeless people very hard, and that there is an immediate need for a suitable temporary shelter as required by state-mandated Covid-19 restrictions. We understand that homelessness is a problem we must address and solve as a community with fairness for all.

However, families that own small businesses, as well as their employees and families, are also being hit very hard during the current pandemic and its associated government restrictions, and they, too, are struggling to survive. The thought of our downtown business neighborhood being sacrificed by the City is truly scary for small-business families.

These small-business owners have tough memories from fifteen years ago when this area of downtown was overrun with disenfranchised individuals resulting in people urinating and defecating in business doorways in front of customers, having graffiti painted on their storefronts and rocks thrown through their windows, having drug dealing and prostitution openly taking place in front of their shops, and having customers too afraid to get out of their cars or walk to businesses.

Through the courage of many small business owners, the dedication of the Bellingham Police officers, and support from City government, this situation was eventually turned around to create a safe and thriving business community over the past twelve years. To add the bleak possibility of the previous problems returning on top of what downtown is already dealing with due to Covid-19 is an unfair burden, short-sighted, and could lead to increased unemployment and financial stress for the citizens of Bellingham.

For the City to see a vibrant and healthy downtown re-emerge from the current pandemic with the ability to support jobs and families, it must not throw fuel on the current pandemic stresses by putting a low-barrier shelter within the boundaries of the Central Business District. We commend the City's recently proposed efforts to make the new shelter a safe and well-controlled environment.

However, the safety and security measures that we have seen proposed are limited to the shelter site. The only assurance the City has offered for the downtown businesses,

shops, and restaurants is to enforce existing laws against sitting or lying on a sidewalk. While being well intentioned, this addresses about one percent of the problems that may descend on downtown.

On Tuesday, City Management is presenting the City Council with a lease for the proposed Public Market property as an either/or proposition: Either use the property they are proposing, or vote for no shelter. Either agree to subject downtown small businesses, their employees, and downtown visitors to social elements that are directly or indirectly detrimental, and sometimes overtly hostile to small businesses' survival; or vote in a way that appears to be unsympathetic to the homeless. We believe that this is a false choice, and that there are better alternatives which we are actively working to support.

Our current focus as a working group has been on trying to re-frame this either/or question by supporting alternative sites, along with offering practical and financial support for building a shelter on these more appropriate government-owned sites that would provide the necessary shelter without threatening the survival of downtown family businesses.

During the most recent City Council meeting, City Management stated that government-owned properties were indeed an option, but they felt that these options involved higher costs and may not meet the necessary timeline. We believe that, through recent community efforts, both of these issues are no longer primary concerns. We are working with a prominent local contractor who firmly believes that he can meet the necessary timeline, and we believe that the additional costs can be mitigated or reversed by the generous community support that is outlined below.

Over the past few years, to its credit, the City has been actively searching for a **permanent** location for a drop-in shelter. Each of the options they looked at had issues that precluded them from being chosen.

The current Covid-19 situation has changed the essential nature of that search to now being the need for an emergency **temporary** shelter location for the duration of the pandemic. We believe that the temporary nature of the current crisis should allow the use of existing government properties that were judged not to be feasible for a permanent solution.

We are supporting locations in Old Town and in the vicinity of the courthouse that would be much more suitable for a temporary shelter, without pitting the needs of the homeless against the welfare of downtown business families and their employees' families.

There is no question that each of the alternative properties that we are supporting involves challenges. However, in this crisis situation we believe that the City has the power and ability to overcome these obstacles, as illustrated by the fact that their proposal to the City Council for the Public Market location includes an unusual request to exempt the proposed shelter from Washington State Building Code requirements

due to the urgency of the Covid-19-induced shelter crisis. We believe that this same creative crisis management can, and should, be used to make other, much more suitable, government-owned sites available.

If the upcoming decision-making process is going to take into account the mental health aspects of a shelter's location, which it should, it is very clear that the lot north of the courthouse is vastly superior to the Public Market site. There are numerous research studies which show that being near nature and greenery has a very positive effect on mental health and depression. The Courthouse Annex site is surrounded by trees on three sides, and there are tree-lined pathways that lead down to Maritime Heritage Park. The Public Market site offers blacktop, busy streets, and alleyways. If any consideration is going to be given to the mental welfare of the people using this shelter, there is no question that the Courthouse Annex site is a vastly superior choice.

In order to aid in this process, the community is offering support to the City in the forms of a prominent local construction company offering to build a temporary shelter within the needed time-frame at no markup, building suppliers who have offered to supply materials at their cost, engineering firms who have offered to supply the needed work at no costs, and our working group has offered to pitch in $50,000 of private money to help fund the project. Since the sites we are proposing are government-owned, there would be no leasing costs to the City.

We realize that the solutions we are proposing will certainly involve some challenges for the City to move them forward, but the fact that this is a temporary use during a pandemic crisis should empower overcoming those challenges. There are certain challenges with each of the sites we are supporting, but therein lies the chance for government to fulfill its role of trying to help all of its citizens, without unduly burdening others.

Up until this point, there has been a tendency to view this as a choice of casting the burden on either the homeless, or on downtown small-business families and their employees' families. This is an opportunity for local government to step up and use its land resources and emergency powers to support the well-being of both groups, and to provide the best solution for all citizens by taking the burden upon themselves at the small cost of working through the obstacles, and providing use of government-controlled land on a temporary basis.

This is a chance for local government to show compassion for all their citizens, not just one group or another. We are asking the City Council to briefly delay their decision on Tuesday, and ask the City and County to find ways to make one of their own sites available for the benefit of their citizens during this crisis.

Respectively submitted,
John and Janet Crews

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:52 PM
To: Kerr, Monea J.
Subject: FW: Proposed Downtown Homeless Shelter

From: Bill - Construction Supply <bill@cscbellingham.com>
Sent: Monday, June 15, 2020 12:39 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; CC - Shared Department <cc@cob.org>; ssidhu@co.whatcom.wa.us; council@co.whatcom.wa.us
Subject: Proposed Downtown Homeless Shelter

Dear Mayor, County Executive, City and County Council Members,

Just an addendum to my previous comments. Approximately two years ago, I attended a joint City/County Council, Mayor and County Executive meeting at the Whatcom County Courthouse to discuss potential locations for the low barrier shelter, the same shelter that is now presently planned to be located in the old Safeway/Terra Organica/Public Market site on Cornwall Avenue and York Streets.

One of the proposed sites was the County owned (I believe) parking lot directly west of the Walton public housing site on Champion Street. After vigorous debate and discussion that included input from Council Members, the Mayor and Executive, the Lighthouse Mission executive and many concerned downtown business owners in attendance, that Champion Street parking lot site (along with MULTIPLE other downtown core sites) was REJECTED, primarily due to the close proximity to the Walton public housing. The meeting ended with the Whatcom County Health Department site (across Whatcom Creek from City Hall) as the best potential site. I understand that ultimately that site was ALSO rejected by surrounding neighborhood opposition.

The current proposed site for the low barrier shelter is now only a half block west of that PREVIOUSLY REJECTED Champion Street parking lot site. I understand there are time constraints and pressures on relocating the shelter from Bellingham High School, but I don't understand why a previously, resoundingly rejected location would be chosen for the present relocation.

From that meeting, I remember the Lighthouse Mission desiring locations that are as close to their main location on F Street as possible so they can physically provide their services. Shouldn't we be looking in the Old Town area and NOT in a struggling but recovering downtown core to relocate the low barrier shelter? Why spend millions, sign multi-year leases and damage the fragile downtown business environment (and the tax base they provide) by locating the shelter in an area already determined to be unacceptable, determined by a VERY PUBLIC PROCESS that was NOT RUSHED OR FORCED? LET'sS PLEASE NOT PANIC AND MAKE A VERY POOR DECISION! Again, I ask what is wrong with the old Sash & Door site the City owns at the foot of Holly Street, or possibly many other empty buildings in Old Town?

I look forward to hearing your thoughts, thank you for hearing mine, listening to my plea and RECONSIDER/REJECT the Cornwall and York Street location.

Sincerely,

Bill Eiford
360-739-5407

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:51 PM
To: Kerr, Monea J.
Subject: FW: Proposed low barrier shelter

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Sunday, June 14, 2020 7:34 PM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@co.whatcom.wa.us
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Ruffatto, Peter M. <pruffatto@cob.org>
Subject: RE: Proposed low barrier shelter

Elected Officials:

Please allow me to bend your ear one more time. Let me first say that I am a "government guy." I have been honored to have spent a good part of my legal career representing ports, fire districts, and even some cities all across Washington State. I have worked closely with City staff and respect their work. So, it is unnatural for me to be on the other side.

Give the citizens more than 27 hours to read and comment on documents. Give the community a week (if not two) to interact on this. The City council can continue its meeting for one week before signing the lease and sublease which will not even be available to 3:00 tomorrow. Let people read the documents and have a chance to reflect and comment. I have heard staffs of governments for years tell elected officials' words to the effect of "there is no time -you must act now and as we recommend." In my experience there is always a week or even two to consider a decision and get public input and the decision is always better for it. I am saying *"trust the people to help inform your decision".*

Understand the documents and the whole issue before you act. Several City and County council members told me that they were "unaware" and "had not seen the documents" and "thought there were several sites under consideration". I say to all of you that as elected officials (and as I have said to many elected officials of governments I have represented over the years) "it is you and not the staff to which the citizens have entrusted their government and all its power."

The Public Market is a bad location because it costs too much. The proposal for the Public Market location will negatively impact all the businesses and property owners downtown. I have been downtown since 1994 when Mayor Douglas encouraged us to buy an old dilapidated warehouse and look to the future. And, I must say the City staff and elected have worked with us to encourage the vitality of the downtown with landscaping and lighting and the Bellingham Farmers Market at the south end of Railroad.. Now it is a place where people

live in apartments and I am sure more are coming in the properties formerly occupied by the feed and seed companies. Before last week, if asked, I would tell anyone from anywhere that Bellingham had a vibrant downtown and had survived the mall of the 1980s and the Barkley development of the 2000's and was a place with a vibrant sense of place.

- The life blood of downtown are the young entrepreneurial families that give it their all and risk their finances to build these small businesses. Think of Café Adagio, the Local Restaurant, the gaming place, the chocolate place, the crepe store, the hair salons. BTC made a big commitment with the hairstyling campus on Railroad. My point is that these will be the real casualties of this decision. Coming off of Covid-19 closures they will not survive. I know this because the downtown only started to thrive after the Housing Authority built Walton Place and the anti-social behavior began to decline. I am struck that downtown Bellingham is one of the last places a young citizen can get into a business small business space. What I am trying to say is I will survive 3-4 years – these poor folks will not. What also strikes me is the somewhat caviler attitude and lack of empathy given to these peoples'(and their employees) lives on such short notice. I understand that sentiment of combining an emergency that will not last longer than six months with the desire to leverage CARES Act funds into a 3-4-year facility. But our society should bear the full cost and not pick a segment of society to bear part of the cost.

- One County Councilmember called me and said words to the effect that this was the "cheapest alternative" and "nobody wants it around them". I replied for "cheapest for who?" The true cost of this facility is the $1.5 million of federal dollars *and* the costs to all the local businesses visited upon them by this decision *and* the cost to all of Bellingham of the damage to downtown. For example only, if a temporary homeless shelter was placed in a residential neighborhood (which I certainly am not advocating) people may be inconvenienced and the anti-social behavior would be unwelcome, but they would not lose their homes or their jobs because of the behavior. In downtown, many of these small businesses and their employees will lose their livelihoods. They depend on customers choosing to go downtown for their services and dinning (as opposed to Barkley or Fairhaven). When the antisocial behavior increase the people vote with their wallets.

We must and should treat everyone, including the homeless with empathy and compassion. We all understand the need to treat the homeless with compassion and empathy. We are all better because of our empathy but that great empathy also leads to a more difficult problem . I have been interacting with this segment of the homeless population since we move our offices downtown in 1994. I try to be very polite and ask folks to pick up their mess, bought cups of coffee and told folks they could sit under our entry canopy if they promised to leave it clean (about 50% success on that). This population of homeless presents the most challenge. I have observed that it is largely a mental illness issue maybe fueled by self-medication with drugs and alcohol. But I have also seen the ugly antisocial behaviors. It is a very tough challenge that, in my view, was precipitated when large mental health facilities were closed with the promise of the federal and state governments to support community mental health and that never happened.

The Courthouse Annex and the Sah and Door Sites are superior temporary 3-4-year alternatives. The old Courthouse Annex site is owned by the County and used to have the two-story Courthouse Annex so it has water and sewer to the site and can support any structure. In 2018 the Homeless Strategies Workgroup identified that as a potential site for a **permanent drop in shelter** and the then County Executive reasonable said "no" because it would be need in the future County uses perhaps for a jail. Well now we have an emergency, mental health is a County issue, and the need is now a **temporary shelter** with no immediate

plans on the five-year horizon to use the property. It is free to the County. I understand that a lightweight fabric structure could be erected there in about 6 weeks. Our group has pledge financial support, a local contractor said it would build it at cost and Construction Supply has offered materials at cost. These structures can be dismantled and moved when the use is over. "Why not now on a temporary basis and in an emergency?" The effects of a temporary homeless shelter in that location will largely be on government property, it is near the Sheriff's office and the BPD station. Most importantly it is near the County Health Department so that appropriate resources can be close by. **I have spoken with Sheriff Elfo and he would support the location of the temporary shelter at the Courthouse Annex site**. Likewise, as previously discussed the City owned Sash and Door site could be used on a temporary basis. I have read the agreement with Northwest Recycling and they have failed to do what they said they would do. So that is not an impediment.

- Even if it took longer than six weeks there are alternatives especially as we enter summer. The Washington National Guard could provide GP medium tents (the kind our soldiers live for six weeks in during winter field exercises) on Civic Field for several months. A call to our Governor for a use of tents should be made. Or the City could rent the big white party tents (certainly there are no big parties now). The surface is suitable for cots or mattresses and it certainly could lend itself to social distancing. Civic Field will not be used this fall for football games (and if it was planned for games this is an emergency – there are other football fields in Whatcom County), it is enclosed with a fence already, has bathrooms and food service facilities. Here again it is surrounded by government owned facilities. We could then use the time to build a proper temporary structure aa the Courthouse Annex or the Sash and Door Site easily ready in a few months.

Public Market Site. If it must be the Public Market, then I have several observations:

1. People are concerned that after four years the LHM will continue to lease directly from the property owner or buy the property and then the City will say "sorry nothing we can do.".

2. Use the City's proprietary rights as a tenant and then as a landlord to require the owner (in the Lease) and the LHM (in the sublease) to commit not to use the Public Market site beyond 4 years. This is fair because the landlord is receiving rent using public money. The claim that the BMC limits this ability is inaccurate. The BMC is on the regulatory side of government The City also acts in a proprietary capacity (for example when it rents space out for businesses in the Parkaide). After all the City and County are using $1.5 million of public money.

3. To assure the public make the business owners and property owners within 500 feet of the Public Market "third-party" beneficiaries of this promise to vacate ant the end of the lease and not use it as a homeless shelter again without a right to sue for damages but with a right to seek injunctive court relief. It is common to have a promise on future use as a condition of agreeing to lease a property or imposing a limitation on future use by a tenant as a condition of getting a lease. Airports all over this country have entered into agreements with their neighbors. This will provide the needed trust and show that the City really does mean what it says – no more than 4 years.

4. Build an infrastructure that includes a committee made up of representatives of local business, the City council, the County council, the LHM, the police and mental health folks. They should meet often and review problems and concerns. Information would flow and transparency would ensue. Moreover, the solutions would be community based.

5. Require the LHM to take responsibility for off-site impacts of its operations. Require the LHM to utilize "adaptive management" for the effects outside their facility. Provide a sublease provision which allows the City Council to require additional mitigation if it becomes necessary. Fundamentally, governments always seek to make a landowner or business responsible for its impacts both on and off its property (park impact fees, storm water fees, traffic concurrency fees). As the situation changes so does the management strategy. After all, this is $1.5 million in public money.

6. Do not put the police into the enforcement business with the homeless. The FAQ put out by the City says the police will enforce the no sitting or lying down on City rights of way. Offering to use the police to keep homeless folks from siting or sleeping on City streets is counter to the long overdue national discussion on policing and has proven ineffective. This leads to two frequent outcomes - the police take no action and profess to have no authority to act (the usual outcome) or the situation escalates. This is unfair to put the police in this situation and unfair to the homeless population that is (usually as a result of mental health issues) engaging in anti-social or destructive behavior. This is not a law breaker problem. It is a mental health problem for which empathy and treatment is needed. The City and County should step up and fund a group of mentally heath trained folks to act like the old "beat cops". They can be walking the Downtown every day and night and interact with the businesses, the community and the homeless. These folks can always call the police if things start to escalate. Let's decriminalize this. Sure, it would cost money but how much is the Downtown worth?.

In closing I think one of the primary principles of government should always be "do no harm".

Respectfully,

Frank Chmelik

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Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:50 PM
To: Kerr, Monea J.
Subject: FW: Bellingham Sportsplex

From: joel litwin <joel@redcandle.net>
Sent: Sunday, June 14, 2020 1:25 PM
To: CC - Shared Department <cc@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Bellingham Sportsplex

Dear Mayor Fleetwood and City Councilmembers Stone, Hammill, Anderson, Huthman, Knutson, Vargas & Lilliquist,

It has come to my attention that you are considering repurposing the Bellingham Sportsplex facility as a homeless shelter. Is this true? If it's not true, please accept my apologies and disregard this letter. But if it IS true, please read on for some of my thoughts on the matter.

While I understand the need for expanding the homeless facilities in town, especially in light of the recent social distancing guidelines, I would urge you to pursue options other than the Sportsplex, like the former Terra Organica building, for example. Here's why the Sportsplex is so important in its current capacity:

- The Sportsplex receives an estimated 600,000 visitors annually, according to former Whatcom Sports & Recreation Director Lance Calloway. This is an incredible amount of patronage, and I'd be hard pressed to think of another Bellingham facility with anywhere near that amount of visitors each year.

- Thanks to the tireless work of current Director Marc Ronney & staff, the Sportsplex is a beloved treasure here in Whatcom County for thousands of recreationalists, parents, friends, groups, and people of all demographics & beliefs.

- The Sportsplex is a jewel of the community. I personally have been a member for the past 6 years and have been consistently frequenting it 2-4 times a week up until the shutdown.

- The Sportsplex is critical to the well-being of the community. Not just the physical well-being of its inhabitants, but also the mental and psychological well-being, which are likely even more important. A few quotes I've heard from fellow members include:

> "The Sportsplex is my anti-depression medicine."
>
> "So many rely on [the Sportsplex] for recreation, community, and their SANITY."

- The Sportsplex promotes community, friendship, teamwork, learning to work together, leadership, communication and so much more. It encourages personal growth and, of course, contributes to health and fitness, in an age where we desperately need both.

- In this time of divisiveness and polarization, the Sportsplex is an oasis of camaraderie and welcoming. We all look out for each other and care about each other. Division 4 hockey, which I can personally speak to from experience, is a perfect example of this. All are welcomed with open arms, regardless of abilities, beliefs, backgrounds, etc. We help each other, protect each other, encourage and challenge each other, and build long-lasting friendships and bonds. It's been a beautiful and life-changing experience for me, and I know for so many others.

- Every week on the ice, I was meeting people from all over the region: Canada, Anacortes, San Juan Islands, Oak Harbor, etc. The Sportsplex is the only US ice rink north of Everett, and enjoys a wide-ranging geographic patronage.

- The Sportsplex, as a hockey and skating facility, is in a perfect position to reap the benefits of the imminent roll-out of Seattle's new professional hockey franchise. It was shown in the case of Las Vegas that the region's hockey interest and participation skyrocketed upon the arrival of the Golden Knights.

- While I realize that many people in positions of power think of recreational and leisure activities as "non-essential," and "frivolous," I very much beg to differ. I believe that recreational and leisure pursuits are the very things that make life worth living. We were not put on this earth solely to Work, in my opinion. I think we can learn from the recent pandemic and associated lockdown, where cases of depression, anxiety, suicide attempts, and domestic violence have spiked, in the midst of closure of recreation, sports and opportunities to gather and congregate.

These are just some of my thoughts – I have more, but I wanted to spare you! I appreciate your time and willingness to listen and consider. If you need more convincing, I stand by, ready to mobilize a very-willing taskforce to gather signatures to keep the Sportsplex operational as a valuable recreational and sports facility here in our beloved Bellingham and Whatcom County.

Again, I urge you to retain the Sportsplex as the wonderful community treasure that it is, and to support it and help it grow in this time of great need and opportunity.

And I urge you to look elsewhere to meet the important needs of sheltering the homeless and needy in our community.

Thank you,

Sincerely,

Joel Litwin
Citizen of Bellingham

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:49 PM
To: Kerr, Monea J.
Subject: FW: I Want You To Succeed

From: John and Janet Crews <jjcrews@me.com>
Sent: Sunday, June 14, 2020 9:12 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Sundin, Tara J. <tsundin@cob.org>
Subject: I Want You To Succeed

Dear Mayor Fleetwood, and Tara,

As a former Bellingham school teacher at Lowell Elementary, my goal for my kids was to do everything I could to help them succeed. An important part of their learning was being willing to listen to their fellow students input on projects and reports. Sometimes the input proved to be helpful, sometimes not, but the goal was to teach the hard task of being open minded and willing to listen to others; to see their project or report through “fresh eyes" and respect their fellow students input and know (most of the time) it was coming from trying to be helpful.

Seth and Tara, you are currently at a critical crossroads. You have both worked long and hard to find what you feel is the “only” solution to our temporary low barrier shelter. I know it is hard to relinquish your stand after all the time, effort and stress that you have put into this difficult project.
But, I now ask you to step back and see what an amazing thing is happening here. You have awakened the community (your fellow classmates) and they are giving you valuable input to help make your project a HUGE success if you will open your eyes and heart, and listen. Your community is not fighting you, they are trying to help both of you succeed. Everyone wants to provide a temporary safe, clean, secure shelter for the homeless, no one is fighting you on that. It seems to me, what your community is asking of you is to consider a more conscientious and dignified spot to live for our homeless folks, surrounded by trees, and a park, not blacktop and traffic, as in the County owned lot north of the courthouse. The community even wants to help get it built quickly and efficiently and is offering you their experience and services and even extra financial support. Remember this is just a temporary shelter, so even if this spot was not suitable for a permanent spot, it could certainly be used temporarily with your ability “to make it happen” as a Covid-19 need.

As I see it, you can now stand before the class, your community. and be willing to change course, to be open minded, and listen. Their input might truly be a better way. You have the time to postpone Tuesday’s decision and really evaluate what is truly best for your community and still get the job done.

I want you both to succeed, I want you to be remembered as the two people that found a healthy, dignified temporary shelter for our homeless neighbor’s needs and who are also remembered for being responsible for bringing back a thriving downtown business district after the worst pandemic in our history. This can be a huge win for our whole class (community) if you are both willing to possibly change course and make it happen.

With great respect and sincerity,
Janet Crews

"If the upcoming decision-making process is going to take into account the mental health aspects of a shelter's location, which it should, it is very clear that the lot north of the courthouse is vastly superior to the Public Market site. There are numerous research studies which show that being near nature and greenery has a very positive affect on mental health and depression. The Courthouse Annex site is surrounded by trees on three sides, and there are tree-lined pathways that lead down to Maritime Heritage Park. The Public Market site offers blacktop, busy streets, and alleyways. If any consideration is going to be given to the mental welfare of the people using this shelter, there is no question that the Courthouse Annex site is a vastly superior choice.

In order to aid in this process, the community is offering support to the City in the forms of a prominent local construction company offering to build a temporary shelter within the needed time-frame at no markup, building suppliers who have offered to supply materials at their cost, engineering firms who have offered to supply the needed work at no costs, and our working group has offered to pitch in $50,000 of private money to help fund the project. Since the sites we are proposing are government-owned, there would be no leasing costs to the City."
John Crews

"

Seth,these quotes are taken from your wonderful campaign website:

“Thoughtful. Trusted. Experienced"

“In these challenging times there is nothing that provides me a greater sense of purpose than expressing an inspired, hopeful, and achievable vision for the future of my hometown”

“In addition to hes exceptional resume, Fleetwood possesses an essential leadership quality: the ability to engage respectfully with people of diverse opinions and find common ground” Alan Rhodes Cascade Weekly

Janet

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:49 PM
To: Kerr, Monea J.
Subject: FW: Public Comment for Bellingham City Council Meeting on June 8, 2020

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Saturday, June 13, 2020 3:38 PM
To: Ruffatto, Peter M. <pruffatto@cob.org>
Cc: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; Fleetwood, Seth M. <smfleetwood@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Marriner, Alan A. <amarriner@cob.org>; Heinrich, Brian M. <bmheinrich@cob.org>; Sundin, Tara J. <tsundin@cob.org>; council@co.whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>; ssidhu@whatcom.wa.us
Subject: Re: Public Comment for Bellingham City Council Meeting on June 8, 2020

Thanks Peter.

If the decision has

Frank Chmelik
Sent from IPhone
Chmelik Sitkin & Davis, PS
360-671-1796

On Jun 13, 2020, at 10:45 AM, Ruffatto, Peter M. <pruffatto@cob.org> wrote:

To City Council Members and Mayor Fleetwood:

This email is intended to clarify a few things, from the perspective of the City Attorney's Office, regarding the points raised in Mr. Chmelik's email message:

1. The City Council agenda packet is being developed at this time, and it will be ready no later than the end of the day on Monday prior to the special meeting on Tuesday. The lease, in particular, is still being revised as of this moment. I hope to have a final version ready for the packet early on Monday. Once I know I have the final version, I will provide it to Council and mayor Fleetwood via email, with a copy to Mr. Chmelik. One term that has been consistent throughout the negotiation of the lease is that the primary term of the lease is 3 years with an option to renew for one year. There has never been any intention by either party to extend the duration beyond four years. The goal is 3 years.

2. Regarding the sublease, it is in the very early stages of development. We will consider the points raised by Mr. Chmelik regarding the sublease. On Tuesday, I will ask, on behalf of the Administration, to approve the essential elements of a sublease with Lighthouse Mission Industries. The document will not be ready for the packet. The approval requested will be as to essential terms due to time constraints.

3. I am also working on a memorandum covering the basic terms of the lease and sublease that will be included in the agenda packet.

Please do not reply all to this email, but feel free to call me directly if you have any questions.

Regards,

Peter M. Ruffatto
City Attorney
210 Lottie Street
Bellingham, WA 98225
360 778-8276
pruffatto@cob.org

Subject to public disclosure under RCW 42.56, the preceding message may be protected by attorney-client or other privilege and should be treated as confidential. If you believe it was sent to you in error, please delete it. Thank you.

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Saturday, June 13, 2020 5:41 AM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Ruffatto, Peter M. <pruffatto@cob.org>; Marriner, Alan A. <amarriner@cob.org>
Subject: RE: Public Comment for Bellingham City Council Meeting on June 8, 2020

This press release does not provide the level of detail needed to reassure the public and Downtown that this proposal will not cause material harm to the City important Downtown asset. Since we have not seen the lease between the City and the Landlord or the Sublease between the City and the Lighthouse Mission there is no way to know. Here are a few observations.

1. **The City Proposal to Issue a Temporary Building Encampment permit**: The City is going to *lease* the property from the landowner for three years with an option for a 4th year and then install about $1 million in improvements using CARES Act dollars. Then the City will *sublease* to the Lighthouse Mission and provide a permit for a Temporary Building Encampment under Bellingham Municipal Code 20.15.030. The duration of one of these is no more than five years (BMC 20.15.060). By subleasing to the Lighthouse Mission, a religious organization, the City has limited its regulatory authority because of state law (RCW 35A.21.360 pertaining to temporary encampments on property owned or controlled by a religious organization. The sublease is the "control".

2. **14-day Comment Period on Temporary Building Encampment Permit**. The City Planning Director can put conditions on the permit after a 14-day comment period. The conditions are limited because state law makes these permits available to religious based organizations with limited conditions (RCW 35A.21.360)

3. **What is Not Being Explained in the Press Release about a Permanent Shelter**. The City as the ability in its lease with the owner and its sublease with the Lighthouse Mission to put whatever conditions it wants to protect downtown. This is separate and apart from the City role as regulator under the Bellingham Municipal Code. This is appropriate since public money is being used and the Downtown is being assured that this is no more than a four-year facility. The City wants to be transparent with the Downtown and has assured the Downtown that it will only have to bear this burden for four years. Keep in mind this was a vacant building and the City is using public funds to pay the Landlord and public funds to provide the improvements for the Light House Mission. Here are needed conditions to keep this a temporary shelter as promised by the City:

    - *In the Lease with the Owner*, require that after four years the property can never be again used as a facility serving the homeless population.

    - *In the sublease with the Lighthouse Mission*, require that the Lighthouse Mission apply for an Interim Housing permit under BMB 20.15A.015) instead of a Temporary Building Encampment Permit

    - *In the sublease with the Light House Mission*, preclude the Lighthouse Mission from ever leasing directly from the building owner or buying the building after 4 years. This also would prevent the shelter from becoming a permanent shelter.

    - *In the sublease with the Light House Mission,* require the improvements be removed at the end of the four-year term.

4. **What is Not Being Explained in the Press Release About Lease Conditions**. The City has two roles here. First it is the landlord of the Light House Mission. Second it is the regulatory of the City codes. The City has correctly explained the limitations of the permit conditions it will issue under the Temporary Building Encampment Permit. But the City could impose conditions of operations as the Landlord of the Light House Mission. The City is the Landlord for businesses over at the Parkcade and knows how to put restrictions in leases. The City could, for example:

    - *In the sublease with the Lighthouse Mission,* allow that the City can impose additional reasonable conditions on operations if the City Council so decides. After a public hearing, to address consequences of the shelter. This will allow the City to maintain the ability to "adaptively manage" the situation based upon what really happens.

    - *In the sublease with the Lighthouse Mission* , require the Light House Mission to provide a daily morning patrol to wash away urine, collect human and dog feces,

collect used needles and collect trash and clothing in a reasonable radius around the shelter with the size of the radius expandable by the City of the need reasonable arises. There has been a problem with all these issues.

- *In the sublease with the Lighthouse Mission* , require that any food distributed be eaten on the site. There is a problem with homeless being provided food and then discarding unused food and the containers around downtown. This will also prevent food wasting.

- *In the sublease with the Lighthouse Mission,* require the Lighthouse Mission to have someone trained to respond to the complains about the Homeless. If the past few weeks have shown us anything in this country, it is unfair to ask the Police to act on these social issues. We have excellent police officers and an excellent Police Department. The police may not be the best resource to respond to non-criminal issues. Indeed, they could co-respond. One police officer and one Lighthouse Mission counselor.

The bottom line is that the Lighthouse Mission should bear the cost of the impacts it creates in the Downtown. This is a basic principle of land use that the City applies to everyone else. Watch the lease and sublease carefully and see if there are controls. In particular, ask if the Lighthouse mission has agreed not to enter into a follow-on lease or a purchase of the property. Since this is all public money the City can and should limit this to just four years.

Having said that, there are better sites where these issues would not arise. The Courthouse Annex and the Sash and Door sites are government owned and so the length of its use as a shelter can easily be controlled. The Courthouse Annex and Sash and Door sites are situated such that the shelter will have little or no impact on surrounding private property because it is government owned or industrial.

Fair is fair. The problem with secrecy is not only do you lose the trust of the citizens but you also use the benefit of the creativity and experience that the citizens can bring to the table in helping to find a solution to any government problem. The City should above all 'Trust the people".

Respectfully

Frank Chmelik

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Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:49 PM
To: Kerr, Monea J.
Subject: FW: Lets Get Real Barrier Homless Shelter

From: Ken Reinschmidt <ken@saratogacom.com>
Sent: Saturday, June 13, 2020 1:54 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: FW: Lets Get Real Barrier Homless Shelter

Dear Mayor Fleetwood,
I very much appreciate the complexity of challenges faced by the homeless and the difficulty in finding good solutions being that there is no regional or national policy being discussed to address this very real problem. I also appreciate how the City is making this a priority and working very, very hard for a solution. I will just say that you could put more trust our citizens to be part of the discussion early on and how much energy could be mobilized behind a common goal. I will step off my soap box now and do what the business community does best. We get practical and we get real and we solve problems.

I am going to take a realistic view that currrent course of action will not change. I must say that I walked the county property by the courthouse and it is beautiful and serene in the middle of the city hub bub. It is far more dignified than asphalt and concrete. But being practical, I suspect there is a 99% chance we will have a lob barrier shelter in the Public Market building.

Practical Point 1. The City is doing a good job presenting their thoughtful approach and acknowledge there may be some problems. I strongly feel future problems and challenges are being was underestimated this. History shows that when services are downtown, we have large numbers of people on the street. It really makes sense when you think about it. People are people. We spend most of our waking hours in the pursuit of making a living to provide for our necessities and comforts. It is realistic to predict that 100 people staying overnight in a shelter will not want to sit around in a fenced asphalt yard all day. They are going to go out and about and take care of their business.

Practical Point 2. Mr. Mayor, you mention that the City may need to address the perception of a future related problems downtown. You are absolutely correct that there will be a perception. The City has already established that this perception turns into very real challenges. The City has done a great job and worked very hard with businesses in the downtown core in a collaborative and successful effort to make downtown a vibrant place. It is more vibrant now than any time in recent memory. I have lived in Bellingham since 1988. The City commissioned extensive surveys to find barriers to the general population embracing and visiting downtown. The top two results have always been safety and parking. Safety concerns in the survey translated to perception of safety being diminished by people on the streets. There is a very real connection that more people hanging out on the streets causes lower business traffic and more difficulty keeping business healthy. I have personally been involved with trying to overcome these perceptions and realities and keeping several large office users and retailers from moving out of downtown. I was not successful.

Practical Point 3. Real contingencies with details need to be put in place as part of this plan. Show the citizens of Bellingham this commitment with significant budget items in the plan. Everyone in Bellingham wants a solution and everyone needs to chip in. I have two such ideas.

a) Bellingham can lead the nation during this time of cultural upheaval. Replace one or two headcounts in the police department with response team of counselors. Pair a police officer with a counselor as a safety back-up but not in a lead role. I suspect these teams will be kept busy all the time and the response and outcome will be much improved on how these call-outs are handled today.
b) We need to realistically anticipate that some businesses will see significant harm and may collapse under this burden. Many small family businesses are truly struggling as a result of this COVID crisis. I feel strongly that funds need to be budgeted and made available for small businesses that qualify for relief if they are significantly impacted from the low barrier shelter being located downtown.

Thank you for reading my email. I will be tuning into the upcoming meeting.

-Ken

From: Huthman, Hollie A. <hahuthman@cob.org>
Sent: Saturday, June 13, 2020 12:38 PM
To: Ken Reinschmidt ken@saratogacom.com
Subject: Re: Low Barrier Homless Shelter

Ken,

Thank you so much for writing in with your perspective. We'll have a much more thorough discussion about the location and why it was chosen (and others weren't) on Tuesday night at 6:00 during our special meeting. The meeting information will be updated at the site below under the "Upcoming" tab. There will also be an option to sign up to comment during the meeting, if you'd like.

https://meetings.cob.org/

Hollie Huthman

Bellingham City Council At-Large

she/her/hers

(360) 778-8216

hahuthman@cob.org

Note: My incoming and outgoing e-mail messages are subject to public disclosure requirements per RCW 42.56

From: Ken Reinschmidt <ken@saratogacom.com>
Sent: Tuesday, June 9, 2020 8:54 PM
To: Huthman, Hollie A. <hahuthman@cob.org>
Subject: FW: Low Barrier Homless Shelter

Dear City Council Member Huthman,

I am writing to express concern and shock that the City has been working with the Lighthouse Mission to place a low barrier shelter at 1522 Cornwall. My concern and shock is because there has been no public process, and in fact the Mayor and staff sought secrecy from the public in their zeal to make this happen. I spoke with eye witnesses who observed our Mayor and his staff imploring private citizens to keep this matter secret. Is that even legal? At the very least I think a secret process such as this is un-American and against everything our country stands for.

As the City and County consider their shared cost of this shelter there are many more costs to be considered than just the direct costs of the lease (or, the alternative cost of installing temporary buildings at the City owned property at 600 W. Holly -- the old "Sash and Door " site -- which was found to be "more expensive"). I am very confident that the loss in property values, business revenues, business closures, and lost jobs will far exceed the current investment of $1.5 million by the City and the County. I owned and managed Saratoga Commercial Real Estate for over 15 years and am proud of the role I played helping to re-vitalize Railroad Avenue since 2005. I have personal experience managing downtown property and dealing with the enormous burden and impact of the homeless on business. How can the City and County justify placing this burden on a small number of citizens who are unfortunate enough to own property or operate businesses near 1522 Cornwall? If this cause is for the greater good, everyone should bear the burden, not just a few of our citizens, and that cost should be considered. I suspect that part of the motivation to keep this secret is that City and County councils and staff wish to distance themselves from the future negative outfall of loss of businesses and vibrancy in our downtown core. Downtown business owners, professionals who work downtown, and property owners will definitely feel betrayed by our leaders.

Why does the City keep taking the City-owned property at 600 W Holly off the table for consideration? The most recent excuse is that the Parberry family has a development option for the site. Really? The Parberry's have no track record in successful re-development. I would say they have the opposite record as demonstrated by their decaying buildings. I have seen absolutely nothing happening at 600 W Cornwall and suspect the Parberry option is in default for lack of performance, and that the City is using this supposed agreement to keep the unlikely dream of an "urban village" at that site. Before we sacrifice the vibrancy of downtown, 600 W Holly needs to be seriously considered for the homeless shelter for the following reasons.

1. It is zoned industrial and has been for a very long time and there will be far less negative economic impact.
2. Nothing is happening there; most probably Parberry has not performed on their option contract.
3. There are fewer business and residences that adjoin this site.
4. There are viable large structures available that can rapidly be constructed for temporary use, or FEMA style structures can be mobilized onto the site for temporary or permanent housing.
6. 600 W Holly actually meets the criteria that the homeless shelter needs to be located near the Lighthouse Mission.

I will repeat myself, why is 600 W Holly NOT receiving serious consideration for temporary homeless shelter? This is the sort of question that should be given serious consideration and debate in a public format – not in secrecy.

This secret process has kept public input from reaching government leaders such as yourselves and it also keeps the good ideas that are formulated by the City from reaching the public. For instance, good design features for homeless shelter are probably being considered, such as abundant bathrooms, screening fences, on site courtyard, etc. The public has no information about such things. We are all in the dark on this and it is more than frustrating, especially since our financial futures are also on the line.

I look forward to your reply addressing my concerns.

Best Regards,

Ken Reinschmidt

Downtown Business Operator, property owner, and passionate advocate for downtown Bellingham

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:49 PM
To: Kerr, Monea J.
Subject: FW: Homeless shelter relocation

From: Jessica Ellis <ellis.jessica@gmail.com>
Sent: Saturday, June 13, 2020 12:04 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Homeless shelter relocation

Hi - I just wanted to express my support for the city as it searches for a new location for the lighthouse mission. Thank you for helping keep our unsheltered brothers and sisters safe!!! The public market sounds like a great location.

Best,
Jessie Ellis
Bellingham resident

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:48 PM
To: Kerr, Monea J.
Subject: FW: Public Comment for Bellingham City Council Meeting on June 8, 2020
Attachments: FAQs updated 6.12.20finalEOD.pdf

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Saturday, June 13, 2020 5:41 AM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Ruffatto, Peter M. <pruffatto@cob.org>; Marriner, Alan A. <amarriner@cob.org>
Subject: RE: Public Comment for Bellingham City Council Meeting on June 8, 2020

This press release does not provide the level of detail needed to reassure the public and Downtown that this proposal will not cause material harm to the City important Downtown asset. Since we have not seen the lease between the City and the Landlord or the Sublease between the City and the Lighthouse Mission there is no way to know. Here are a few observations.

1. **The City Proposal to Issue a Temporary Building Encampment permit**: The City is going to *lease* the property from the landowner for three years with an option for a 4th year and then install about $1 million in improvements using CARES Act dollars. Then the City will *sublease* to the Lighthouse Mission and provide a permit for a Temporary Building Encampment under Bellingham Municipal Code 20.15.030. The duration of one of these is no more than five years (BMC 20.15.060). By subleasing to the Lighthouse Mission, a religious organization, the City has limited its regulatory authority because of state law (RCW 35A.21.360 pertaining to temporary encampments on property owned or controlled by a religious organization. The sublease is the "control".

2. **14-day Comment Period on Temporary Building Encampment Permit**. The City Planning Director can put conditions on the permit after a 14-day comment period. The conditions are limited because state law makes these permits available to religious based organizations with limited conditions (RCW 35A.21.360)

3. **What is Not Being Explained in the Press Release about a Permanent Shelter**. The City as the ability in its lease with the owner and its sublease with the Lighthouse Mission to put whatever conditions it wants to protect downtown. This is separate and apart from the City role as regulator under the Bellingham Municipal Code. This is appropriate since public money is being used and the Downtown is being assured that this is no more than a four-year facility. The City wants to be transparent with the Downtown and has assured the Downtown that it will only have to bear this burden for four years. Keep in mind this was a vacant building and the City is using public funds to pay the Landlord

and public funds to provide the improvements for the Light House Mission. Here are needed conditions to keep this a temporary shelter as promised by the City:

- *In the Lease with the Owner*, require that after four years the property can never be again used as a facility serving the homeless population.

- *In the sublease with the Lighthouse Mission*, require that the Lighthouse Mission apply for an Interim Housing permit under BMB 20.15A.015) instead of a Temporary Building Encampment Permit

- *In the sublease with the Light House Mission*, preclude the Lighthouse Mission from ever leasing directly from the building owner or buying the building after 4 years. This also would prevent the shelter from becoming a permanent shelter.

- *In the sublease with the Light House Mission,* require the improvements be removed at the end of the four-year term.

4. **What is Not Being Explained in the Press Release About Lease Conditions**. The City has two roles here. First it is the landlord of the Light House Mission. Second it is the regulatory of the City codes. The City has correctly explained the limitations of the permit conditions it will issue under the Temporary Building Encampment Permit. But the City could impose conditions of operations as the Landlord of the Light House Mission. The City is the Landlord for businesses over at the Parkcade and knows how to put restrictions in leases. The City could, for example:

   - *In the sublease with the Lighthouse Mission,* allow that the City can impose additional reasonable conditions on operations if the City Council so decides. After a public hearing, to address consequences of the shelter. This will allow the City to maintain the ability to "adaptively manage" the situation based upon what really happens.

   - *In the sublease with the Lighthouse Mission* , require the Light House Mission to provide a daily morning patrol to wash away urine, collect human and dog feces, collect used needles and collect trash and clothing in a reasonable radius around the shelter with the size of the radius expandable by the City of the need reasonable arises. There has been a problem with all these issues.

   - *In the sublease with the Lighthouse Mission* , require that any food distributed be eaten on the site. There is a problem with homeless being provided food and then discarding unused food and the containers around downtown. This will also prevent food wasting.

   - *In the sublease with the Lighthouse Mission,* require the Lighthouse Mission to have someone trained to respond to the complains about the Homeless. If the past few weeks have shown us anything in this country, it is unfair to ask the Police to act on these social issues. We have excellent police officers and an excellent Police Department. The police may not be the best resource to respond to non-criminal issues. Indeed, they could co-respond. One police officer and one Lighthouse Mission counselor.

The bottom line is that the Lighthouse Mission should bear the cost of the impacts it creates in the Downtown. This is a basic principle of land use that the City applies to everyone else. Watch the lease and

sublease carefully and see if there are controls. In particular, ask if the Lighthouse mission has agreed not to enter into a follow-on lease or a purchase of the property. Since this is all public money the City can and should limit this to just four years.

Having said that, there are better sites where these issues would not arise. The Courthouse Annex and the Sash and Door sites are government owned and so the length of its use as a shelter can easily be controlled. The Courthouse Annex and Sash and Door sites are situated such that the shelter will have little or no impact on surrounding private property because it is government owned or industrial.

Fair is fair. The problem with secrecy is not only do you lose the trust of the citizens but you also use the benefit of the creativity and experience that the citizens can bring to the table in helping to find a solution to any government problem. The City should above all 'Trust the people".

Respectfully

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:48 PM
To: Kerr, Monea J.
Subject: FW: Low barrier shelter

From: Sophie Williams <sophie@ravenbreads.com>
Sent: Saturday, June 13, 2020 6:24 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Low barrier shelter

Dear Mayor Fleetwood,
I'm a Bellingham resident and the owner of a small business operating downtown. I'm considering expansion into the building next to the Public Market, and in that context I want to state my support for the low barrier emergency shelter. I don't know how the shelter's move will change business in the area, and hope that the city, LMM, the shelter's guests, and the downtown business community will find ways to mitigate any negative impacts, but ultimately making sure everyone in our community has a safe and healthy space to stay needs to be our first priority.

Sophie Williams
She | Her
Owner | Raven Breads

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:48 PM
To: Kerr, Monea J.
Subject: FW: I support the public market drop in shelter!

From: Jason Heck <jason.b.heck@gmail.com>
Sent: Friday, June 12, 2020 6:35 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: I support the public market drop in shelter!

Hi Mayor Seth,

Keep powering forward! I think it's a great use of the space.

Let me know if I can help in any way.

- Jason

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:47 PM
To: Kerr, Monea J.
Subject: FW: Proposed Low-Barrier Shelter location
Attachments: Response to Chmelik email.pdf

From: Kevin <kevin@nwrecycling.com>
Sent: Friday, June 12, 2020 4:12 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>
Subject: Proposed Low-Barrier Shelter location

Dear Mayor Fleetwood and City Council Members:
Attached please find our response to North Downtown Property and Business Owners Work Group email referencing Northwest Recycling. We know how difficult it is to site a low-barrier shelter, even temporarily, and are appreciative of careful and thorough way in which the city staff have approached this topic. Feel free to contact me if you have any questions about the content of my letter.

Regards, Kevin

Kevin Moore, CEO
Northwest Recycling, Inc.
1280 D Street
Bellingham, WA 98225
kevin@nwrecycling.com
Phone: (360) 733-0100
Cell: (360) 224-4038

PARBERRY'S, INC.
PO BOX R • 1419 C Street • Bellingham, WA 98227 • **tel** 360.734.2340 • **fax** 360.734.5240

June 12, 2020

Mayor Seth Fleetwood
Bellingham City Council Members

Re: Proposed Low-Barrier Shelter on Cornwall Avenue

Dear Mayor and Council Members:

We are all aware of the impact that COVID-19 has had on our local economy and businesses. We have also seen the disproportionate impact on the socially marginalized, particularly the homeless population.

Having personally engaged in many conversations over the last three years about how to care for this segment of our population, I believe it is important to keep the big picture in mind. This need is not going away anytime soon. The realities of COVID-19 and social distancing have made it impossible to return to the prior location. The proposal before the City Council is a temporary solution just like the existing low-barrier shelter located at 1103 West Holly Street is temporary. The city finds itself in the tenuous situation of trying to keep the business community happy while providing essential, life sustaining services to its citizens.

With that in mind, I would like to address some of the comments made recently by a spokesperson for the North Downtown Property and Business Owners Working Group. Specifically, this individual calls into question the legitimacy of the Development Agreement entered into by the City and the Parberry family, calling it a "questionable city deal." Nothing could be further from the truth.

The agreement between the City and the Parberry's was signed in February 2019 after considerable negotiation between the parties. The resultant agreement is something the City, our fellow citizens and the Parberry's can be proud of. The basic premise of the agreement is for Parberry to relocate its recycling operations so Old Town can be developed into a vibrant, thriving neighborhood. As you know, this is the only undeveloped Urban Village in Bellingham. It will bring desperately needed affordable housing to our city as well as critical retail and commercial activities. It is the essential connection between downtown and the waterfront.

The spokesperson is also incorrect in his assertion that Northwest Recycling is currently in violation of the agreement because we have not met certain milestones. As background, these milestones were mutually agreed to based on market conditions at the time of the agreement. The parties understood that circumstances might cause the need to delay the milestones and provided language to accommodate requests for more time. In fact, it specifically states that such requests shall not be unreasonably denied. In October 2019, Parberry requested a six-month extension to milestones 1 and 2. This was primarily due to the unforeseen reality that the city's zoning language was inadequate as it relates to locating a material recovery facility on industrial zoned property in the City. Working closely with city staff, we were able to update the code to allow such a use.

More recently, due to Covid and other market realities, we requested an additional 90-day extension and we expect this to be approved in the next week so we continue to be in full compliance with all provisions of the agreement.

Granting an option to the Parberry family to purchase the 600 West Holly Street property was not an insignificant element of the negotiation. It was critical to the Parberry's that we were able to control what got developed here, the "front door" to Old Town. We agreed to pay fair market value and the City granted this option, along with the commitment to infrastructure improvements, as an inducement for the Parberry family to enter into the agreement. In exchange, the City is benefiting by having this valuable piece of property developed in accordance with its long-term vision for growth and affordable housing.

The language in the agreement prohibiting a temporary or permanent low-barrier shelter on the site had little to do with not wanting this in our back yard. We already have the Lighthouse Mission, Agape House and the existing drop-in center as neighbors. We have a good, ongoing, working relationship with Hans and the Mission. However, both the Parberry's and the City acknowledged that it would be difficult to attract investors to develop Old Town should the property be bordered to the North and the South by such uses. We also want to protect the ability to develop this parcel at an earlier date and have rejected numerous other proposed interim uses. We fully expect to exercise our option on this parcel.

While it may appear to the casual observer that there has been little progress by the Parberry family, let me point out just a few of the actions that have been taken in the past year to prepare for the development of Old Town:

- Parberry has developed a marketing plan for Old Town.
- Parberry engaged RMC to develop a proposed design for the core blocks in Old Town.
- Parberry has identified, evaluated and conducted due diligence on more than eight industrial properties located in the city and adjacent areas, including Port property.
- Brad Parberry has purchased the Territorial Courthouse, the oldest brick building in Washington. The ground up restoration is nearly complete. This building will be the home of the Helen Loggie Museum and will be a visual focal point in Old Town.
- Parberry has purchased 707 Astor from the City for future redevelopment.
- Parberry has completed a structural analysis of 700 West Holly Street and has engaged an architect to create a workable design for this building. We will have 11 rental units on the upper floor and commercial uses on the street level. It is expected that a building permit will be submitted in the coming 60 days.
- Parberry has terminated the third-party lease at 1401 E Street and vacated the house at 1413 E Street in anticipation of raising those structures. These two properties, in combination with 900 West Holly Street are likely to be the first properties available for the construction of affordable housing units.
- Parberry has met with local and national developers, brokers and end-users to assess their interest and to understand the economic parameters for redevelopment.
- Parberry, in partnership with the City, has completed a zoning code update to accommodate its use in Bellingham.
- Parberry has participated in a joint task force with the City and the Lighthouse Mission to evaluate options for siting its current and future operations.
- Parberry has ceased its scrap car processing operation and has begun clean-up of its scrap yard footprint.

- Parberry has met with numerous affordable housing developers and individual citizens to better inform our development strategy.

This is not a complete list but certainly is a strong indication of our commitment to redeveloping Old Town and to create something that we can all be proud of.

I would welcome any comments and further questions about what we are doing in Old Town.

Respectfully,

Kevin Moore, CEO

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:46 PM
To: Kerr, Monea J.
Subject: FW: Houseless drop-in center: Terra Organica is a stopgap, but not final solution

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From: Simon Bakke <simonbakk3@gmail.com>
Sent: Friday, June 12, 2020 2:27 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Houseless drop-in center: Terra Organica is a stopgap, but not final solution

Hello Mayor Fleetwood,

As you know, the socially distanced homeless drop in center at Bellingham High School has to move to prepare for school. The currently empty marketplace on Cornwall, Terra Organica, could serve as a good temporary place for houseless community members to safely stay as we work to curb COVID during this reopening phase. We must be very careful as we open the town back up, and this location is large enough to house people safely.

However, it's vital that we use this summer and fall to invest in longer-term solutions — especially tiny home villages. These could permanently ease the load on large-scale sheltering models, which are risky during a pandemic and not inclusive of homeless folks who are LGBTQ, non-Christian, or other groups that aren't safely served by Lighthouse Mission's values.

Thanks for your time and service,
Simon Bakke
501 12th St, Bellingham

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:45 PM
To: Kerr, Monea J.
Subject: FW: Letter of Support from PeaceHealth for new Drop-In Center location
Attachments: letter of support COB.pdf

From: Sundin, Tara J. <tsundin@cob.org>
Sent: Friday, June 12, 2020 8:51 AM
To: Grp.CC <Grp.CC@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: FW: Letter of Support from PeaceHealth for new Drop-In Center location

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From: Lucy, Rachel <RCecka@peacehealth.org>
Sent: Friday, June 12, 2020 8:30 AM
To: Sundin, Tara J. <tsundin@cob.org>; Lutz, Samya L. <slklutz@cob.org>
Cc: Prosper, Charles J <CProsper@peacehealth.org>
Subject: Letter of Support from PeaceHealth for new Drop-In Center location

Dear Tara & Samya,

Please accept our letter of support for the siting of the new Drop-In Center location in the Public Market space. Are you able to share this with the Mayor and anyone else that would benefit at COB. We have also sent one on to the County.

Rachel Lucy & Chuck Prosper

Rachel Lucy, MA | Director of Community Health
Pronouns: She/Her/Hers
PeaceHealth | 2901 Squalicum Parkway | Bellingham, WA 98226
office 360-788-6819 | **mobile** 360-739-6373 | **fax** 360-788-6393

PeaceHealth
The Spirit of Health

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June 10, 2020

Letter of Support

Dear City of Bellingham leaders and elected City Council members,

We are writing to express our support for the proposal to relocate the Drop-in Center operated by Lighthouse Mission Ministries to 1530 Cornwall and the home of the previous Public Market. We applaud the collective community response and partnership that occurred at the start of the COVID-19 pandemic to rapidly move the Drop-In Center to Bellingham High School. We also understand the significant urgency to find a more semi-permanent location and the sizable commitment of resources and time required on the part of City of Bellingham to do so. We can attest that this is an important investment to the overall health and well-being of our community.

We had the opportunity to tour operations at Bellingham High School in April and work alongside those involved in planning and operations and have been impressed by what we've seen. We have observed solid infection prevention practices, a calm atmosphere for clients, and improved social distancing. These achievements would have been nearly impossible at the previous home of the Drop-In Center and going back would be unacceptable. We have been closely following community discussions about siting a new location and understand the difficulty in finding the ideal site under these circumstances. The existing vacant building at the 1530 Cornwall site has several positive features including the structure itself as it will provide more adequate winter sheltering capacity and the proximity to transportation and vital services downtown for those seeking shelter.

As the sole hospital serving Whatcom County, you have our full support for this proposed move. Maintaining social distancing throughout the duration of this pandemic while also providing shelter for some of our most vulnerable community members must be at the top of our shared health priorities. Without this focus, we will most certainly be faced with even greater challenges and suffering.

We stand ready to build on our existing collaborations with the City of Bellingham, Whatcom County, the Lighthouse Mission Ministries and other key partners to ensure successful transition and operations at a new site.

Charles Prosper MSPT, MBA
Chief Executive
PeaceHealth Northwest Network

Rachel Lucy, MA
Director of Community Health
PeaceHealth Northwest Network

PeaceHealth St. Joseph Medical Center
2901 Squalicum Parkway
Bellingham, WA 98225

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:46 PM
To: Kerr, Monea J.
Subject: FW: Temporary shelter in the Public Market building on Cornwall

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From: Michael Motel DC <michaelmoteldc@gmail.com>
Sent: Friday, June 12, 2020 9:35 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Temporary shelter in the Public Market building on Cornwall

Hello Mayor Seth Fleetwood,

My name is Michael Motel and I am a business owner at 1409 Cornwall Ave. I would like to share my opinion about moving the temporary shelter to the Public Market building. As a business owner approximately one block away, I am opposed to this action. This will impact our business and I am very much against it. Please let me know if you have any questions.

Michael Motel
360-746-9179

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:45 PM
To: Kerr, Monea J.
Subject: FW: Temporary shelter in the Public Market building on Cornwall

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From: Michael Motel DC <michaelmoteldc@gmail.com>
Sent: Friday, June 12, 2020 9:35 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Temporary shelter in the Public Market building on Cornwall

Hello Mayor Seth Fleetwood,

My name is Michael Motel and I am a business owner at 1409 Cornwall Ave. I would like to share my opinion about moving the temporary shelter to the Public Market building. As a business owner approximately one block away, I am opposed to this action. This will impact our business and I am very much against it. Please let me know if you have any questions.

Michael Motel
360-746-9179

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:45 PM
To: Kerr, Monea J.
Subject: FW: Drop in center at Terra Organica

-----Original Message-----
From: Laura Corker <lauracorker@hotmail.com>
Sent: Friday, June 12, 2020 8:45 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Drop in center at Terra Organica

Please do not back off from this idea. I think it is absolutely perfect. The area is open, close to downtown, grocery outlet, the library, accessible from all directions, and not on roads that would be impacted hugely by jay walking. I guess you may have a few businesses that might not like it, but I I would not be afraid to go to them, because I'm not afraid of people in need.
The building is set way back from other businesses. People need a place to go. I would to see this developed as a permanent location. What other services could go in there?Also, please think about ways to plan that parking lot to be a nice place to hang out, with spaces for staff and volunteers to park to the side and maybe benches and planters to beautify it. Make it be hard to run through, but it looks inviting.... don't forget to have some trash cans there.

Loving greetings from Laura

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:44 PM
To: Kerr, Monea J.
Subject: FW: Drop in shelter

From: Dana Weigel <dweigel07@gmail.com>
Sent: Friday, June 12, 2020 8:01 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Drop in shelter

Dear Mayor Fleetwood,
As a resident of Bellingham from the Roosevelt neighborhood, I am writing to share my support for moving the drop-in center to the former Terra market space downtown. Given the need for social distancing to keep our neighbors experiencing homelessness safe and healthy and the long vacant large building, I think it's a wise choice.
Thank you for working to provide these Bellingham residents a place to safely gather and sleep. Despite the few loud voices you may be hearing from, please know that a large, and unfortunately often silent, group support the work that goes into providing services for our homeless neighbors.
Sincerely,
Dana Weigel

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:44 PM
To: Kerr, Monea J.
Subject: FW: Public Market | Relocation of LMM Guests

From: Christine Mansfield <countrygirlinnw@gmail.com>
Sent: Friday, June 12, 2020 2:23 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Public Market | Relocation of LMM Guests

Mayor Seth Fleetwood and City Council Administration,

Please continue city sheltering of Lighthouse Mission Ministry (LMM) guests currently scheduled to vacate Bellingham High School. This is a critical time in which all lives are impacted by much needed social distancing and shelter-in-place parameters.

The Public Market is an ideal location for relocating LMM Drop-in Center guests for continuance of social distancing shelter during this COVID19 public health crisis.

•The Public Market building is close to WTA essential trip transportation and downtown community resources for food access and homelessness support services.

•The Public Market affords parking lot, restroom access, and kitchen.

•It is my understanding that leasing the Public Market space will also contribute to the necessary timeline for much needed renovations at LMM.

I support this emergency relocation to the Public Market and will continue to advocate for city measures that offer relief to our unhoused neighbors and overall public safety.

Thank you for your diligent responsiveness and critical oversight despite political controversy and challenging public health circumstances.
I hope the city will garner the support of the majority in favor of sustaining the lives of our unhoused neighbors by approving using the Public Market.

Best regards,

Jennifer Christine Mansfield
Resident of Bellingham, WA
(360) 223-9818

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:44 PM
To: Kerr, Monea J.
Subject: FW: Mission Drop In Center

From: Jennifer Wright <jenkfos@hotmail.com>
Sent: Friday, June 12, 2020 12:05 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Mission Drop In Center

Dear Mayor Fleetwood,

My family has lived in Bellingham since the 1970's. I trust that based on our shared experience of living here decades, you are well aware that the Mission serves a very important role in our community—especially the Drop In Center during this time of intense pressure.

I know there are different models for addressing homelessness and all the benefits and drawbacks. That's why I think we need all of the different organizations to each address this issue—it is complex and multifaceted. The Mission plays a hugely important role as evidenced by the number of people they serve daily.

Please seriously listen to the executive director—the proposed location is a great solution for people who are experiencing homelessness and need the center. No other organization could possibly fill this particular niche, and we need a place that is not removed from our community's core. It sounds like it would be for 3 to 4 years so this is a chance to try out a central location without having to commit for the long haul yet.

I shop downtown fairly often and I have a number of friends who are small business owners right in that area. While I am sensitive to various issues and perceptions, I do think people experiencing homelessness are our community members, too. We must care for them where the majority spend time, which means in the downtown/Old Town area.

For many years my dad owned a business that was only about three blocks from the Mission. This never caused any problems at all. I really hope that you will take into consideration that no matter where the location is people will complain. There's literally no way to win where people won't raise a ruckus, and at the same time of choice needs to be made. This is a good chance to make a decision so we can move forward and continue to support those in need.

The location under consideration is a great choice. I believe that once people get used to it the new Drop In Center will become a non-issue and people will move on to more pressing concerns.

Best wishes, Mayor Fleetwood,

Jennifer Wright

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:44 PM
To: Kerr, Monea J.
Subject: FW: in support of shelter at former Public Market

From: Laura Steiger <steiger_laura@hotmail.com>
Sent: Thursday, June 11, 2020 9:50 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: in support of shelter at former Public Market

Mayor Fleetwood, I am writing to express my appreciation of the City's fast action to secure a location for the shelter currently in operation at Bellingham High School.

The school district likely has a lot of work to prepare to reopen schools, and the folks sheltered there will continue to need a safe place to rest their heads at night.

The former Public Market is in an ideal location since it is adjacent to public transit and the Downtown core. It is also conveniently empty!

My appreciation to everyone at the City of Bellingham who made this transition possible.

Thanks,
Laura Steiger, Bellingham

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:43 PM
To: Kerr, Monea J.
Subject: FW: Shelter for homeless during COVID

From: Blair Murphy <blairmurphy06@gmail.com>
Sent: Thursday, June 11, 2020 9:26 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Shelter for homeless during COVID

Hi there,

I am in support of moving the shelter to the old Terrace Public Market on Cornwall. We must act quickly to make sure all individuals are housed during this Covid-19 crisis.

Thank you,
Blair Murphy
Bellingham, WA

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:43 PM
To: Kerr, Monea J.
Subject: FW: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

---

From: John and Janet Crews <jjcrews@me.com>
Sent: Thursday, June 11, 2020 6:40 PM
To: Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Sundin, Tara J. <tsundin@cob.org>
Cc: Lydia Bennett <lbennett@ccim.net>; Ken Reinschmidt <ken@saratogacom.com>; Chris Renoud <Chris.Renoud@fse.com>; Dianna DelGiorgio <delgiorgio@me.com>; Guy Occhiogrosso <guy@bellingham.com>; mike@ramconstruction-wa.com; alice@downtownbellingham.com
Subject: Re: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

To all those who are sincerely looking for the best solution to the Drop-in center crisis,

This email is a follow-up to the email sent to Elected officials by Frank Chmelik, which is shown below for your convenient reference.
Frank has done a great job of presenting what we believe to be the best solution to the current Covid-induced Drop-in shelter crisis. Many people, including some in local government, are unfortunately caught up in framing this as an 'either/or' issue, in which we either sacrifice the homeless, or we sacrifice local businesses and their employees. I am someone who always searches for win/win solutions, and we believe that Frank has supplied just that.

Frank's email has done an outstanding job of laying out the practical aspects of this proposed solution. In order to balance that, I would like to ask you to consider the humanistic side which is so often forgotten.
There are numerous research studies which show that being near nature and greenery has a very positive affect on mental health and depression. This is not debatable. If the upcoming decision-making process is going to at all take into account the mental health aspects of a shelter's location, which it should, it is very clear that the Courthouse Annex site is vastly superior to the Public Market site. The Courthouse Annex site is surrounded by trees on three sides, it has Whatcom Creek running nearby, and there are treelined pathways that lead down to Maritime Heritage Park with a view of the Bay. All of these are things that numerous scientific studies have shown to have positive affects on those who are dealing with mental challenges such as stress or anxiety. The Public Market site offers blacktop, busy streets, and alleyways; none of which are supportive of mental health. If any consideration is going to be given to the welfare of the people who need to be using these shelters, there is no question that the temporary Courthouse Annex site is the vastly superior choice. Please take this human aspect into account.

We realize that this solution will certainly involve some challenges, but the fact that this is a temporary use should alleviate those challenges. There are likely some issues that will come up which would cause City officials and employees to be against this solution, but therein lies the chance for government to fulfill its role. Up until this point, there has been a tendency to view this as casting the burden on either the homeless or on small businesses and their employees downtown. This is an opportunity for local government to step up and use its land resources to support the well-being of both groups, and to provide the best solution for all of their citizens by taking the burden upon themselves at the small cost of giving up some parking spaces on a temporary basis. How can this not be seen as the best role for government in this crisis?

The homeless need a solution now; Ram Construction can provide shelters in a very short time frame. The homeless need a healthy and safe envionment; this solution is far better than the streets of downtown. The Mayor promised in the Herald to mitigate the damage to small businesses and their employees (which he naively presented as "perceived" rather than "real"); and providing a shelter with the security of being next door to the police department dramatically improves the safety of all our citizens including the homeless, and at much less cost to everyone than attempting to overstretch the police resources downtown.

There is no doubt that some will come up with excuses as to why this cannot work; SOLVE THOSE EXCUSES! Don't pass the buck between the homeless, and the employees of small businesses. You can make this work for everyone for the mere price of temporarily giving up the use of a city parking lot.

Please be the government that everyone needs right now. Take this burden off the shoulders of your citizens, and allow the Courthouse Annex to be the temporary solution that everyone needs.

Very sincerely,

John & Janet Crews

On Jun 11, 2020, at 4:17 PM, CSD - Frank Chmelik <fchmelik@Chmelik.com> wrote:

Elected officials,

I was remined of one site that was rejected as a *permanent* location in 2018 but very well may be the perfect *temporary* location for a low barrier shelter for 1-2 years. That site is the former Courthouse Annex site north of the Courthouse and West of City Hall. It has the advantage of being surrounded by government property. Both the Sheriff's Department and Bellingham Police Department are there to provide security. The Health Department is there. It is close to the LHM and its services. During the evening, the government complex does not see heavy use. The library is nearby. Since it is government property there is no rent. It had a building on it and has no geotechnical issues and has available sewer and water.

One can completely appreciate the County wanting to preserve land near the courthouse for future development. But, this is an emergency and the likelihood of needing the property in the next 18 to 24 months seems remote. The County was reasonable in rejecting the site as a permanent facility back in 2018 but now in 2020 the County can make this available on a temporary basis. Here are the thoughts on this site:

- A temporary structure could be erected there quickly using CARES Act funds.
- RAM Construction is developing a plan for this work.
- It would be an appropriate and lawful use of CARERS Act funds as opposed to building a facility for use well after the Covid-19 response is over.
- It would not be available to relocate the LHM during its reconstruction. However, that is a different issue than an emergency Covid-19 response. If and when that construction project took place, I am sure any number of places could be located on a temporary basis given a certain construction schedule.

Ladies and Gentlemen our group still stands behind a $50,000 contribution to be used to help address this issue by the government of the LHM. If the issue truly is one of a temporary place for a drop-in shelter then we all could get behind this site for emergency use and agree that any impacts would be on government property as opposed to being visited on the small downtown businesses already struggling to survive Covid-19. This resolves any complaints that a small group of your citizens will be required to suffer the effects of a temporary shelter. It addresses the City's hesitation about the 600 W. Holly site. It will bring the community together in a common effort to address the needs of the homeless during the Covid-19 crisis.

I would ask that our elected officials join our community of downtown business and property owners and support this approach. Please reply to all on this email to continue the conversation.

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

From: CSD - Frank Chmelik
Sent: Thursday, June 11, 2020 11:50 AM
To: laanderson@cob.org; ptmvargas@cob.org; hahuthman@cob.org; hestone@cob.org; gknutson@cob.org; dchammill@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>; mayorsoffice@cob.org
Subject: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

Honorable Elected Officials,

Starting in late 2017 and extending to the end of 2018 the City and County formed a working group to look at a number of sites for a ***permanent*** low barrier shelter. I believe Mr. Lilliquist, Mr. Hammil, Mr. Erchinger-Davis, Mr. Browne and Mr. Buchanan served on the working group. The sites included:

- The old Health Department building
- The south end of the Bellingham Police Department Parking Lot
- The former Sash & Door Site
- The County owned parking lot on York Street between the Public Market and the Bellingham Housing Authority Walton Place facility. *This site is ½ block from the current site under consideration*,

The sites were put through a screening process and ranked. The County owned parking lot was removed from the list because (i) it was too far from the LHM, (ii) it would have too great an negative impact on the Downton and (iii) it was too close to Walton Place. Ultimately, the working group was unable to agree on a***permanent*** site although the Sash & Door site, the old Health Department Building and the Bellingham Police

Department south parking lot were prime contenders. Each government had long term plans for their property and would not agree to a ***permanent*** facility.

Now, we look for a ***temporary*** site using CARES Act funds that are statutorily limited to costs for a Covid-19 response through December 2020. The old Health Department building is currently occupied. This leaves two potential ***temporary*** sites both of which ranked very high just two years ago..

- The south end of the Bellingham Police Department Parking Lot
- The former Sash & Door Site

The difference between then and now is the permanency of the use but the screening criteria remain unchanged and the 2018 conclusion valid.

A temporary structure could be erected on either of these sites quickly. I call your attention to the offer from the business community to erect a tensioned tent building that can be heated and subdivided. These have been used for casinos, meeting rooms, and housing for American Armed forces.

Ram Construction has offered to build this (including a foundation) at cost the Sash and Door Site. Construction Supply has offered to provide its materials at cost. The Northern Downtown Property and Business Owners Working Group has pledged $50,000 for this effort. Ram estimates that the structure including foundation could be completed at the Sash & Door Site in six weeks. This would truly be a temporary structure and have the advantage of being available for reuse or sale when the underlying real property is needed.

I have included letters that were received by the Homeless Strategies Workgroup back in 2018 for your reference. Out of respect for the board and executive director of the BHA they have not yet weighed in on this new proposal.

If government is truly being transparent the goal is a ***temporary*** site during the Covid-19 emergency. The 3-4 year lease of the Public Market extends well beyond any foreseeable Covid-19 response, violates the terms of the CARES Act grants and has already been evaluated as an unsuitable location. The Civd-19 crisis should not be used by City staff to ignore the previous work and harm the Downtown.

Respectfully

Frank Chmelik

Frank J. Chmelik
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O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:42 PM
To: Kerr, Monea J.
Subject: FW: In support of drop in center at Public Market

From: Leah Veldhuisen <leah.veldhuisen@gmail.com>
Sent: Thursday, June 11, 2020 6:00 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: In support of drop in center at Public Market

Hello,

I'm emailing to express support of moving the Drop In Center to the old Public Market space on Cornwall Ave. This location would be central and walkable for many users, and would provide more space for social distancing.

Thank you,
Leah Veldhuisen

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:42 PM
To: Kerr, Monea J.
Subject: FW: Finding a home for our city's homeless

-----Original Message-----
From: Lisa CITRON <lisacitron@mac.com>
Sent: Thursday, June 11, 2020 5:41 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Finding a home for our city's homeless

Mayor Fleetwood,

I support the decision taken to house our city’s homeless at the site of the Public Market.

Lisa Citron

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:42 PM
To: Kerr, Monea J.
Subject: FW: Relocating drop in

-----Original Message-----
From: Andy Ingram <thisisandysemail@gmail.com>
Sent: Thursday, June 11, 2020 5:35 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Relocating drop in

Hi,
Andy Ingram-Monteiro here. My family and I support the decision to move to the old Public Market location on Cornwall. Seems like a good site. I wonder about the old movie theater by Sehome Village also, but downtown seems like an important factor.

Sent from my iPhone

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:40 PM
To: Kerr, Monea J.
Subject: FW: Drop in center ok at Public Market

From: Megan Stephenson <mkstephenson@gmail.com>
Sent: Thursday, June 11, 2020 3:57 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Drop in center ok at Public Market

Hello,
I am a Bellingham constituent and a community health worker. I live and work among our unhoused population, and I support the move of the Drop-in Shelter to the Public Market space. The folks that need the drop-in center also need support services for housing applications, healthcare, mental health care, substance use support, and food and cooked meals, most of which is located downtown. With limited transportation exacerbated by the pandemic, these folks deserve an accessible place to rest and feel safe and warm.

Thank you for your consideration,

--
megan stephenson

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:40 PM
To: Kerr, Monea J.
Subject: FW: Support for drop in center

-----Original Message-----
From: Lindsay Wells <lindsay78@gmail.com>
Sent: Thursday, June 11, 2020 3:51 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Support for drop in center

Dear Mayor Fleetwood,
I've heard that you are receiving complaints about moving the drop in center for folks experiencing homelessness to the Public Market space. I support this decision to locate crucial services in this accessible location. Thanks for your work to ensure this essential facility remains open in the transition from BHS.
Lindsay Wells
Elizabeth St

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:40 PM
To: Kerr, Monea J.
Subject: FW: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

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From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Thursday, June 11, 2020 3:17 PM
To: Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Cc: Lydia Bennett <lbennett@ccim.net>; Ken Reinschmidt <ken@saratogacom.com>; Chris Renoud <Chris.Renoud@fse.com>; Dianna Del Giorgio <delgiorgio@me.com>; Guy Occhiogrosso <guy@bellingham.com>; John and Janet Crews <jjcrews@me.com>; Mike Hammes <mike@ramconstruction-wa.com>
Subject: RE: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

Elected officials,

I was remined of one site that was rejected as a *permanent* location in 2018 but very well may be the perfect *temporary* location for a low barrier shelter for 1-2 years. That site is the former Courthouse Annex site north of the Courthouse and West of City Hall. It has the advantage of being surrounded by government property. Both the Sheriff's Department and Bellingham Police Department are there to provide security. The Health Department is there. It is close to the LHM and its services. During the evening, the government complex does not see heavy use. The library is nearby. Since it is government property there is no rent. It had a building on it and has no geotechnical issues and has available sewer and water.

One can completely appreciate the County wanting to preserve land near the courthouse for future development. But, this is an emergency and the likelihood of needing the property in the next 18 to 24 months seems remote. The County was reasonable in rejecting the site as a permanent facility back in 2018 but now in 2020 the County can make this available on a temporary basis. Here are the thoughts on this site:

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Ladies and Gentlemen our group still stands behind a $50,000 contribution to be used to help address this issue by the government of the LHM. If the issue truly is one of a temporary place for a drop-in shelter then

we all could get behind this site for emergency use and agree that any impacts would be on government property as opposed to being visited on the small downtown businesses already struggling to survive Covid-19. This resolves any complaints that a small group of your citizens will be required to suffer the effects of a temporary shelter. It addresses the City's hesitation about the 600 W. Holly site. It will bring the community together in a common effort to address the needs of the homeless during the Covid-19 crisis.

I would ask that our elected officials join our community of downtown business and property owners and support this approach. Please reply to all on this email to continue the conversation.

Frank Chmelik

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E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

From: CSD - Frank Chmelik
Sent: Thursday, June 11, 2020 11:50 AM
To: laanderson@cob.org; ptmvargas@cob.org; hahuthman@cob.org; hestone@cob.org; gknutson@cob.org; dchammill@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us; Bill Elfo <belfo@co.whatcom.wa.us>; mayorsoffice@cob.org
Subject: Temporary Low Barrier Shelter - the 2018 County City Homeless Strategies Workgroup

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A temporary structure could be erected on either of these sites quickly. I call your attention to the offer from the business community to erect a tensioned tent building that can be heated and subdivided. These have been used for casinos, meeting rooms, and housing for American Armed forces.

Ram Construction has offered to build this (including a foundation) at cost the Sash and Door Site. Construction Supply has offered to provide its materials at cost. The Northern Downtown Property and Business Owners Working Group has pledged $50,000 for this effort. Ram estimates that the structure including foundation could be completed at the Sash & Door Site in six weeks. This would truly be a temporary structure and have the advantage of being available for reuse or sale when the underlying real property is needed.

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If government is truly being transparent the goal is a ***temporary*** site during the Covid-19 emergency. The 3-4 year lease of the Public Market extends well beyond any foreseeable Covid-19 response, violates the terms of the CARES Act grants and has already been evaluated as an unsuitable location. The Civd-19 crisis should not be used by City staff to ignore the previous work and harm the Downtown.

Respectfully

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:39 PM
To: Kerr, Monea J.
Subject: FW: Drop-in shelter Location

-----Original Message-----
From: oradatalysan@gmail.com <oradatalysan@gmail.com>
Sent: Thursday, June 11, 2020 2:58 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Drop-in shelter Location

Good afternoon,

I am simply writing to express my support for the drop-shelter relocation to the Terra foods building.

Thank you for your compassionate responding to needs of the community.

Alysa Oradat

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:39 PM
To: Kerr, Monea J.
Subject: FW: Please allow Lighthouse Mission to move into Terra location!

From: Tammy D <tamaradee1@gmail.com>
Sent: Thursday, June 11, 2020 2:38 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Please allow Lighthouse Mission to move into Terra location!

May Fleetwood,
I am emailing as a citizen and small business owner in Bellingham, WA to request that you please allow the Lighthouse Mission to move into the old Terra building in downtown to meet health department requirements of social distancing. When I learned the school district offered their resources to support some of our most vulnerable community members, I was so proud to say I live here! I was so proud of our school district and our city. When I heard there was pushback to the Terra proposal by surrounding businesses, I was saddened and confused. We've all suffered from this crisis, but that's no reason to inflict more suffering. Not only that, but I believe the arguments of the small business owners against the city's proposal frankly make no sense. If people are not given a safe place to stay overnight and social distance, more people who are unhoused will find shelter on the streets- maybe in front of the same businesses that are pushing against this proposal? I believe this will also happen if the shelter is moved to an inconvenient location. The Terra spot is ideal.

I support the proposal to allow the Lighthouse Mission to utilize the Terra building. It is the right thing to do. It is the choice that protects people's health, wellbeing, and safety. No one will be harmed if you allow the lighthouse to use the Terra building. Many people will be harmed if you don't.

Regards,
Tamara Dee

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:39 PM
To: Kerr, Monea J.
Subject: FW: I support the new drop in center location

From: Shepard, Michael <michaels@portofbellingham.com>
Sent: Thursday, June 11, 2020 2:29 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: I support the new drop in center location

Dear Mayor Fleetwood – Thank you for identifying a location to house a vulnerable population during a time of global pandemic. This temporary location makes the most sense for ability to complete in the given time. The negative community impacts of leaving 100+ people unsheltered or in unsafe conditions outweighs the inherent challenges associated with finding a suitable site for a shelter.

Sincerely
Michael Shepard

--
Michael Alvarez Shepard, PhD
Commissioner, Port of Bellingham
michaels@portofbellingham.com
360.303.9314

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:38 PM
To: Kerr, Monea J.
Subject: FW: Public market for homeless shelter relocation

From: Zahra Elkhafaifi <zahra.elkhafaifi@gmail.com>
Sent: Thursday, June 11, 2020 1:58 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Public market for homeless shelter relocation

Hi Seth,

I live and work in Bellingham and attended wwu. I fully support using the public market for relocation of sheltered folks. It's empty and large and makes perfect sense. Thank you for continuing to do the hard thing in the face of people who don't want a solution at all.

I would like the city and county to work towards a secular and public service provider for homeless shelters but the mission is the best we have now and they're doing the work.

Thanks again and take care.

Zahra

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:38 PM
To: Kerr, Monea J.
Subject: FW: New Drop-In Location

From: Elma Burnham <eccburnham@gmail.com>
Sent: Thursday, June 11, 2020 1:34 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Keller, Janice L. <jkeller@cob.org>; mmorin@co.whatcom.wa.us; contact@thelighthousemission.org
Subject: New Drop-In Location

Hello,
As a Bellingham constituent and Sunnyland resident, I am writing to SUPPORT the proposed new drop-in location at the former Public Market in downtown Bellingham. Proximity to essential services is paramount, and I believe you've all landed on a good location. I live just a few blocks from Bellingham High School and have had no issues, nor experienced any fear, since the shelter moved to our neighborhood. Mayor Fleetwood, you said, "We must create healthy living space for people experiencing homelessness during this public health emergency, or they will have no option other than to live unsheltered." I believe this is true all the time, not only during a pandemic. I commend the city, county, and Lighthouse Mission for supporting the unhoused in our community. Thank you all for your hard work in making this happen.
Sincerely,
Elma Burnham

--
Elma Burnham (she/her)
(860) 949 2144
#hersalso

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:36 PM
To: Kerr, Monea J.
Subject: FW: Homeless Shelter

From: Amy Glasser <amyglasser56@gmail.com>
Sent: Thursday, June 11, 2020 3:32 AM
To: Cathy Halka <chalka@co.whatcom.wa.us>; Carol Frazey <cfrazey@co.whatcom.wa.us>; Barry Buchanan <bbuchana@co.whatcom.wa.us>; Lilliquist, Michael W. <mlilliquist@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Ann Beck <abeck@co.whatcom.wa.us>; Hammill, Daniel C. <dchammill@cob.org>; michael_parker@whatcomhsc.org; michaels@portofbellingham.com; mhilley@co.whatcom.wa.us; tschroed@co.whatcom.wa.us
Cc: council@co.whatcom.wa.us
Subject: Homeless Shelter

Dear Bellingham City Council and Mayor Fleetwood,
I thought religious organizations that do promote a specific religion cannot receive public funds? The Lighthouse Mission is that type of organization. Just ask any gay, transgender, person of color or non-Christian.
It's time have the Mission's financial transparent to the public. A huge amount of tax payer money is going to an organization that does not believe in the Housing First Model. Even their literature and public statements by their Director Hans states that specifically. They want people to convert or follow their Christian doctrine.
Residents have continually complained about thefts, assaults, favoritism, lack of trained staff, under staffing and lies about what services are available. This is not the organization to financially support with our tax dollars.

Lastly, as I and many have stated in the past is that a 200 bed shelter is an outdated approach to homelessness. Tiny Home communities and intensive 1:1 outreach work to to connect clients with services is the way. If no housing is truly unavailable; the city must build Tiny Home villages as any other apartment programs costs millions and take years to build. Why do you Mayor Fleetwood, want to go with a 200 bed shelter (worked on behind closed doors) when you admitted you had a lot to learn about the homelessness problem? Statistics and many cities have shown that big shelters do not result in permanent housing. Please listen to the professionals and not an organization that is Christian based and has shown in the past that it is unable to keep the residents safe. Respectfully sent and incredibly disappointed.

Amy Glasser

cc: County Council

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:36 PM
To: Kerr, Monea J.
Subject: FW: Proposed site for homeless overnight shelter.

-----Original Message-----
From: D&T <da.tz@comcast.net>
Sent: Wednesday, June 10, 2020 5:41 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Proposed site for homeless overnight shelter.

Just wanted to say that it seems like a very good idea to use the former public market for homeless emergency shelter. But the city should then help the downtown businesses if clean up from trash, and defecation, and nuisance stuff happens.
I have heard some friends with businesses around the Bellingham high school have to deal with that sort of problem.

Also so very thankful to have The Lighthouse Mission‘s involvement.

Teresa Anderson
Bellingham
Sent from my iPhone

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:35 PM
To: Kerr, Monea J.
Subject: FW: Homeless shelter

-----Original Message-----
From: Laurel <laurelcook@aol.com>
Sent: Wednesday, June 10, 2020 5:24 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Homeless shelter

The former Pubic Market building is a good location for the homeless shelter. Great idea!
Laurel Cook

Sent from my iPad

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:35 PM
To: Kerr, Monea J.
Subject: FW: Proposed Downtown Homeless Shelter

From: Bill - Construction Supply <bill@cscbellingham.com>
Sent: Wednesday, June 10, 2020 3:30 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; CC - Shared Department <cc@cob.org>; ssidhu@co.whatcom.wa.us; council@co.whatcom.wa.us
Cc: fchmelik@chmelik.com; Bemiller52@comcast.net
Subject: Proposed Downtown Homeless Shelter

Hello Mayor, County Executive, City and County Council Members,

I am writing as a lifelong Bellingham resident, Bellingham business and property owner, and very concerned citizen regarding recent news I heard about potentially locating a "temporary" homeless shelter in the old Safeway building (former Terra Organica) at York and Cornwall Avenue.

I am very much aware of the homeless problem in Bellingham and Whatcom County. I am thankful and grateful for the community effort working to improve this situation in order to help community members that struggle without shelter. However, if what I hear is correct, the plans for relocating the temporary homeless shelter at Bellingham High School to the old Safeway location is a VERY BAD IDEA and will be very damaging to the Bellingham downtown business environment, potentially irrecoverably. ALL businesses and their community employees and owners are already severely struggling with the effects of COVID19. Adding a homeless shelter to a struggling downtown will only further exacerbate that problem.

May I offer an alternative? The old Sash and Door site in Old Town at the foot of Holly Street (owned by the City) is an alternative. This area is already a focal point with the caring folks at The Lighthouse Mission just a few blocks away. I am aware of plans and offers by Ram Construction to construct (at cost) a temporary structure on the site. Many other downtown business and property owners are willing to donate and support this plan. My business, Construction Supply Company, will gladly provide discounted construction materials to this effort. Is this not a better alternative than to open a shelter in a suffering downtown that needs every advantage to recover from COVID19?

I have also been made aware that full and public due process and zoning code compliance may not be transpiring regarding this plan. That is VERY DISAPPOINTING. Despite the challenges of COVID19 and "emergency powers" granted to our government, that does not mean turning a blind eye to the future and the VITAL importance of a healthy downtown core to live and work in. We live in a democracy. The pandemic also does not create an excuse to deny an OPEN, FAIR, PUBLIC DISCUSSION regarding matters that will affect the health of downtown Bellingham for decades to come. Please hear this reasoning and consider better options to address homelessness in Bellingham than gutting the economic, social and community health of an already reeling downtown Bellingham. Please also provide an open forum for this decision to be debated.

I trust a sound decision will be made regarding this issue. Please do not hesitate to contact me if I may be of help in any way, as I care deeply about our community and home.

Sincerely,

Bill Eiford
360-739-5407
billeif@icloud.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:34 PM
To: Kerr, Monea J.
Subject: FW: Drop-in center

-----Original Message-----
From: Ken Hertz <ken@blossommanagement.com>
Sent: Wednesday, June 10, 2020 4:07 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Drop-in center

Tough choices and decisions but the space seems appropriate until you get something designed for its use. Thanks for the efforts.

Sent from my iPhone

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:32 PM
To: Kerr, Monea J.
Subject: FW: Proposed low barrier shelter

From: Chris Renoud <Chris.Renoud@fse.com>
Sent: Wednesday, June 10, 2020 2:19 PM
To: CSD - Frank Chmelik <fchmelik@Chmelik.com>; Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; abarker@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; John and Janet Crews <jjcrews@me.com>; Ruffatto, Peter M. <pruffatto@cob.org>
Subject: RE: Proposed low barrier shelter

Elected officials and others,

I would also like to put forth and additional idea, the city could require PeaceHealth to open the south campus, it is vacant and has private rooms with baths and showers, a cafeteria and extra room. This seems like it would be a great temporary shelter, perfect for this temporary use.

Regards,

Chris Renoud PE | **FSE Inc.** | President
T +1.360.734.7040 | **M** +1.360.201.5000
www.fse.com

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Wednesday, June 10, 2020 12:58 PM
To: mlilliquist@cob.org; laanderson@cob.org; ptmvargas@cob.org; hahuthman@cob.org; hestone@cob.org; gknutson@cob.org; dchammill@cob.org; abarker@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us
Cc: mayorsoffice@cob.org; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Peter Ruffatto <pruffatto@cob.org>
Subject: RE: Proposed low barrier shelter

Elected officials and others,

Again, please forgive the informality of this email but time is short. With all due respect, City staff has not elected to release the proposed agreement for the three to four-year lease of the Cornwall Site. As the ranks of the North Downtown Property and Business Owners Working Group has grown several things have become apparent.

1. **Total Lack of Transparency and Concerted Effort to Mislead the Public**. There has been a total lack of transparency and indeed a concerted effort to hide this matter from the public by City staff. We now know that City staff asked citizens to keep the plan secret. This is wrong and a breach of the public trust. This is especially true when the City council (unlike many other governments) has dispensed with public comment. It is also a breach to use the Covid-19 crisis to move in secret and without public input. The public knows that a three or four year lease with $1.5 million in improvements is not "temporary" and not related to Covid-19. Indeed, City staff indicated that the Cornwall site would also be used for the LHM to relocate while they rebuilt their facility. On Monday night City staff noted that they were looking at three sites but had nothing finalized. By Tuesday morning a lease document was in the hands of the Cornwall landowner. Is that the type of candor that our elected officials need and that the public demands?

2. **Cornwall Avenue Was and Remains the Wrong Site**. The general consensus in the business community is that after years of City and County effort and support for the development of downtown the proposed temporary shelter would erase much of that effort. Simple stated that damage done by using the Cornwall location would be significant. Even a three-year shelter will have done the damage. This is especially true with many of our local businesses fighting to survive after the Covid-19 shutdown. Many of us were part of the 2018 City/County Homeless Strategies Work Group where criteria were developed to evaluate sites. The County owned parking lot on York Street was deemed unsuitable because of its proximity to downtown, the distance from the LHM main campus and its proximity to the Walton Place public housing complex which shelter vulnerable citizens. Please listen to your citizens and local business owners. They are your experts on business not City staff that has never had to pay a commercial mortgage or make a payroll or lay awake at night wondering if their business would succeed. Some of you have run your own businesses and appreciate what I am talking about.

3. **The Local Business Community Proposes and Alternative Solution and Is Ready to Donate to that Solution**. . The local business community has come together to help during the Covid-19 crisis. Ram Construction developed a solution to construct a temporary tensioned cloth structure on a foundation at the Holly Street Site. Ram has offered to the City staff to build this at no profit or overhead. Construction Supply has offered to provide all useful materials they sell at cost. Chris Renoud, a property owner on Cornwall Ave and a mechanical engineer and another local structural engineer have offered to provide needed engineering. The business community is committed to contributing at least $50,000 towards this effort. Ram has told City staff that it is ready to start today and could be completed in six weeks. After the Covid-19 crisis passes the structure could be moved for use by the City or County as needed. In addition, this solution could be erected at any other publicly owned facility. For example, in 2018 the parking lot south of the police station was identified as a possible site. Surely, in this emergency it could be used. It would have the added benefit of having a police presence for the safety of all.

4. **CARES Act Funding Cannot Be Used as Proposed**. A recent concern is the apparent misuse of CARES act funds. These funds are to be used for Covid-19 related expenses. The low barrier shelter issue has been on the table for at least three years and well before Covid-19 The CARES Act requires the funds only be used for

a. necessary expenditures incurred due to the public health emergency with respect to the Coronavirus Disease 2019 (COVID–19);
b. were not accounted for in the budget most recently approved as of March 27, 2020 (the date of enactment of the CARES Act) for the State or government; and
c. were incurred during the period that begins on March 1, 2020, and ending on December 30, 2020.

Even if one can argue that the need for an expanded drop-in shelter is Covid-19 related, the stated goal of providing a place for the LHM to relocate while it raises funds for and constructs a new building is definitely not Covid-19 related and expenditures for costs past December 30, 2020 are prohibited. As one might expect the Inspector General of the Department of the Treasury and the Washington State Auditor are charged with monitoring compliance. As elected officials I would respectfully request that these issues be fully explored in a transparent way.

5. **The Holly Street Property is Available Despite a Questionable City Deal.** The March 2019 agreement with Northwest Recycling was initiated by the City staff in January of 2019. This was at a time when the community was searching for a location for a low barrier shelter. Low and behold the agreement was struck with some very unusual provisions.

a. Northwest Recycling made no legal commitments or paid any money. They agreed to several Milestones including a lease or purchase agreement for a new site by December of 2019. They have not meet their Milestones and the Milestones occurred well before Covid-19

b. The City agreed that if Northwest Recycling did not meet its Milestones the only thing that occurred was the City was relieved of a promise to provide some road improvements.

c. For no consideration Northwest Recycling was given a ten year option to purchase the 600 W Holly Street Site

d. In the midst of the search for a temporary low barrier shelter the City committed not to put one on the Holly Street property – even a temporary structure.

Both the City and the County have excellent lawyers. However, in my humble view Northwest Recycling is in breach and the City then can utilize the Holly Street property for a temporary low barrier shelter. This would cause no harm to Northwest Recycling. Frankly, it appears the real issue here is the City staff desire for a Old Town Urban Village. One might suppose that once the Cornwall site is secured and LHM moved it may be difficult for them to get a permit to rebuild their facility since it would not be in compliance with the Old Town Urban Village Plan. A review of the City Council meeting shows that the City staff noted words to the effect that "of course, the LHM would have to apply for City permits.

6. **The City And The County Have Consistently Supported Downtown Development And Vitality**. The City and the County (with the recent relocation of the Health Department) have been doing all possible to keep and improve Downtown as a vibrant community. The City's 2014 Downtown Plan noted that a healthy downtown is a vital economic interest. A shelter for three-four years is not Covid-19 related and even it were moved would decimate downtown businesses.

7. **The True Cost of the Cornwall Site Must Be Considered**. It is simply not fair to visit this cost on the downtown business owners. Some say "well it has to impact somebody." I disagree! If these last few weeks have reinforced one point it is that the primary role of government is to do no harm. The true cost of the Cornwall Site is not $1.5 million. That is just the government's cost. But government must also look with empathy on the cost it will impose on people who relied upon the City and invested their life's work and family treasure in the downtown. The loss to these people is also a cost. Take for example Dianna Del Girgorio who has invested her life's savings and works every day at the Adagio Coffee shop or John and Janet Crews who own her building and rely upon the tenants to pay the rent or Chris Renoud who just spent his life savings to buy the buildings across Cornwall or the employees that will lose their jobs. I am proud to be a member of this community that looks after this most difficult drug addicted, alcohol addicted and mentally ill population and that we call them our neighbors no matter when they arrived here. But that compassion has to be balanced against the needs of our hard working business and property owners that take the business risks, pay the taxes and play by the rules.

8. **The Business Community is Extending and Hand – Please Take It**. Now the business community has come together to both oppose the location of this facility at Cornwall and to offer money and labor for a community effort to build a temporary shelter on City owned property near the LHM. In my 35 years living and working here I have never seen the community come together like this to address a crisis. I would respectfully ask that as elected officials you let the community step in a provide a solution that works for all concerned. Let us build this facility at 600 W. Holly now and show all what can happen when business and government join shoulders behind the yoke to help our community.

Respectfully,

Frank Chmelik
360.223-5633

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
Direct: 360.306.3001
Cell: 360.223.5633
Office: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Mayor's Office Calls
6/9/20 2:00 pm – 5:00 pm and 6/10/20 8:00 am – 2:00 pm

Name	Phone	Email	Comments
Chris Renoud	360-201-5000	Chris.renoud@fse.com	He is very concerned about the talk he heard from some of his tenants that the homeless shelter will be put on Cornwall. He's concerned there wasn't any public comment or anything on this and **he would like to talk to the Mayor about this.** He is very concerned that if he loses any of his tenants because of this, it would be devastating.
Lydia Bennett	360-224-6600	lbennett@ccim.net	She'd like to talk to the Mayor about the low barrier shelter location which she heard was on Cornwall. **She'd like to talk to the Mayor.**

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:31 PM
To: Kerr, Monea J.
Subject: FW: Proposed low barrier shelter
Attachments: Contract 2019-0116 with PARBERRY'S INC, NORTHWEST RECYCLING INC., PARBERRY FAMILY LIMITED PARTNERSHIP.pdf

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From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Wednesday, June 10, 2020 12:58 PM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; abarker@cob.org; council@co.whatcom.wa.us; ssidhu@whatcom.wa.us
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Ruffatto, Peter M. <pruffatto@cob.org>
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b. The City agreed that if Northwest Recycling did not meet its Milestones the only thing that occurred was the City was relieved of a promise to provide some road improvements.

c. For no consideration Northwest Recycling was given a ten year option to purchase the 600 W Holly Street Site

d. In the midst of the search for a temporary low barrier shelter the City committed not to put one on the Holly Street property – even a temporary structure.

Both the City and the County have excellent lawyers. However, in my humble view Northwest Recycling is in breach and the City then can utilize the Holly Street property for a temporary low barrier shelter. This would cause no harm to Northwest Recycling. Frankly, it appears the real issue here is the City staff desire for a Old Town Urban Village. One might suppose that once the Cornwall site is secured and LHM moved it may be difficult for them to get a permit to rebuild their facility since it would not be in compliance with the Old Town Urban Village Plan. A review of the City Council meeting shows that the City staff noted words to the effect that "of course, the LHM would have to apply for City permits.

6. **The City And The County Have Consistently Supported Downtown Development And Vitality**. The City and the County (with the recent relocation of the Health Department) have been doing all possible to keep and improve Downtown as a vibrant community. The City's 2014 Downtown Plan noted that a healthy downtown is a vital economic interest. A shelter for three-four years is not Covid-19 related and even it were moved would decimate downtown businesses.

7. **The True Cost of the Cornwall Site Must Be Considered**. It is simply not fair to visit this cost on the downtown business owners. Some say "well it has to impact somebody." I disagree! If these last few weeks have reinforced one point it is that the primary role of government is to do no harm. The true cost of the Cornwall Site is not $1.5 million. That is just the government's cost. But government must also look with empathy on the cost it will impose on people who relied upon the City and invested their life's work and family treasure in the downtown. The loss to these people is also a cost. Take for example Dianna Del Girgorio who has invested her life's savings and works every day at the Adagio Coffee shop or John and Janet Crews who own her building and rely upon the tenants to pay the rent or Chris Renoud who just spent his life savings to buy the buildings across Cornwall or the employees that will lose their jobs. I am proud to be a member of this community that looks after this most difficult drug addicted, alcohol addicted and mentally ill population and that we call them our neighbors no matter when they arrived here. But that compassion has to be balanced against the needs of our hard working business and property owners that take the business risks, pay the taxes and play by the rules.

8. **The Business Community is Extending and Hand – Please Take It**. Now the business community has come together to both oppose the location of this facility at Cornwall and to offer money and labor for a community effort to build a temporary shelter on City owned property near the LHM. In my 35 years living and working here I have never seen the community come together like this to address a crisis. I would respectfully ask that as elected officials you let the community step in a provide a solution that works for all concerned. Let us build this facility at 600 W. Holly now and show all what can happen when business and government join shoulders behind the yoke to help our community.

Respectfully,

Frank Chmelik
360.223-5633

Frank J. Chmelik

Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
Direct: 360.306.3001
Cell: 360.223.5633
Office: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:31 PM
To: Kerr, Monea J.
Subject: FW: Perfect location for proposed Homeless Shelter

From: John and Janet Crews <jjcrews@me.com>
Sent: Wednesday, June 10, 2020 9:24 AM
To: Sundin, Tara J. <tsundin@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; Lilliquist, Michael W. <mlilliquist@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Stone, Hannah E. <hestone@cob.org>; council@co.whatcom.wa.us; chalka@co.whatcom.wa.us
Subject: Perfect location for proposed Homeless Shelter

Dear Mayor, Tara, City Council and County Council Members, and Light House Mission members,

It has come to my attention that you need to find a new temporary location for the homeless men and women who have been staying at Bellingham High . The location that is seriously being discussed is the Public Market (Old Safeway location) on Cornwall. I have great empathy for these men and women and their needs for safety, food and shelter as all of us do. But, having been part of a family business on RR and Champion for many years, I have also seen what happens to the surrounding businesses when the homeless come into the business district to hang out. There is peeing and defecating in entries and alcoves anytime of day, when customers are within view. There are groupings of individuals gathered around entrances to businesses, who can actually be really nice friendly people, or people soliciting, or people with mental problems that make customers coming into an establishment very uncomfortable, therefore choosing not to enter the business; now that shop owner suffers from lack of business.

When someone is homeless, as you all know, there is really not much to do all day, so hanging out downtown and grouping to “talk story” is all there really is to do; just like kids that like to go hang out at the mall. But it creates an atmosphere of fear for people coming to do business, because they do not know if the group is kind and friendly, or will they be asked for money, or worse yet would they like to buy some drugs. Yes, it is sad we feel this way, but we also have to recognize reality.

I understand the funding for the temporary shelter, due to Covid-19, must be within City Limits and near the LHM. But I ask, like so many “not-normal” situations right now WHY?? Why reshuffle the homeless men and women into another industrial, blacktopped surrounded building; why needlessly totally disrupt, and possibly destroy, the struggling restart to the family businesses downtown, who are all worried if their businesses can make a comeback from the virus shut down, when there are truly other options available (like the one I am presenting below owned by the Port of Bellingham) that would answer your temporary needs and really truly be so much nicer and **more dignified** for the homeless men and women that you say you are trying to help. Wouldn’t you yourself rather be staying, or getting help, somewhere that is surrounded with greenery and space than paved parking lots everywhere and nothing to do all day? All studies show that people who are exposed to nature, trees and green grass have less stress, and less mental issues.

Yes, it would be a pain to have it so far from the current mission. But think of it as a satellite LHM. You would still have classes, counselors and a safe environment. If the city bus doesn’t run out there (which I think it does) then have some vans or buses that could be used and driven by LHM employees to transport people as needed. What a beautiful environment for healing this would be. Maybe even let people staying there participate in yard work, to maintain it, maybe set up a vegetable garden, maybe some physical activities? If nothing else it has beautiful grounds for picnic tables and groups to sit and enjoy each others company as we all do with friends, instead of only having sidewalks and pavement to sit on.

You were all elected, appointed, or called to duty, to help make Bellingham, and Whatcom County a better place for all. The homeless are part of all and it would be so nice to put them in a place that feels more like a home that has grass and trees and safety and shelter; the young business people who have put their savings, hearts and souls into their shops are also part of all and deserve a chance to thrive as well. Use your smarts, creativity and conscious to make a better decision on this project, instead of taking the "easy out". I believe all of you can work together to make this work, so it is best for all.

I went online last night to just see for myself if there were other, affordable, options that might be considered for a viable shelter.
In doing some research on this exciting location, I have become convinced that it is a viable and superior option for a homeless shelter. I am including a Google Earth shot to show that it is truly a perfect location away from commercial and residential properties, and it is a property of the Port of Bellingham. Since it was a former training facility, it is likely to be well set up with all the necessary facilities: kitchen space, abundant living space indoors and out, classrooms that could be set up as dormitories, and bathroom facilities already in place. There is a large outdoor grassy area providing a healthy environment. It is currently surrounded by woodlands which is an ideal buffering environment both for the residents and for neighbors. With the low cost of the property, the Lighthouse Mission and city services could have in-house offices, counseling, and needed services on site. The LHM could offer bus transport two or more times daily with their vans for those that need to go to town. The property could house a van of it's own for services needed by residents. I personally think it a better location and setup than the current LHM, and obviously far better than the proposed site in the Central Business District.
Negative reactions will say it is too far away for mental health or counseling services, but these could be supplied in-house as a more efficient and cost effective solution than downtown offices. The people who work at LHM could rotate with this location.
This is a rare opportunity to provide a healthier environment than downtown, at a very reasonable cost, and doing this without negatively impacting residential neighborhoods or small business districts. Please consider this as a viable option.

Respectfully submitted,
Janet Crews

https://www.northsoundcommercial.com/listings/3928-williamson-way-bellingham-wa-98225-airport-industrial-park/

3928 Williamson Way Bellingham, WA 98225 – Airport Industrial Park

$1.00 /Sq. Ft.

- Sq Ft24000
- Lot Size222156 Sq Ft
- TypeIndustrial
- Property ID#552818

<552818-818x540.jpeg>

-
- Location

- Nearby
- Contact

Airport Industrial Park (Status: Available)

3928, Williamson Way, Bellingham, WA 98225

Former training facility, Office space, Class room, Warehouse and storage

Listing Details

Asset Class: Industrial
Year Built: 1946
Building Total Square Feet: 24000
Available Lease Space Square Feet: 24000
Number of Floors: 1
Total Parking Spaces: 0
Local Zoning Information:

<CBA_Logo_Menu.png>

Listing Courtesy of: Port of Bellingham

Disclaimer: The information contained in this listing has not been verified by North Sound Commercial, a division of Pacific Continental Realty, LLC and should be verified by the buyer, seller, or tenant.

What's Nearby?

Bank

Google Places API is currently unavailable.

You must specify a valid listing location, use street address in the listing title along with city, state & zip/postcode — if not use the optional latitude & longitude field.

- Unfortunately, your request was denied, generally because of lack of an invalid key parameter.

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:30 PM
To: Kerr, Monea J.
Subject: FW: Large Downtown Homless Shelter

Importance: High

From: Sundin, Tara J. <tsundin@cob.org>
Sent: Tuesday, June 9, 2020 10:57 AM
To: Sepler, Rick M. <rmsepler@cob.org>; Keller, Janice L. <jkeller@cob.org>; Ruffatto, Peter M. <pruffatto@cob.org>
Subject: FW: Large Downtown Homless Shelter
Importance: High

Factual issues here.

From: Heather@PacificContinentalRealty.com <Heather@pacificcontinentalrealty.com>
Sent: Tuesday, June 9, 2020 10:56 AM
To: Sundin, Tara J. <tsundin@cob.org>
Subject: FW: Large Downtown Homless Shelter
Importance: High

See below, this is unfortunate. I did not get this but KC did. Just want to reiterate that I have kept this confidential besides my managing brokers and Jeff Hopwood.

Heather Baker

Property Asset Manager | Commercial Broker
Pacific Continental Realty, LLC
114 W Magnolia St #201 Bellingham, WA 98225

mobile: 360.927.0639 | office: 360.671.4200 x105 | fax: 360.647.0894

From: KC Coonc [mailto:KC@northsoundcommercial.com]
Sent: Tuesday, June 09, 2020 10:53 AM
To: Heather@PacificContinentalRealty.com
Cc: Ryan A. Martin <Ryan@northsoundcommercial.com>
Subject: Fwd: Large Downtown Homless Shelter

The Market

KC Coonc - Designated Broker - Co-Owner

North Sound Commercial - Pacific Continental Realty, LLC

114 W Magnolia Street, Suite 201

Bellingham, WA 98225

360.305.9977 Mobile

KC@NorthSoundCommercial.com

NorthSoundCommercial.com

---------- Forwarded message ---------
From: **Ken Reinschmidt** <ken@saratogacom.com>
Date: Tue, Jun 9, 2020 at 10:45 AM
Subject: Large Downtown Homless Shelter
To: Dianna Del Giorgio <delgiorgio@me.com>, Amia Froese <amia@saratogacom.com>, Keith Taylor <keith.taylor@wafd.com>, Tom Pozarycki <tom.pozarycki@wafd.com>, Chris Renoud (Chris.Renoud@fse.com) <Chris.Renoud@fse.com>, Hal Reardon <hal.reardon@gmail.com>, Don G Reardon <dgreardon@gmail.com>, Anne-Marie Faiola <anne-marief@brambleberry.com>, kane@daylightproperties.net <kane@daylightproperties.net>, Jim@pacificcontinentalrealty.com <Jim@pacificcontinentalrealty.com>, KC@NorthSoundCommercial.com <KC@northsoundcommercial.com>, John.Walton@waltonbeverage.com <John.Walton@waltonbeverage.com>, John and Janet Crews (jjcrews@me.com) <jjcrews@me.com>
Cc: Lydia Bennett <lbennett@ccim.net>, CSD - Richard Davis <rdavis@chmelik.com>, Frank J. Chmelik (fchmelik@chmelik.com) <fchmelik@chmelik.com>, jsitkin@chmelik.com <jsitkin@chmelik.com>, Hannah Cano <hannah@saratogacom.com>, Mark Lee <mark@bellinghamlegal.com>, Heather Wolf <heather@bellinghamlegal.com>, archer@archergroup.com <archer@archergroup.com>, dkoellmann@anchorqea.com <dkoellmann@anchorqea.com>, Harold Cashman <hjcashman@whatcom-es.com>, Bob Pritchett <bob@faithlife.com>, David Johnston <david@clearstoryinvestments.com>, Troy C. Muljat (troy@muljat.com) <troy@muljat.com>, Jeff Kochman <jkalaska2011@gmail.com>, Alice Clark <alice@downtownbellingham.com>, Brian Finnegan <brian@westcomproperties.com>, Tim Potts <TPotts@carmichaelclark.com>, Greg Grant <greggrant@cbbain.com>, robbd@theunitygroup.com <robbd@theunitygroup.com>

Hello Business Owners, Professionals working downtown, and Property Owners,

I would like to bring your attention to something that is rapidly developing in our downtown core.

The City is subsidizing the Lighthouse Mission in signing a long-term lease and option to purchase for the Market Building on Cornwall (old Safeway), with the plan for a low barrier homeless shelter. I think they would like to have it up and running by end of summer and move the shelter out of Bellingham High School.

The City has made a concerted effort to keep this information from the public and so has the Lighthouse Mission. I find this lack of public process the most disturbing part of this development.

It is questionable that a low barrier homeless shelter is an allowed use for the zoning and if it is, the City will need to approve a variance. That should not happen behind a closed curtain.

The properties adjacent to the Public Market Building will be most impacted with vacancy, lower rent, and lower property value. Because of this, Frank Chmelik is acting quickly and funding efforts to create a business and property owner coalition. Frank is funding a public relations firm and a third party law firm to begin an effort to demand public input and protect our fragile business environment downtown from being a sacrificial lamb in the Cities struggle to solve this problem. It is our opinion that a large shelter downtown will create an overwhelming burden for those who live, work, and do business downtown.

I personally feel that putting all of the homeless folks in one place, out of sight behind a fence, and letting them come and go into one single neighborhood is not good for our community, and not necessarily good for those who we are trying to help.

Are you willing to put your business name, and/or personal name on this coalition list of members? We are also trying to set-up an informational meeting as soon as tomorrow. I will keep you posted.

Here is something else to think about. Lydia and I, as commercial real estate brokers are currently working with two different businesses interested in remodeling (making large investment) and locating in the vacant brick warehouse on North end of Railroad, at 201 Champion. One was a local and growing bakery and the other is a couple who are selling their two successful restaurants in Seattle and wish to build a restaurant downtown. The Bakery has pulled their offer because of this development, and we fear the restaurant use will do the same. Locating of a large homeless shelter downtown has already begun to make significant impacts of the future health and growth of downtown.

Please forward this email to other interested parties that I have not included on this email list. I do not have email address for every business and property owner downtown.

Best Regards,

Ken Reinschmidt

Saratoga
commercial real estate

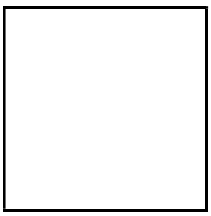
228 E. Champion Street, Suite 102

Bellingham, WA 98227

Office: 360-676-4866

Fax: 360-733-8008

brokerage I consulting I management



Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:29 PM
To: Kerr, Monea J.
Subject: FW: Low Barrier Homless Shelter

From: Ken Reinschmidt <ken@saratogacom.com>
Sent: Tuesday, June 9, 2020 9:03 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: FW: Low Barrier Homless Shelter

Dear City Mayor Fleetwood,

I am writing to express concern and shock that the City has been working with the Lighthouse Mission to place a low barrier shelter at 1522 Cornwall. My concern and shock is because there has been no public process, and in fact City staff has sought secrecy from the public in their zeal to make this happen. I spoke with eye witnesses who observed City staff imploring private citizens to keep this matter secret. Is that even legal? At the very least I think a secret process such as this is un-American and against everything our country stands for.

As the City and County consider their shared cost of this shelter there are many more costs to be considered than just the direct costs of the lease (or, the alternative cost of installing temporary buildings at the City owned property at 600 W. Holly -- the old "Sash and Door " site -- which was found to be "more expensive"). I am very confident that the loss in property values, business revenues, business closures, and lost jobs will far exceed the current investment of $1.5 million by the City and the County. I owned and managed Saratoga Commercial Real Estate for over 15 years and am proud of the role I played helping to re-vitalize Railroad Avenue since 2005. I have personal experience managing downtown property and dealing with the enormous burden and impact of the homeless on business. How can the City and County justify placing this burden on a small number of citizens who are unfortunate enough to own property or operate businesses near 1522 Cornwall? If this cause is for the greater good, everyone should bear the burden, not just a few of our citizens, and that cost should be considered. I suspect that part of the motivation to keep this secret is that City and County councils and staff wish to distance themselves from the future negative outfall of loss of businesses and vibrancy in our downtown core. Downtown business owners, professionals who work downtown, and property owners will definitely feel betrayed by our leaders.

Why does the City keep taking the City-owned property at 600 W Holly off the table for consideration? The most recent excuse is that the Parberry family has a development option for the site. Really? The Parberry's have no track record in successful re-development. I would say they have the opposite record as demonstrated by their decaying buildings. I have seen absolutely nothing happening at 600 W Cornwall and suspect the Parberry option is in default for lack of performance, and that the City is using this supposed agreement to keep the unlikely dream of an "urban village" at that site. Before we sacrifice the vibrancy of downtown, 600 W Holly needs to be seriously considered for the homeless shelter for the following reasons.

1. It is zoned industrial and has been for a very long time and there will be far less negative economic impact.
2. Nothing is happening there; most probably Parberry has not performed on their option contract.
3. There are fewer business and residences that adjoin this site.
4. There are viable large structures available that can rapidly be constructed for temporary use, or FEMA style structures can be mobilized onto the site for temporary or permanent housing.

6. 600 W Holly actually meets the criteria that the homeless shelter needs to be located near the Lighthouse Mission.

I will repeat myself, why is 600 W Holly NOT receiving serious consideration for temporary homeless shelter? This is the sort of question that should be given serious consideration and debate in a public format – not in secrecy.

This secret process has kept public input from reaching government leaders such as yourselves and it also keeps the good ideas that are formulated by the City from reaching the public. For instance, good design features for homeless shelter are probably being considered, such as abundant bathrooms, screening fences, on site courtyard, etc. The public has no information about such things. We are all in the dark on this and it is more than frustrating, especially since our financial futures are also on the line.

I look forward to your reply addressing my concerns.

Best Regards,

Ken Reinschmidt
Downtown Business Operator, property owner, and passionate advocate for downtown Bellingham

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:28 PM
To: Kerr, Monea J.
Subject: FW: Request for Special Meeting Notice and request for meeting

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Tuesday, June 9, 2020 7:51 PM
To: Knutson, Gene R. <gknutson@cob.org>; MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Ruffatto, Peter M. <pruffatto@cob.org>
Cc: council@co.whatcom.wa.us
Subject: Request for Special Meeting Notice and request for meeting

Seth, Gene, and Peter,

First, I request notice of any special meeting wherein action will be taken on an agreement with the Cornwall property low barrier shelter site.

I am working with the North Downtown Property and Business Owners Working Group. We would like to meet with the Mayor and the Mr. Knutson to explain our position. Our working group wanted to discuss the following with you.

- First, we now have heard from several people that City employees asked people who were consulted about this project to keep it secret in an apparent attempt to keep the plan away from the citizens most impacted. This lack of transparency is unlike the City and is unacceptable in a democracy. As we have said a crisis is not the time to be less transparent but a time to be more transparent. Many folks watched as Ms. Sunden told the City council on Monday night that three sites were being looked at only to hear that a completed agreement was placed into the hands of the property owner Tuesday morning.

- Second, many North Downtown (indeed Downtown) businesses are fragile because of the Covid-19 pandemic. This will cause many to go out. The great strides the City has made in the downtown will be lost. This will result in loss of employment.

- Third, the true cost of this project is well over $1.5 million dollars. Here the City has ignored the cost it has unilaterally decide to impose on downtown property owners, businesses, and employees. We are told that the greater public good of 100 homeless folks requires us to make the sacrifice. This even though the 2018 study found the nearby County parking lot unsuitable because of its distance from the LHM and its proximity to the Walton Place development where many recent homeless people are taking the first steps away from the street environment. We all agree that this is a societal problem that we should address. But then should not society bear the complete cost of the solution? Two or three years from now the damage will have been done and the downtown will have been set back another decade.

- Fourth, this site will not be a quick solution. I believe that a conditional use permit will be required, and that litigation will ensue. One member of our group has retained separate counsel to bring a nuisance lawsuit against the property owner. I know the City was successful in defense of a similar action, but this action will be based on a property owner's duty.

- The best site is the Sash and Door site. I understand the City's desire to change the use that has existed from the 1920s. However, this ignores the development there has occurred around the existing LHM (1954) and Parberry (1923) over many years. This is the second attempt at a development agreement with Parberry and neither has been successful because the market prefers the current use.

Frankly, it is sad to see the ends being used to justify the means because that approach serves only to erode public confidence in governmental institutions. It is time to stop and talk to our group with candor and at least a little empathy as the City moves to impose a heavy burden on a few.

I would appreciate an opportunity to have members of our group speak to you. I look forward to your reply.

Respectfully,

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:28 PM
To: Kerr, Monea J.
Subject: FW: Homeless Shelter at the Public Market

From: Monika Lange <monika@shake-and-shine.com>
Sent: Tuesday, June 9, 2020 5:36 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Homeless Shelter at the Public Market

Dear Mayor,

I have learned today that the city is planning on opening a homeless shelter in the Public Market. A homeless shelter has implications for my business which is located close to the market.

I am hereby filing my complaint that this project is being advanced without public involvement and feedback by the merchants that will be strongly affected by this.

Sincerely, Monika Lange

--
Monika Lange
Shake & Shine - Canine Wash and Deli
1501 N State Street
Bellingham, WA98225
PH: 360 296 5226
www.shake-and-shine.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:27 PM
To: Kerr, Monea J.
Subject: FW: Low barrier shelter

From: Sundin, Tara J. <tsundin@cob.org>
Sent: Tuesday, June 9, 2020 4:27 PM
To: Raney, Brooksana B. <braney@cob.org>
Cc: Heinrich, Brian M. <bmheinrich@cob.org>
Subject: FW: Low barrier shelter

Please keep track of all public comment for Council packet.

From: Lydia Bennett <lbennett@ccim.net>
Sent: Tuesday, June 9, 2020 3:48 PM
To: Sundin, Tara J. <tsundin@cob.org>
Cc: Ken Reinschmidt <ken@saratogacom.com>
Subject: Re: Low barrier shelter

I can't imagine having to homeschool. I applaud all of you with kids home.

Sooo...just heard that this is probably going to happen despite the lack of public input and the secrecy with which it was pursued (does the Council know that people were asked to "keep this secret"?). I watched the recording of the City Council meeting last night.

There will be so many businesses that leave downtown. Guaranteed. Glad to know the homeless have now more importance than:

- businesses that pay taxes to support the homeless,
- business people that pay taxes to support the homeless,
- citizens who like to go downtown and pay taxes to support the homeless people, and
- the health of the downtown

Does anyone in the city know how to do the math relative to the short-term "easy" fix (this lease) vs. the long-term cost to the City (businesses leaving, vacant buildings)? Clearly not. This is truly ridiculous.

Please pass this along to the Council and the Mayor. Thanks.

Lydia Bennett, CCIM, CPM
Commercial Real Estate West Coast
lbennett@ccim.net
360-224-6600

On Tue, Jun 9, 2020 at 2:53 PM Sundin, Tara J. <tsundin@cob.org> wrote:

> Thanks, Lydia. I'll be sure to pass your feedback along.
>
> My family is ok but having a 16 year old is a little rough (covid just makes it harder). Then again, I feel for the parents with youngsters trying to work from home. Hope you guys are ok, too. Extremely challenging times.
>
> -----Original Message-----
> From: Lydia Bennett <lbennett@ccim.net>
> Sent: Tuesday, June 9, 2020 1:56 PM
> To: Sundin, Tara J. <tsundin@cob.org>
> Subject: Low barrier shelter
>
> Hey Tara -
>
> Hope you and your fam are doing well. Crazy times right now...
>
> Concerned with 1) the low-barrier shelter going anywhere downtown, and 2) the “secrecy” with which it’s been pursued.
>
> The health of the City and the businesses downtown are at stake - not to mention the City budget and reputation. And, calling this an “emergency action” so as to avoid any public input — which you know would be overwhelming against this action — goes against everything democratic in our form of government.
>
> This placement of the homeless shelter downtown cannot happen. It needs to go in the Irongate area.
>
> Thanks for listening.
>
> Lydia
>
> And PS: it would be really informative to learn how long our each of our “unhoused” people have lived in this area, but I understand that information is suppressed by homeless advocates. I’ve heard that a large percentage have traveled to Bellingham because we have “free” services. Without factual information to the contrary, many voters, taxpayers, and business owners believe that to be true, including me. Do you have any data about that? Thanks again.
>
> Lydia Bennett, CCIM, CPM
> CRE West Coast
> Lbennett@ccim.net
> 360-224-6600

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:26 PM
To: Kerr, Monea J.
Subject: FW: LHM Downtown Shelter Alternative Ideas
Attachments: Bellingham Shelter 6620.pdf

From: John and Janet Crews <jjcrews@me.com>
Sent: Tuesday, June 9, 2020 10:26 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; Lilliquist, Michael W. <mlilliquist@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Stone, Hannah E. <hestone@cob.org>
Subject: LHM Downtown Shelter Alternative Ideas

Janet

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:25 PM
To: Kerr, Monea J.
Subject: FW: Public Comment for Bellingham City Council Meeting on June 8, 2020
Attachments: Contract 2019-0116 with PARBERRY'S INC, NORTHWEST RECYCLING INC., PARBERRY FAMILY LIMITED PARTNERSHIP.pdf

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From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Monday, June 8, 2020 5:36 PM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Stone, Hannah E. <hestone@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>; abarker@cob.org
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Public Comment for Bellingham City Council Meeting on June 8, 2020

Honorable City Council Members,

As many of you know I m a lawyer in a firm with offices at 1500 Railroad Avenue. In the last two days, I have received a number of calls from concerned small business owners on the north side of downtown that are very concerned about a rumor that the Light House Mission (with City and County support) is attempting to lease the former Safeway grocery store at 1530 Cornwall Avenue for a shelter to be used for 3-4 years while LHM rebuilds its Holly Street facility. The information was "leaked" to a downtown business owner by City employees who were concerned about the lack of public process and the secrecy under which the City was operating. That employee. I understand, was instructed to keep the transaction secret. I know that some say a crisis, like the Covid-19 pandemic, should not be wasted. But Honorable City council members, it is just the opposite. During the crisis our governments must work extra hard to be transparent and fair minded.

The one request I keep hearing from the neighborhood is for transparency before a transaction or decision is made. It is transparency from the City leaders and County leaders is a community decision which necessarily relies on funding support from the City and the County. True to long standing City process one would expect the Downtown Bellingham partnership to be consulted the proposed action be published for public comment.

I heard about this and had to search the agenda of the committee of the whole and the regular agenda to find the interlocal funding agreement from the County and the City which may provide funding for this project. This is not in the finest traditions of the City government and County government we all support. I asked that any decisions be postponed until our City and County governments clearly and publicly articulate the plan and seek to hear from the people that will be affected by their decision. The Covid-19 crisis should not be used and an excuse to take dramatic action on an issue that has been under discussion for at least two years.

By way of background, the businesses at this end of the downtown are all small family owned businesses that have invested in downtown Bellingham with the encouragement of the City and the implicit promise from the City that their efforts would be supported. Indeed, the City's Downtown Subarea Plan adopted in 2014 notes that it is an important goal of the City to encourage a vibrant downtown. The ten core visions in the plan speak to the importance of a "safe and friendly" downtown. The transformation and progress envisioned in 2014 has been slow in coming but one can see

measurable progress in the last five years. And the City has helped and encouraged this transformation. While other downtowns in our state are struggling, Bellingham's is growing and succeeding. It is the jewel of our community that should be protected. The downtown has become a destination for dinning and small family owned shops. Unfortunately, the Coronavirus has taken a significant toll and weakened these businesses. One only has to look at the recent experience of Bellingham High School where homeless folks left the Bellingham High School campus to spread out into the surrounding community. The downtown business community is frightened and is not in a position to absorb the shock of a homeless facility. Indeed, the City continues t support the downtown with an idea to allow more outdoor seating. Would not a homeless shelter work at cross purposes to that effort?

Likewise the City will need to be transparent about why in March of 2019 in the midst of a search for more shelter space for the LHM mission it chose to provide a ten year purchase option to Northwest Recycling for no consideration from Northwest Recycling and why the City elected to preclude a low barrier shelter at 600 W Holly Street (the old Sash and Door Site) without any consideration paid (see section 5 of attached agreement). Milestone No. 1 required that Northwest Recycling to have entered into an agreement by December 7, 2019 to purchase or lease a property suitable for relocation of Northwest Recycling. Also, Northwest Recycling was required to submit a Redevelopment Strategy by September 7, 2019.

> Milestone 1
>
> (a) Parberry enters into an agreement to purchase or lease a property suitable for relocation of Northwest Recycling (the "Replacement Facility") and executes a lease or closes on the property within ten (10) months of execution of this Agreement, and (b) submits a written Redevelopment Strategy within six (6) months of the execution of this Agreement

Now what is the City's current position now that Northwest Recycling has apparently failed to perform?

It seems that the Sash and Door Site is the most appropriate place for a three to four-year temporary facility. The Agreement with Northwest Recycling precludes only **a low barrier shelter**. The City could locate other LHM facilities on the Sasha & Door site (except for a low barrier shelter) thereby freeing up existing LHM facilities off its main campus for a low barrier shelter. This could be done without the pay (see section 5 of the attached agreement). This would save tremendous public resources and would not put the downtown at risk. This is especially true as the City considers an ordinance to allow more outdoor seating.

On behalf of all our neighbors in the Northern Downtown Area and the Arts District I respectfully request that any decision be made in the light of day only after the public is given a meaningful opportunity to comment and only after the Bellingham City staff explain the reasoning to jeopardize the downtown for a dream of a revitalized Old Town District which surely is much more than four years away.

I am on the east cost at Ft. Lee Virginia visiting my son, an Army officer, before his planned deployment to Germany. I can be reached on my cell phone at 360-223-5633 if you have any questions. I will be back in Bellingham late tomorrow night.

Respectfully

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98229
Direct: 360.306.3001
Cell: 360.223.5633

Office: 360.671.1796
E: fchmelik@chmelik.com
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Legal Assistant Sara Sweetin
Ssweetin@chmelik.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 2:25 PM
To: Kerr, Monea J.
Subject: FW: Protect the Central Business District

From: John and Janet Crews <jjcrews@me.com>
Sent: Tuesday, June 9, 2020 7:21 AM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Protect the Central Business District

June 9, 2020

Dear Mayor Fleetwood,

Two issues have recently come to our attention that are of great concern to us as the owners of the commercial building located at the corner of Railroad and Champion Streets that is home to five wonderful downtown family businesses.

Our first concern is the proposal to open a low-barrier shelter in the building on Cornwall Ave. that formerly housed the Public Market. The north end of Railroad Ave. went through a very troubling period about fourteen years ago that made it extremely challenging to open and maintain small family businesses in the face of societal elements that were directly or indirectly detrimental, and sometimes overtly hostile, to a small businesses survival. When we undertook the revival of this neighborhood fourteen years ago, the corner of Railroad and Champion had become overrun with dozens of unruly people who were daily converging on, and trampling, a large city planter that used to be on that corner before the city had to remove it to help quell the problems. It was a center for open drug dealing and prostitution which we and our tenants had to personally confront on a daily basis. People were afraid to walk through that area, and downtown shoppers were sometimes unwilling to even get out of their cars.

After a wonderful cooperation between the dedicated officers of the BPD, the Downtown Bellingham Partnership, and the brave efforts of young business owners who were willing to stand up for their rights to operate their dream businesses, the neighborhood was eventually turned around and has become a model of urban revitalization. Now those same young entrepreneurs are terrified that what they have accomplished will be destroyed by returning this neighborhood to its former dangerous and unhealthy state.

We understand that the recent Corona virus pandemic has hit homeless people very hard, and we sympathize with efforts to help. However, families that own small businesses are also being hit very hard and are also struggling to survive. The thought of this neighborhood being intentionally sacrificed and reverted to its former unhealthy state is truly terrifying to small business families. These small business owners have tough memories from those days of fourteen years ago of having people urinate and defecate in their doorways, having graffiti painted on their storefronts and rocks thrown through their windows, having drugs and prostitution in front of their shops, and having customers too afraid to get out of their cars or walk to their businesses. To add the bleak possibility of this returning into their lives on top of what they are already dealing with is unbelievably unfair and short-sighted. If the City of Bellingham wants to see a vibrant and healthy downtown emerge from the current pandemic, it must not throw fuel on the current stresses by putting a low-barrier shelter within, or even near to, the boundaries of the Central Business District. This would be urban and business-district planning at its most irresponsibly worst, if not illegal. Displacing the homeless into a Central Business District has never been a wise or healthy idea for any concerned. We have heard an argument that the proposed shelter location would be temporary for only three or four years, but small businesses in the area would likely not survive that period, so this temporary action will have devastating permanent consequences to family businesses in the area.

Now to my second concern, which is in some ways even more disturbing. In attempts to look into whether this rumor was true, it came to light that more than one person had been told by city government officials to keep it a secret and not to let

the public, or specifically downtown businesses, know about what might be happening. If this is true, it is both surprising and disconcerting. Having government officials instruct people to intentionally hide critical information from the public, especially those directly concerned with the issue, is not something that we would expect from city officials.

The City of Bellingham has for many years worked hard to support downtown and the small businesses that are critical to its healthy survival. These efforts are gratefully acknowledged and appreciated. The City's ongoing support and transparency in working with downtown family businesses is necessary if downtown Bellingham is going to survive the current pandemic and its economic consequences.

On behalf of ourselves, and the family businesses in downtown Bellingham that are struggling for survival during this challenging time, we strongly implore you to not allow a shelter to be located in or near what has been set aside as a Central Business District which many have worked so hard to clean-up and revitalize. We further ask that if this unwise action is going to be considered, it must immediately be brought before the public eye and not be cloaked in a secrecy that belies the public trust.

Thank you for listening to our concerns.

Sincerely,

John and Janet Crews

jjcrews@me.com 808-298-4189

Kerr, Monea J.

From: tallie@mindport.org
Sent: Sunday, June 14, 2020 1:09 PM
To: CC - Shared Department
Subject: Drop-In Center-additional comments

Dear City Council Members,

Last week I expressed support for the move of the Drop-In Center from Bellingham High School to the Bellingham Public Market. This morning I would like to add some additional nuance to my view.

a) I would like Bellingham to actively pursue other relationships and other methods of sheltering people than concentrating so many resources on one big shelter run by an organization that has a religious affiliation. Not everyone feels comfortable nor supported by the Light House Mission. Some do, others don't, and we need safe places for everyone.

b) There need to be more unsheltered people on the Homelessness Strategies Workgroup. Devising solutions without involving the people who are encountering the problem is disrespectful and inefficient.
People who are unsheltered are the experts on how it feels to be unsheltered and what they want and need, and they will help come up with good solutions.

c) Spreading shelters or tiny house villages throughout the city and county does a better job of incorporating unsheltered people into neighborhoods than a single large institution does. The majority of my neighbors in Sunnyland were very happy to have a Homes Now tiny house village in the neighborhood, and it allowed unsheltered people to become neighbors, not anonymous people receiving services through a big institution.

d) Winter is still coming, and with it, the flu and freezing temps as usual, and in addition COVID-19. We need to work now in identifying and prioritizing funding to protect unsheltered people over the winter.

Sincerely,

Tallie Jones

Sunnyland Neighbor
Director, Mindport Exhibits

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 5:08 PM
To: Kerr, Monea J.
Subject: FW: Concerns re Cornwall/Public Market Low-Barrier shelter

For Public Comment

From: Anne-Marie Faiola <anne-marief@brambleberry.com>
Sent: Monday, June 15, 2020 4:39 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Concerns re Cornwall/Public Market Low-Barrier shelter

Dear Seth,

I am writing about the unsuitability of the proposed low barrier shelter drop in location on Cornwall Ave / Public Market site. As a retailer who had a retail store in downtown Bellingham for 12 years and had to close it due to safety concerns expressed by staff (which led to an having to double staff the store at all times, which led to the store not being profitable), I am particularly concerned about the location of the proposed shelter. Low barrier means that people can come that are still using substances, drugs and alcohol. As I found out when I owned a store at the corner of Holly and Cornwall, it's a safety issue when you have folks under the influence.

Specifically, there are a variety of businesses across the street from the currently proposed location that cater primarily to women (a bridal store, a dance fitness center and a hair salon). Additionally, one of my locations is two blocks over and employs only women at that location. The women who park behind the Public Market site and walk to our Unity Street location have already have expressed concerns about parking in the city lot behind the building, describing it as "sketchy". This will make it feel more unsafe for them.

A study, titled, Effect of Emergency Winter Homeless Shelters on Property Crime published in Journal of Experimental Criminology found that there was a 56% increase in property and mischief crime, including breaking and entering residences, in Vancouver for a 2-3 block radius around shelters (400 meters). Quoting directly from the study, "*These findings indicate that greater security or policing intervention may be necessary to minimize the potential negative effects shelters have on the surrounding community and to address crime that was committed."*

There is a proposal out to utilize the space at the former courthouse annex north of the courthouse and west of city hall as a temporary low barrier housing solution for Covid. Additionally, the south end of the Bellingham Police Department Parking Lot could be utilized for that. If this is as stated, a Covid related problem, truly temporary is an acceptable solution and as a bonus, would quality for CARES act funds. . Additionally, Sheriff Elfo publicly supports the use of the courthouse annex site. The courthouse site is surrounded by grass and trees, is closer to services, and had a building on it already so the sewer and water is already there. Additionally, the idea of having multiple smaller shelters around the city to serve the different needs of those experiencing homelessness is one that multiple cities have adopted to better success. A large 200 person drop-in shelter is far too many people in one building, especially during a pandemic.

I commend the city on the clear sense of urgency they have to help people experiencing homelessness during Covid. This is essentially a big warehouse where we just stick people at night. Rehousing doesn't happen in a vacuum. It takes real work and real focus and prioritizing that. If you can't get people back into housing, there will always be full shelters, no matter how many are built.

At best, shelters are a stopgap measure to put a temporary roof over the heads of people who need permanent, stable housing. Yet, Bellingham has utilized shelters as a fundamental component of our response to homelessness.

Having said that, there are better sites where these issues would not arise. The Courthouse Annex and the Sash and Door sites are government owned and so the length of its use as a shelter can easily be controlled. The Courthouse Annex and Sash and Door sites are situated such that the shelter will have little or no impact on surrounding private property because it is government owned or industrial.

Additionally, I am concerned about the speed and lack of transparency that has happened during this process. The problem with secrecy is not only do you lose the trust of the citizens but you also use the benefit of the creativity and experience that the citizens can bring to the table in helping to find a solution to any government problem. This feels like a deal that was already done behind closed doors, with little to no impact from the public or businesses most affected by this.

Please slow this process down to involve citizen input, and allow for more time to review and take another look at other locations previously identified for this low-barrier shelter,

Regards,

Anne-Marie Faiola

Unity Street

CEO, Bramble Berry Inc.

360-220-5873 cell

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 5:36 PM
To: Kerr, Monea J.
Subject: FW: Low Barrier Shelter at 1530 Cornwall
Attachments: City of Bellingham_2020-06-15.pdf

From: Tom Pozarycki <tom.pozarycki@wafd.com>
Sent: Monday, June 15, 2020 5:20 PM
To: Lilliquist, Michael W. <mlilliquist@cob.org>; Stone, Hannah E. <hestone@cob.org>; Vargas, Pinky T. <ptmvargas@cob.org>; Knutson, Gene R. <gknutson@cob.org>; Huthman, Hollie A. <hahuthman@cob.org>; Anderson, Lisa A. <laanderson@cob.org>; Hammill, Daniel C. <dchammill@cob.org>
Cc: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Low Barrier Shelter at 1530 Cornwall

Dear Bellingham City Council members.

During the past few days I was the recipient of a flurry of emails about a surprise low barrier shelter being planned for a building adjacent to my office in downtown Bellingham.
The attached email expresses my concern.

I registered to attend tomorrow's online council meeting and look forward to the conversation.
Stay safe during these trying times.

Sincerely,

Thomas R. Pozarycki
Regional President

WaFd Bank

425 Pike Street, Seattle, WA 98101
206-626-8505 Office
425-785-6133 Mobile
tom.pozarycki@wafd.com | WaFdBank

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1500 Cornwall Avenue
Bellingham, WA. 98225

June 15, 2020

To the Bellingham City Council:

Hannah Stone, Gene Knutson, Daniel Hammill, Pinky Vargas, Lisa Anderson, Michael Lilliquist, Hollie Huthman

I am writing to express my concern regarding the establishment of a minimum barrier shelter at the former Public Market site on Cornwall Avenue. This location is adjacent to one of our retail bank branches located at 1500 Cornwall Avenue, which is also home to our regional commercial banking headquarters.

I respectfully request a dialogue with city staff, elected officials and other stakeholders to thoroughly review this location as well as consider other, more appropriate locations. Why has there been no opportunity for public comment?

The establishment of a minimum barrier shelter at 1530 Cornwall will have an immediate adverse impact on the downtown business community. Specifically, businesses located next to this proposed minimum barrier shelter are at greatest risk. WaFd Bank can speak directly to the adverse impact facilities like this have on downtown businesses based on our experiences in other Washington cities such as Seattle.

Additionally, I trust the allegations that city staff held private meetings to advance the establishment of this minimum barrier shelter downtown without input from the business community is only a false rumor. Transparency in government is expected, as is accountability.

WaFd Bank is deeply committed to Bellingham, its diverse residents and its many businesses. We are also committed to serving the most needy in our community. Those experiencing homelessness need assistance and we, as a business community, have an obligation to be part of the solution. Government cannot nor should not try to solve this complex problem alone.

We have a collective responsibility to be transparent with each other as we build a downtown core to serve the needs of our businesses and residents. Government and business can work together to both improve the lives of those experiencing homelessness and maintain a vibrant and safe downtown business community.

WaFd Bank welcomes the opportunity to be part of the solution. **Please confirm when we can meet before any decision is made regarding the establishment of a low barrier shelter at 1530 Cornwall Avenue.**

Respectfully,

Thomas Pozarycki

Thomas Pozarycki

Regional President
WaFd Bank
206-626-8505
Tom.Pozarycki@wafd.com

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Monday, June 15, 2020 6:12 PM
To: Kerr, Monea J.
Subject: FW: In Support of Tera Organica building used as Drop In Center

-----Original Message-----
From: ellegasperini@gmail.com <ellegasperini@gmail.com>
Sent: Monday, June 15, 2020 6:03 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: In Support of Tera Organica building used as Drop In Center

Hi Mayor Fleetwood,

I want to express my support of the use of the Tera Organica building as the drop in center when they have to move out of Bellingham High School, especially while COVID is still a concern.

Thank you,

Elle Gasperini
Bellingham citizen

2819 Cottonwood Ave, Bellingham WA 98225

Kerr, Monea J.

From: CSD - Frank Chmelik <fchmelik@Chmelik.com>
Sent: Monday, June 15, 2020 8:54 PM
To: Lilliquist, Michael W.; Anderson, Lisa A.; Vargas, Pinky T.; Huthman, Hollie A.; Stone, Hannah E.; Knutson, Gene R.; Hammill, Daniel C.; council@co.whatcom.wa.us; ssidhu@co.whatcom.wa.us
Cc: MY - mayorsoffice@cob.org; Bill Elfo; Mike Hammes; hanse@thelighthousemission.org; Ken Reinschmidt; Dianna Del Giorgio; Lydia Bennett; Chris Renoud; John and Janet Crews; Ruffatto, Peter M.; Bruce Gryniewski; Pratt, Denver; kgmi@kgmi.com
Subject: RE: Proposed low barrier shelter - One more week and one more comment

My apologies- two more thoughts based upon the lease we just all received. But, please read my email of earlier this evening.

The lease itself contemplates City council approval by June 24th. Please Rad Paragraph 1.3 of the Lease. It contemplates approval by City Council before June 24, 2020 (see below). The lease itself contemplates another 9 days for the City Council to act. Indeed, if approval is not obtained by June 24, 2020 the City alone has authority to terminate the lease until July 15, 2020. The real deadline for City council action under the lease is July 15, 2020. I quote section 1.3 of the lease below. The underlines are mine

1.3 City Council Approval. The essential lease terms contemplated by this Lease and the Interlocal Cost Sharing Agreement Related to COVID-19 Health Crisis between the City and Whatcom County must be duly approved by the Bellingham City Council. The City Council's decision regarding approval is wholly discretionary. If City Council approval is not obtained by June 24, 2020, this Lease may be terminated by Lessee, at its sole discretion, by providing written notice of termination to Lessor, in which case neither party will have any further rights or obligations under this Lease. The right to terminate this Lease set forth in this Subparagraph 1.3 shall expire on July 15, 2020.

Now the City has all the control of this transaction. It holds the money and is offering to both lease and sublease. If the City council approves this lease without a signed sublease the City will lose significant control of the transaction. What if the City demands a promise from the LHM that it will leave the Public Market after four years and the Lighthouse Mission says "no". What then? The City will have no choice but to agree cancel the lease(see below) or agree to the LHM refusal.

The City will lose all control of this transaction because the LHM can just decline to lease the property and we as a community are further down the emergency timeline. The lease and the sublease ought to be brought forth to the City council as one integrated packet with direction from City council to go back to both the landlord and the LHM and get agreement on protections for downtown.

There is time and very sound business reasons to consider alternative sites, circle back with the County and to get the proper language in the lease and the sublease as directed by the City council at least until June 24th and even up to July 15th. Once that is done the City council can hear from the public and weigh the alternatives and make an informed decision.

If other say there is not time to listen to the public and faithfully discharge your duties as elected officials, they do you and the public a disservice.

Thank you

Frank Chmelik

Frank J. Chmelik
Chmelik Sitkin & Davis, P.S.
1500 Railroad Avenue
Bellingham, Washington 98225
C: 360.223.5633
O: 360.671.1796
E: fchmelik@chmelik.com
W: www.chmelik.com

Legal Assistant Sara Sweetin
ssweetin@chmelik.com

From: CSD - Frank Chmelik
Sent: Monday, June 15, 2020 8:00 PM
To: mlilliquist@cob.org; laanderson@cob.org; ptmvargas@cob.org; hahuthman@cob.org; hestone@cob.org; gknutson@cob.org; dchammill@cob.org; council@co.whatcom.wa.us; ssidhu@co.whatcom.wa.us
Cc: mayorsoffice@cob.org; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Peter Ruffatto <pruffatto@cob.org>; Bruce Gryniewski <BruceG@gallatinpa.com>; Pratt, Denver <denver.pratt@bellinghamherald.com>; dburt@metcalfhodges.com
Subject: RE: Proposed low barrier shelter - One more week

Elected officials and others,

It is now 5:30 p.m. and the agenda packet containing the draft lease and the "terms" of the sublease have just been released – 24 ½ hours before vote that will dramatically affect downtown Bellingham (see PDF: https://meetings.cob.org/packetdoc/2271). **Also,** Calucurrcio Construction is already on the site commencing work **before** the City Council acts. Some say the decision was cooked and tomorrow night will be merely a play with everyone playing their part. In Act I the staff presents the inevitability of it all. In Act II the pleas from the people are politely listened to, In Act III, the emergency is re-described and in Act VI the "vote" is taken secure with the knowledge that there is no alternative. I do not for a minute believe that. I believe that our elected officials can assert their statutory authority and exercise their role to protect the people and to bring people together. So, I write one last time with a plea for a different ending.

- **Bottom line**, please give the citizens one week to review and comment on these documents and to try come together with City staff and elected officials so we can all go forward together.

Here is what I know and believe:

- **June 6 City Council Meeting**: The City council and the community were told that three sites were under active consideration and that each was being evaluated and that the goal was to house approximately

100 homeless persons. They were told that there was an emergency occasioned by the need to vacate Bellingham High School by mid-August but the City would like to move early. They were told that about 100 people per night were housed at Bellingham High School and another 50 were housed at the low barrier shelter near the LHM. They were told that Covid-19 required theses guest to be spread out more and hence the need for more temporary shelter space until the pandemic was over. They were told that this Covid-19 emergency and the CARES Act money would be the basis of securing a place to this segment of the homeless population could again sleep in close proximity (surely not three years). They were told that another ancillary benefit of this plan would be that the LHM could to relocate while trying to raise funds for a new facility on F Street. They were told that "of course, the LHM would have to go through a permitting process for its new facility." Finally, they were told that the landlord was emphatic that only a four year deal.

- **The Lease**: The Lease is for three years with a one-year renewal. But the lease contains no prohibition against future use of this site as a homeless shelter. Consider what will happen after the City and County have invested over $1 million in improvements and $450,000 - $600,396 in rent for this facility through four years. Will LHM will then deal directly with the Owner to lease or buy the property. After all the City has made the improvements using public money. The City on behalf of itself and the LHM has promised and emphatic "No" and told everyone that was the landlord's position as well. Our group asked the City to put a provision in the lease which restricts use of the property as any type of homeless shelter after four years. Create a legally binding obligation and provide that neighboring businesses or property owners could enforce it with an injunction (no damages). After all everyone had so pledged. The landlord is going to receive $12,553 per month of public money for 36 months or $451,000 plus expenses (see paragraph 2.1 of the Lease). The fourth year the Lease rate drops to $10,461 per month unless the LHM leaves and then it jumps back to $12,533. On might observe that the local owner of the Property must be publicly spirited to allow this use. Well, truth be told the owner is an elderly gentleman from British Columbia. I again remind everyone that this is not about a government's regulatory authority. It is about a City as a tenant that is offering over $1.5 million in rent and improvements on property that is now vacant. It is about commitments made and commitments kept. It is about protecting the governed.

- **The Sublease Memorandum**: This has not been written yet. The City staff provides the general outline in a memorandum then asks the City Council (and really the public) to approve the concept and let the Mayor sign the sublease with no further City Council or public involvement. Here again there is no prohibition on the LHM continuing to lease the Public Market after 4 years or buying the property to use as a permanent shelter site. Yes, they cannot apply for another Temporary Building Encampment under BMC 20.15. But there is no broad-based prohibition against a permanent facility four years from now under a different type of permit. Indeed, we suggested that City require that the LHM agree that after four years it will not use this facility for a homeless shelter - period. We also suggested that the businesses and property owners be allowed to seek judicial enforcement (no damages just and injunction) of that provision alone if it was violated. That would make the decision of this City council the "final" decision on the matter. If that truly is the intention, then why not limit it to four years in a legally solid way. Then at least the business owners would understand the duration of the sacrifice they are being asked to undertake for the greater good. Apparently, that suggestion was rejected was rejected and specific note was made that there were no "third-party beneficiaries" – legal speak for no enforcement except by the City and the sublease memorandum does not even preclude (except in a very narrow way) the future use. The LHM can ask for inclusion of restrictions to stand by its word. If it does not, it has spoken volumes to the community.

- **The Use and the Permits and Public Land Use Involvement**. Well between the presentation to the City council on June 6th and today the number has swelled from 100 to 200. Does anyone believe that the extra 100 beds will not soon be filled with new neighbors who travel here after hearing of the shelter? The 200 of the most challenging population – many with mental health and dependency issues will be housed without the need to conform to any sobriety rules. The during the day they will be turned out into our downtown. The effect of 100 people, many exhibiting antisocial behavior, will be devastating to downtown. The effect of 200 will be catastrophic. To be clear, this is not a commentary of this most difficult homeless population. They need and deserve our compassion and help. It is simply not fair to these homeless people and the downtown business owners, employees, and customers to purposefully put them on a path toward confrontation.

- **The Alternatives**. There are alternatives such as a insulated fabric structure that are used all over the Western United States for a variety of uses including homeless shelters. They are even used in Antarctica! They have a useful life of about 15 years These tension fabric structure membrane buildings are built to withstand harsh weather. They cost approximately $45 per square foot or $625,000 for a 15,000 square foot structure. The foundation and interior fitting are provided onsite by the landowner. Figure another $625,000 for foundation, erection and fit out. A local construction company has offered to construct at cost, a local building supplies has offered fit out materials at cost. I am sure that local businesses would jump in to support this effort. The Downtown Property and Business Owners Work Group has offered $50,000. This could be located at the old County Annex property or several other government owned sites like the City owned Sash and Door site. If an alternative site was chosen, four years from now the government will be able to make a choice based upon impacts to the government as opposed to impacts on the governed. Also, the government would have a structure for another 11 years, at least (these can be reskinned). If left at the Courthouse Annex site, It would be available as an emergency shelter for winter, or flood or fires or the next virus. If the site was needed for other uses it could be dismantled and sold or moved to another site for an emergency shelter or other use. In short, the cost of the temporary homeless shelter would be reduced and the downtown spared the pain and dislocation.

- **The Leadership Choice**. The choice for our elected officials is clear. Will our elected officials come together with the community to protect downtown and the many small business owners and employees who work there while forging a community solution to this emergency? Or will the elected officials answer the Siren's song of City staff that "this is an emergency and there is no time for democracy."

- **One Week**. Surely, one week can prevent what everyone seems to believe is a poor choice. If it were true that it was the "only" choice, it still would be a poor choice. And without the protections noted above it is a deadly choice for downtown. So, what can the City and County Council do.

    - The City Council can continue this one week and instruct the City staff to meet with the Downtown Property and Business Owners Working Group. Here our comments on the Lease and the Sublease. They have not done that. Think of that - a group of citizens forms and extends a hand of partnership on common goals and the City will not even meet with them.

    - The County Council and the County Executive can stand for democracy and tell the City that it will not receive the County's $800,000 unless this is continued one week and there is a meaningful review of the (i) proposals for an alternative site and (ii) a review of the protections that are proposed in the sublease. Two County council member have indicated concern that

taxpayer dollars were being used and the governments got not asset in return. I know the County signed an interlocal agreement and therefore could turn a blind eye but I am sure that it was signed with the basic premise that the public would be served and democracy would be honored. The County Council should not stand by complicit in the actions of the City.

Please do harm to the this very challenging homeless population, the downtown property owners, the businesspeople and their employees! Please do no harm Bellingham and Whatcom County by harming the what the City owns documents described as a vital economic area. Please do not put this homeless population and the downtown businesses on a collision course. If these small business owners bear fault it is the fault of playing by the rules and believing in their governments and believing in their elected officials. I know this sound like hyperbole, but it is not - it is the truth.

Finally, I acknowledge and thank the elected officials especially the four that reached out. I thank Sheriff Elfo for publicly agreeing to support the use of the Courthouse Annex site as a more compassionate place for this population, even though it is next door to his office.. The downtown property and business owners are folks that play by the rules and they inherently trust each of you. You will see no demonstrations or storming City Hall or occupying anything from us. We know full well that you all have a difficult decision and a difficult job. Our role as citizens is to help you make the best decision. The secrecy of City staff on this was wrong, it was undemocratic, and it eroded needed confidence in government. But, in fairness, City staff has done much good and this was, but one very bad decision made under pressure with the isolation of the Covid-19 pandemic. They just got this one wrong. Let's move on. Let's take a breath for a week and see if we can come together. Now more than ever, don't we need to come together -the governed and the government?

Tomorrow night the City council and anyone else who cares to listen will hear the real stories of real people. The folks that have sunk their life savings into coffee shops and storefronts and resturants. The people that will bear the direct impact of this decision. I have made our plea without rancor or anger. It is now up to our elected officials.

Respectfully

Frank Chmelik
360-223-5633

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Legal Assistant Sara Sweetin
ssweetin@chmelik.com

From: CSD - Frank Chmelik
Sent: Sunday, June 14, 2020 7:34 PM
To: mlilliquist@cob.org; laanderson@cob.org; ptmvargas@cob.org; hahuthman@cob.org; hestone@cob.org; gknutson@cob.org; dchammill@cob.org; council@co.whatcom.wa.us; ssidhu@co.whatcom.wa.us

Cc: mayorsoffice@cob.org; Bill Elfo <belfo@co.whatcom.wa.us>; Mike Hammes <mike@ramconstruction-wa.com>; hanse@thelighthousemission.org; Ken Reinschmidt <ken@saratogacom.com>; Dianna Del Giorgio <delgiorgio@me.com>; Lydia Bennett <lbennett@ccim.net>; Chris Renoud <Chris.Renoud@fse.com>; John and Janet Crews <jjcrews@me.com>; Peter Ruffatto <pruffatto@cob.org>
Subject: RE: Proposed low barrier shelter

Elected Officials:

Please allow me to bend your ear one more time. Let me first say that I am a "government guy." I have been honored to have spent a good part of my legal career representing ports, fire districts, and even some cities all across Washington State. I have worked closely with City staff and respect their work. So, it is unnatural for me to be on the other side.

Give the citizens more than 27 hours to read and comment on documents. Give the community a week (if not two) to interact on this. The City council can continue its meeting for one week before signing the lease and sublease which will not even be available to 3:00 tomorrow. Let people read the documents and have a chance to reflect and comment. I have heard staffs of governments for years tell elected officials' words to the effect of "there is no time -you must act now and as we recommend." In my experience there is always a week or even two to consider a decision and get public input and the decision is always better for it. I am saying *"trust the people to help inform your decision".*

Understand the documents and the whole issue before you act. Several City and County council members told me that they were "unaware" and "had not seen the documents" and "thought there were several sites under consideration". I say to all of you that as elected officials (and as I have said to many elected officials of governments I have represented over the years) "it is you and not the staff to which the citizens have entrusted their government and all its power."

The Public Market is a bad location because it costs too much. The proposal for the Public Market location will negatively impact all the businesses and property owners downtown. I have been downtown since 1994 when Mayor Douglas encouraged us to buy an old dilapidated warehouse and look to the future. And, I must say the City staff and elected have worked with us to encourage the vitality of the downtown with landscaping and lighting and the Bellingham Farmers Market at the south end of Railroad.. Now it is a place where people live in apartments and I am sure more are coming in the properties formerly occupied by the feed and seed companies. Before last week, if asked, I would tell anyone from anywhere that Bellingham had a vibrant downtown and had survived the mall of the 1980s and the Barkley development of the 2000's and was a place with a vibrant sense of place.

- The life blood of downtown are the young entrepreneurial families that give it their all and risk their finances to build these small businesses. Think of Café Adagio, the Local Restaurant, the gaming place, the chocolate place, the crepe store, the hair salons. BTC made a big commitment with the hairstyling campus on Railroad. My point is that these will be the real casualties of this decision. Coming off of Covid-19 closures they will not survive. I know this because the downtown only started to thrive after the Housing Authority built Walton Place and the anti-social behavior began to decline. I am struck that downtown Bellingham is one of the last places a young citizen can get into a business small business space. What I am trying to say is I will survive 3-4 years – these poor folks will not. What also strikes me is the somewhat caviler attitude and lack of empathy given to these peoples'(and their employees) lives on such short notice. I understand that sentiment of combining an emergency that will not last

longer than six months with the desire to leverage CARES Act funds into a 3-4-year facility. But our society should bear the full cost and not pick a segment of society to bear part of the cost.

- One County Councilmember called me and said words to the effect that this was the "cheapest alternative" and "nobody wants it around them". I replied for "cheapest for who?" The true cost of this facility is the $1.5 million of federal dollars *and* the costs to all the local businesses visited upon them by this decision *and* the cost to all of Bellingham of the damage to downtown. For example only, if a temporary homeless shelter was placed in a residential neighborhood (which I certainly am not advocating) people may be inconvenienced and the anti-social behavior would be unwelcome, but they would not lose their homes or their jobs because of the behavior. In downtown, many of these small businesses and their employees will lose their livelihoods. They depend on customers choosing to go downtown for their services and dinning (as opposed to Barkley or Fairhaven). When the antisocial behavior increase the people vote with their wallets.

We must and should treat everyone, including the homeless with empathy and compassion. We all understand the need to treat the homeless with compassion and empathy. We are all better because of our empathy but that great empathy also leads to a more difficult problem . I have been interacting with this segment of the homeless population since we move our offices downtown in 1994. I try to be very polite and ask folks to pick up their mess, bought cups of coffee and told folks they could sit under our entry canopy if they promised to leave it clean (about 50% success on that). This population of homeless presents the most challenge. I have observed that it is largely a mental illness issue maybe fueled by self-medication with drugs and alcohol. But I have also seen the ugly antisocial behaviors. It is a very tough challenge that, in my view, was precipitated when large mental health facilities were closed with the promise of the federal and state governments to support community mental health and that never happened.

The Courthouse Annex and the Sah and Door Sites are superior temporary 3-4-year alternatives. The old Courthouse Annex site is owned by the County and used to have the two-story Courthouse Annex so it has water and sewer to the site and can support any structure. In 2018 the Homeless Strategies Workgroup identified that as a potential site for a **permanent drop in shelter** and the then County Executive reasonable said "no" because it would be need in the future County uses perhaps for a jail. Well now we have an emergency, mental health is a County issue, and the need is now a **temporary shelter** with no immediate plans on the five-year horizon to use the property. It is free to the County. I understand that a lightweight fabric structure could be erected there in about 6 weeks. Our group has pledge financial support, a local contractor said it would build it at cost and Construction Supply has offered materials at cost. These structures can be dismantled and moved when the use is over. "Why not now on a temporary basis and in an emergency?" The effects of a temporary homeless shelter in that location will largely be on government property, it is near the Sheriff's office and the BPD station. Most importantly it is near the County Health Department so that appropriate resources can be close by. **I have spoken with Sheriff Elfo and he would support the location of the temporary shelter at the Courthouse Annex site**. Likewise, as previously discussed the City owned Sash and Door site could be used on a temporary basis. I have read the agreement with Northwest Recycling and they have failed to do what they said they would do. So that is not an impediment.

- Even if it took longer than six weeks there are alternatives especially as we enter summer. The Washington National Guard could provide GP medium tents (the kind our soldiers live for six weeks in during winter field exercises) on Civic Field for several months. A call to our Governor for a use of tents should be made. Or the City could rent the big white party tents (certainly there are no big parties

now). The surface is suitable for cots or mattresses and it certainly could lend itself to social distancing. Civic Field will not be used this fall for football games (and if it was planned for games this is an emergency – there are other football fields in Whatcom County), it is enclosed with a fence already, has bathrooms and food service facilities. Here again it is surrounded by government owned facilities. We could then use the time to build a proper temporary structure aa the Courthouse Annex or the Sash and Door Site easily ready in a few months.

Public Market Site. If it must be the Public Market, then I have several observations:

1. People are concerned that after four years the LHM will continue to lease directly from the property owner or buy the property and then the City will say "sorry nothing we can do.".

2. Use the City's proprietary rights as a tenant and then as a landlord to require the owner (in the Lease) and the LHM (in the sublease) to commit not to use the Public Market site beyond 4 years. This is fair because the landlord is receiving rent using public money. The claim that the BMC limits this ability is inaccurate. The BMC is on the regulatory side of government The City also acts in a proprietary capacity (for example when it rents space out for businesses in the Parkaide). After all the City and County are using $1.5 million of public money.

3. To assure the public make the business owners and property owners within 500 feet of the Public Market "third-party" beneficiaries of this promise to vacate ant the end of the lease and not use it as a homeless shelter again without a right to sue for damages but with a right to seek injunctive court relief. It is common to have a promise on future use as a condition of agreeing to lease a property or imposing a limitation on future use by a tenant as a condition of getting a lease. Airports all over this country have entered into agreements with their neighbors. This will provide the needed trust and show that the City really does mean what it says – no more than 4 years.

4. Build an infrastructure that includes a committee made up of representatives of local business, the City council, the County council, the LHM, the police and mental health folks. They should meet often and review problems and concerns. Information would flow and transparency would ensue. Moreover, the solutions would be community based.

5. Require the LHM to take responsibility for off-site impacts of its operations. Require the LHM to utilize "adaptive management" for the effects outside their facility. Provide a sublease provision which allows the City Council to require additional mitigation if it becomes necessary. Fundamentally, governments always seek to make a landowner or business responsible for its impacts both on and off its property (park impact fees, storm water fees, traffic concurrency fees). As the situation changes so does the management strategy. After all, this is $1.5 million in public money.

6. Do not put the police into the enforcement business with the homeless. The FAQ put out by the City says the police will enforce the no sitting or lying down on City rights of way. Offering to use the police to keep homeless folks from siting or sleeping on City streets is counter to the long overdue national discussion on policing and has proven ineffective. This leads to two frequent outcomes - the police take no action and profess to have no authority to act (the usual outcome) or the situation escalates. This is unfair to put the police in this situation and unfair to the homeless population that is (usually as a result of mental health issues) engaging in anti-social or destructive behavior. This is not a law breaker problem. It is a mental health problem for which empathy and treatment is needed. The City and County should step up and fund a group of mentally heath trained folks to act like the old "beat cops".

They can be walking the Downtown every day and night and interact with the businesses, the community and the homeless. These folks can always call the police if things start to escalate. Let's decriminalize this. Sure, it would cost money but how much is the Downtown worth?.

In closing I think one of the primary principles of government should always be "do no harm".

Respectfully,

Frank Chmelik

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Kerr, Monea J.

From: Guy Occhiogrosso <guy@bellingham.com>
Sent: Tuesday, June 16, 2020 12:45 AM
To: Cathy Halka
Cc: Barry Buchanan; Satpal Sidhu; Arden Landry; Tyler Schroeder; MY - mayorsoffice@cob.org; Dana Brown-Davis; Raney, Brooksana B.; Kerr, Monea J.; CC - Shared Department; Guy Occhiogrosso
Subject: Re: Relocation of Drop-In Center - Memo from Mayor Fleetwood and Executive Sidhu

All,

Thank you for the opportunity to voice opinions as to this relocation. As a chamber of commerce, we have a number of members who are involved in homeless services, this potential relocation, and other facilities and opportunities that have been mentioned. A number of downtown businesses have approached me regarding this proposal with concerns. I have solicited additional feedback, and it appears to be a large variety of opinions - not really shocking knowing our community.

As a member of this HSW since the inception, we have discussed this topic at length. This is including in 2018 when we discussed the 8-10 potential sites when the Port and City partnership fell through. A site within close proximity of the current proposal was discussed during that process. It was determined to be too far away from the Mission as this has always been held as a pivotal element to a successful site. It feels with this current proposal we may be settling on the only option as we see it now. We had concerns regarding this area before - where did those concerns go? If this area is now on the table to be a solution, perhaps some of the other potential locations are now an option as well.

With all of that said, we need to find a solution. We will most likely need one of these emergency solutions, and then a true viable long term solution (or program of solutions). We must care for people - and that care needs to start with those most vulnerable. The sheltering of individuals experiencing homelessness needs to be our core function of this process.

With everything going on in the world, it is my hope we can also hear the business community. The pandemic has led to an economic crisis (which has further illuminated a long standing justice crisis). As our elected leadership, you must consider all the options and all the stakeholders in these decisions. I certainly don't have the ideal solution - as I doubt one exists. But I do see a portion of our downtown business community (those currently against this current proposal) coming to the table with another solution. My hope is that prudent consideration be given to those options. Our community and world battle NIMBY arguments on a regular basis, and I don't see this is being one those arguments.

I believe their request is to consider one of the initial sites that was considered in 2018. Perhaps it is worth a second look. Perhaps you have already done so. I will leave it in your very capable hands and we will be there to assist our business and employer community with whatever is decided.

Thank you for your leadership and your time.

Guy Occhiogrosso
President/CEO

BELLINGHAM REGIONAL
CHAMBER OF COMMERCE

Bellingham Regional Chamber of Commerce
office: 360.734-1330 | direct: 360.746-0738
guy@bellingham.com | www.bellingham.com

From: Cathy Halka <CHalka@co.whatcom.wa.us>
Sent: Monday, June 15, 2020 3:37 PM
To: Cathy Halka <CHalka@co.whatcom.wa.us>
Cc: Barry Buchanan <BBuchana@co.whatcom.wa.us>; Satpal Sidhu <SSidhu@co.whatcom.wa.us>; Arden Landry <ALandry@co.whatcom.wa.us>; Tyler Schroeder <Tschroed@co.whatcom.wa.us>; mayorsoffice@cob.org <mayorsoffice@cob.org>; Dana Brown-Davis <DBrown@co.whatcom.wa.us>; braney@cob.org <braney@cob.org>; mjkerr@cob.org <mjkerr@cob.org>
Subject: Relocation of Drop-In Center - Memo from Mayor Fleetwood and Executive Sidhu

Dear Homeless Strategies Workgroup Members,

Please see the attached memo from Executive Sidhu and Mayor Fleetwood regarding relocating the Drop-In Center low-barrier emergency shelter facility to a new temporary location from its current temporary location at Bellingham High School. The preferred option under consideration for the next temporary site is the vacant building that is the former location of the Bellingham Public Market on Cornwall Avenue. More information is available at https://www.cob.org/services/safety/emergencies/Pages/Drop-in-Center-Move.aspx.

The City of Bellingham is seeking individual support from HSW Members. Please send your comments to Mayor Fleetwood at mayorsoffice@cob.org, and please copy Bellingham City Councilmembers at ccmail@cob.org.

Best,
Cathy

Cathy B. Halka, AICP *(she/her)*
Legislative Analyst
Whatcom County Council Office
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Email: chalka@co.whatcom.wa.us
Phone: 360-778-5019
Work Schedule: Tuesday through Friday
This email is subject to disclosure through the Public Records Act.

Kerr, Monea J.

From: Claire Moore <claire.evelyn.moore@gmail.com>
Sent: Tuesday, June 16, 2020 8:51 AM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Subject: Letter of Support
Attachments: Letter of Support LMM DIC.pdf

Dear Mayor Fleetwood and Bellingham City Council Members,

Thank you all so much for your leadership during this unprecedented public health crisis.

Attached is a letter of support for the decision to relocate the Lighthouse Mission Drop-in Center to the downtown Public Market location on Cornwall Ave.

I look forward to listening to the public comment this evening.

All the best,

Claire Thurman-Moore, ARNP, PMHNP-BC

June 15, 2020

Letter of Support

Dear Mayor Fleetwood and Bellingham City Council,

I am writing to you as a citizen of Bellingham, a patron of downtown Bellingham businesses, and a psychiatric nurse practitioner at PeaceHealth St. Joseph Medical Center's behavioral health unit.

I want to thank you, generally, for all of the work you have done to guide our community through this unprecedented public health crisis and, specifically, for your efforts to relocate the Lighthouse Mission Ministries Drop-in Center to the Public Market facility in downtown Bellingham.

Many of the patients I serve in my work at the hospital rely on the services provided by the LMM Drop-in Center. While far from ideal, the drop-in center provides respite from the elements, regular meals, and an access point to critical mental health and social services. Without these services, I suspect we would begin seeing much larger numbers of severely mentally ill people in our emergency department, further taxing an already overtaxed system.

Our community needs a Drop-in Center that can accommodate physical distancing while still serving the needs of our community's unsheltered population. The Public Market location appears to be an excellent choice for this both in terms of physical space requirements and proximity to needed public and mental health services (i.e. downtown transit station, Opportunity Council, UnityCare NW, etc.).

I am in full support of this decision and hope our community will rally around the move as well.

Sincerely,

Claire Thurman-Moore, ARNP

Claire Thurman-Moore, ARNP, PMHNP-BC

Kerr, Monea J.

From: Malora Christensen <MaloraChristensen@seamarchc.org>
Sent: Tuesday, June 16, 2020 10:04 AM
To: CC - Shared Department
Subject: Letter of Support from SeaMar Community Health Center
Attachments: Letter fo Support LHM.pdf

Importance: High

Greetings,

Attached is a letter of support from SeaMar for the proposed move of the Drop-In Center to 1530 Cornwall (formerly the Public Market).

Thanks for your leadership.

Malora

Malora Christensen, LICSW | GRACE Program Manager
Pronouns: She/Her
Sea Mar Community Health Centers
Exceptional service. Every person. Every time.
800 Chestnut Street, Suite 1B | Bellingham, WA | 98225
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Marysville
Monroe
Mt. Vernon
Ocean Shores
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Puyallup
Seattle
Tacoma
Vancouver
Yelm

DENTAL CLINICS
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Burien
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Federal Way
Everett
Lacey
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Puyallup
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Tacoma
Vancouver
Yelm

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Bellingham
Seattle
Tacoma

OUTPATIENT BEHAVIORAL HEALTH
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Anacortes
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Everett
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June 15, 2020

Letter of Support

Dear Bellingham Mayor and City Council,

On behalf of Sea Mar Community Health Centers and the GRACE (Ground-level Response And Coordinated Engagement) Program, we are writing to express our support for the Lighthouse Mission Drop-In Center and the proposed move to the Public Market (1530 Cornwall Ave.).

The GRACE Program works with the highest utilizers of emergency services in our community. Many of the individuals that our program serves are also unsheltered and receive regular services at the Drop-In Center. We cannot speak highly enough of the Lighthouse Mission and the Drop-In Center programs. Without these 24/7 services, our community would be overwhelmed with the daily needs of hundreds of our unsheltered community members.

The GRACE team works closely with the Lighthouse Mission and Drop-In Center services to provide support to our community's most vulnerable members. It has been an honor to support the Drop-In Center and the Bellingham School District in their daily operations at the Bellingham High School. The Lighthouse Mission continues to be a robust community partner that provides the highest quality services to a population that many in our community struggle to support.

Our community has shown leadership, creativity and grit in response to the Covid-19 pandemic. As the time at Bellingham High School comes to an end, it is essential that the Drop-In Center moves to an adequate location that can support social distancing for both guests and staff. The vacant building at 1530 Cornwall Ave. is an ideal location and will allow the Lighthouse Mission to continue providing the essential services needed.

As one of the community's most intensive programs, we fully support this proposed move and ask that you support it as well.

Sincerely,

Mary Bartolo

Mary Bartolo

Executive Vice President

Kerr, Monea J.

From: Shepard, Michael <michaels@portofbellingham.com>
Sent: Monday, June 15, 2020 4:13 PM
To: CC - Shared Department
Subject: FW: I support the new drop in center location

Dear City Council – I sent Mayor Fleetwood this letter of my support for the proposed temporary shelter location. As a member of the Homeless Strategies Workgroup, I have been closely working on this issue for the past two years. There are no easy choices here, but this is the best option we have. The alternative of people sleeping unsheltered or in unsafe proximity is unacceptable.

Michael

--
Michael Alvarez Shepard, PhD
Commissioner, Port of Bellingham
michaels@portofbellingham.com
360.303.9314

From: "Shepard, Michael" <michaels@portofbellingham.com>
Date: Thursday, June 11, 2020 at 2:29 PM
To: "mayorsoffice@cob.org" <mayorsoffice@cob.org>
Subject: I support the new drop in center location

Dear Mayor Fleetwood – Thank you for identifying a location to house a vulnerable population during a time of global pandemic. This temporary location makes the most sense for ability to complete in the given time. The negative community impacts of leaving 100+ people unsheltered or in unsafe conditions outweighs the inherent challenges associated with finding a suitable site for a shelter.

Sincerely
Michael Shepard

--
Michael Alvarez Shepard, PhD
Commissioner, Port of Bellingham
michaels@portofbellingham.com
360.303.9314

Kerr, Monea J.

From: Brittany O'Brien <hellobrittanyobrien@gmail.com>
Sent: Monday, June 15, 2020 5:58 PM
To: CC - Shared Department
Subject: 06/16 City Council Special Meeting

Brittany O'Brien
3129 Eldridge Avenue #101
Bellingham, WA 98225
hellobrittanyobrien@gmail.com

VIA EMAIL

June 15, 2020

Dear Mayor Fleetwood and City Council Members,

Thank you for holding a special meeting to discuss the three-year lease of the temporary building encampment located at 1530 Cornwall Avenue.

Should the 1530 Cornwall Avenue location be approved, I urge the city of Bellingham to create a three-year strategic plan for creating more permanent measures of support for our homeless population.

It has been several years of heated debate in regards to the location of a more robust low-barrier shelter. Without a doubt, each proposed site has shown NIMBY-ism from surrounding residents and businesses. The NIMBY-ism is not a testament to location – rather a testament to our lack in a variety of services and accountability.

As a community, we depend heavily on the Lighthouse Mission to do the bulk of the work supporting our homeless population. As a former business owner, I have seen the complete lack of additional support services have adverse effects on our central business district. The Neighborhood Police Officer Program, Community Paramedic, and Homeless Outreach Team are all thinly staffed with dismal response times. Due to high demand and overflow, the Lighthouse Mission remains completely unaccountable to ongoing behaviors directly outside their premises.

I hope this three-year lease lights a fire under the seats of our city council members and the mayor so that we might begin to look at the Lighthouse Mission for what it is: a piece of a much larger puzzle. It is time to start seriously looking at additional services. Funding for a day shelter, a housing first program with low entry rents, a street clinic for non-emergent medical attention, pop-up services for getting identification, and community court are a few examples that are proven to work in other cities. I thank the council for their service, but we have much work to do.

Sincerely,

Brittany O'Brien

Kerr, Monea J.

From: Ander Russell <whatcomhiker@gmail.com>
Sent: Tuesday, June 16, 2020 7:38 AM
To: CC - Shared Department
Subject: Moving the DIC to the Public Market Building

City Council Members:

Thank you for all your good work. I am writing in support of using the now vacant building on Cornwall Ave that used to house the Public Market as the new temporary Drop In Shelter.

I have heard there has been push back against this idea. There is always push back against these sorts of idess - don't let that sway you. Often in our City and throughout the country people say they want to help people experiencing homelessness but then turn around and say, shelters don't belong in my backyard. Leaders must show the community that compassion rather than fear must guide our community decisions.

I understand this is to be a temporary shelter. Please consider redirecting funds from law enforcement to mental health services and housing first models so that we can more permanently house our neighbors. I have friends who are social workers, mental health care providers and who have family members struggling with mental illness - they are all stuck in a loop of not having enough resources, needing to call police who can not solve these problems and sending folks to the hospital that does not have enough beds to adequately treat people in crises. This has to stop.

You will soon be undertaking the task of setting the City budget. You have the opportunity to make Bellingham a leader in the state. We must dismantle the systems that are working against the most vulnerable in our community and build systems that are based on compassion, understanding, justice and equity.

Thank you for your time,
Ander Russell
1225 Grant Street
Bellingham, WA 98225

Kerr, Monea J.

From: Tony Fisher <flyingfishdesign1@comcast.net>
Sent: Tuesday, June 16, 2020 7:57 AM
To: CC - Shared Department
Subject: Emergency Shelter/Temporary Building Encampment at 1530 Cornwall Avenue

City Council Members and Mayor of Bellingham,

As a 70 year resident of Bellingham, I would ask that great consideration be given to the negative impact this proposed Emergency Shelter would have to the business district in the Northern section of Railroad and Cornwall Ave. Over a decade ago this was an unappealing area to go into due to the threatening nature of the "street people" loitering in front of businesses.

I have a grandchild that frequented The Dark Tower business on Railroad Ave. before The Corona Virus outbreak. I worry for the survival of these independent businesses trying to hold-on and reopen.

Please read the well thought out suggestions from the many respondents for better locations for the proposed shelter.

Thank you,
Richard A. Fisher
Bellingham Wa.

Kerr, Monea J.

From: Claire Moore <claire.evelyn.moore@gmail.com>
Sent: Tuesday, June 16, 2020 8:51 AM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Subject: Letter of Support
Attachments: Letter of Support LMM DIC.pdf

Dear Mayor Fleetwood and Bellingham City Council Members,

Thank you all so much for your leadership during this unprecedented public health crisis.

Attached is a letter of support for the decision to relocate the Lighthouse Mission Drop-in Center to the downtown Public Market location on Cornwall Ave.

I look forward to listening to the public comment this evening.

All the best,

Claire Thurman-Moore, ARNP, PMHNP-BC

June 15, 2020

Letter of Support

Dear Mayor Fleetwood and Bellingham City Council,

I am writing to you as a citizen of Bellingham, a patron of downtown Bellingham businesses, and a psychiatric nurse practitioner at PeaceHealth St. Joseph Medical Center's behavioral health unit.

I want to thank you, generally, for all of the work you have done to guide our community through this unprecedented public health crisis and, specifically, for your efforts to relocate the Lighthouse Mission Ministries Drop-in Center to the Public Market facility in downtown Bellingham.

Many of the patients I serve in my work at the hospital rely on the services provided by the LMM Drop-in Center. While far from ideal, the drop-in center provides respite from the elements, regular meals, and an access point to critical mental health and social services. Without these services, I suspect we would begin seeing much larger numbers of severely mentally ill people in our emergency department, further taxing an already overtaxed system.

Our community needs a Drop-in Center that can accommodate physical distancing while still serving the needs of our community's unsheltered population. The Public Market location appears to be an excellent choice for this both in terms of physical space requirements and proximity to needed public and mental health services (i.e. downtown transit station, Opportunity Council, UnityCare NW, etc.).

I am in full support of this decision and hope our community will rally around the move as well.

Sincerely,

Claire Thurman-Moore, ARNP

Claire Thurman-Moore, ARNP, PMHNP-BC

Kerr, Monea J.

From: Geracie, Jennifer <JGeracie@peacehealth.org>
Sent: Tuesday, June 16, 2020 10:34 AM
To: CC - Shared Department
Subject: Drop In Center Move

To Seth Fleetwood:

I am writing to express my support for the DIC to move to the Public Market. In my professional role as the social work team lead at St Joseph Hospital, my social work team works with unsheltered individuals daily and we have also been witness to the anxiety in the hospital setting related to COVID. The DIC needs adequate space to social distance in order to protect both unsheltered individuals as well as the community at large. Thank you for your time.

Jennifer Geracie

Jennifer Geracie, LICSW | Social Work Team Lead | Care Management
PeaceHealth | 2901 Squalicum Parkway | Bellingham, WA 98225
office 360-788-6300 X2516 | **fax** 360-788-6779
PeaceHealth
The Spirit of Health

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Kerr, Monea J.

From: Cathy Halka <CHalka@co.whatcom.wa.us>
Sent: Monday, June 15, 2020 3:37 PM
To: Cathy Halka
Cc: Barry Buchanan; Satpal Sidhu; Arden Landry; Tyler Schroeder; MY - mayorsoffice@cob.org; Dana Brown-Davis; Raney, Brooksana B.; Kerr, Monea J.
Subject: Relocation of Drop-In Center - Memo from Mayor Fleetwood and Executive Sidhu
Attachments: Memo_to_HWG_06112020_final signed.pdf

Importance: High

Dear Homeless Strategies Workgroup Members,

Please see the attached memo from Executive Sidhu and Mayor Fleetwood regarding relocating the Drop-In Center low-barrier emergency shelter facility to a new temporary location from its current temporary location at Bellingham High School. The preferred option under consideration for the next temporary site is the vacant building that is the former location of the Bellingham Public Market on Cornwall Avenue. More information is available at https://www.cob.org/services/safety/emergencies/Pages/Drop-in-Center-Move.aspx.

The City of Bellingham is seeking individual support from HSW Members. Please send your comments to Mayor Fleetwood at mayorsoffice@cob.org, and please copy Bellingham City Councilmembers at ccmail@cob.org.

Best,
Cathy

Cathy B. Halka, AICP *(she/her)*
Legislative Analyst
Whatcom County Council Office
311 Grand Avenue, Suite 105
Bellingham, Washington 98225
Email: chalka@co.whatcom.wa.us
Phone: 360-778-5019
Work Schedule: Tuesday through Friday
This email is subject to disclosure through the Public Records Act.

Seth Fleetwood
Mayor
City of Bellingham

Satpal Singh Sidhu
County Executive
Whatcom County

MEMORANDUM

TO: Homeless Strategies Workgroup
FROM: Seth Fleetwood, Mayor of Bellingham
Satpal Sidhu, Whatcom County Executive
DATE: June 11, 2020

The City of Bellingham, Whatcom County and Lighthouse Mission Ministries are partnering to relocate the Drop-In Center low-barrier emergency shelter facility to a new temporary location from its current temporary location at Bellingham High School, and we need your support. As you are aware, the Drop-In Center cannot return to its facility in Old Town because it is too small to provide adequate social distancing while COVID-19 remains a threat.

The preferred option for another site is the vacant building that is the former location of the Bellingham Public Market on Cornwall Avenue. The site has several key advantages: it is of sufficient size; it is the most cost-effective option identified; its owners are willing to work with local officials; and the characteristics of the site allow for amenities which will help ease neighborhood issues.

We recognize that pursuing this option will be cause for concern among residents and businesses in the vicinity of the site. Every effort will be made to address this, and we are committed to ensuring those negative impacts are minimized.

At the same time, the urgency of the situation requires quick action. *Failure to act* will have more serious impacts. Protecting the health of people who need shelter services greatly reduces the risk of a COVID-19 outbreak among shelter guests, among staff and volunteers, and throughout the whole community.

This issue will be brought before the Bellingham City Council in the very near future. We would appreciate if members of the workgroup can recognize the urgency of the situation and support these recommended actions.

Plans are being developed to build a permanent shelter on an existing property in Old Town while the operation is temporarily housed elsewhere. The anticipated term of the lease of the temporary site is three years with a one-year extension if the permanent facility is under construction, but not completed.

Please reach out to us if you have any questions or comments.

Seth Fleetwood
Mayor, City of Bellingham

Satpal Singh Sidhu
Whatcom County Executive

Kerr, Monea J.

From: Claire Moore <claire.evelyn.moore@gmail.com>
Sent: Tuesday, June 16, 2020 8:51 AM
To: CC - Shared Department; MY - mayorsoffice@cob.org
Subject: Letter of Support
Attachments: Letter of Support LMM DIC.pdf

Dear Mayor Fleetwood and Bellingham City Council Members,

Thank you all so much for your leadership during this unprecedented public health crisis.

Attached is a letter of support for the decision to relocate the Lighthouse Mission Drop-in Center to the downtown Public Market location on Cornwall Ave.

I look forward to listening to the public comment this evening.

All the best,

Claire Thurman-Moore, ARNP, PMHNP-BC

June 15, 2020

Letter of Support

Dear Mayor Fleetwood and Bellingham City Council,

I am writing to you as a citizen of Bellingham, a patron of downtown Bellingham businesses, and a psychiatric nurse practitioner at PeaceHealth St. Joseph Medical Center's behavioral health unit.

I want to thank you, generally, for all of the work you have done to guide our community through this unprecedented public health crisis and, specifically, for your efforts to relocate the Lighthouse Mission Ministries Drop-in Center to the Public Market facility in downtown Bellingham.

Many of the patients I serve in my work at the hospital rely on the services provided by the LMM Drop-in Center. While far from ideal, the drop-in center provides respite from the elements, regular meals, and an access point to critical mental health and social services. Without these services, I suspect we would begin seeing much larger numbers of severely mentally ill people in our emergency department, further taxing an already overtaxed system.

Our community needs a Drop-in Center that can accommodate physical distancing while still serving the needs of our community's unsheltered population. The Public Market location appears to be an excellent choice for this both in terms of physical space requirements and proximity to needed public and mental health services (i.e. downtown transit station, Opportunity Council, UnityCare NW, etc.).

I am in full support of this decision and hope our community will rally around the move as well.

Sincerely,

Claire Thurman-Moore, ARNP

Claire Thurman-Moore, ARNP, PMHNP-BC

Kerr, Monea J.

From: Taylor Webb <info@whatcomhousingalliance.org>
Sent: Tuesday, June 16, 2020 12:06 PM
To: CC - Shared Department
Cc: MY - mayorsoffice@cob.org; Sepler, Rick M.
Subject: WHA Support of New Interim Shelter Location
Attachments: WHA Support of New Shelter Location.docx

Dear Bellingham City Council,

We are writing you today to express the support from the Whatcom Housing Alliance to relocate the Drop-In Center low-barrier interim emergency shelter facility to the Bellingham Public Market building on Cornwall Avenue from its current temporary location at Bellingham High School. Please see the attached letter of support.

Thank you,

Whatcom Housing Alliance Steering Committee

WHATCOM HOUSING ALLIANCE

June 16, 2020

Dear Bellingham City Council,

We are writing you today to express the support from the Whatcom Housing Alliance to relocate the Drop-In Center low-barrier interim emergency shelter facility to the Bellingham Public Market building on Cornwall Avenue from its current temporary location at Bellingham High School.

Whatcom Housing Alliance is a broad alliance of 36 organizations including public health proponents, economic development agencies, for-profit and non-profit housing developers, smart growth enthusiasts, private business owners, and others all united to build an affordable, **healthy**, equitable, thriving, and inclusive community.

We recognize that we are not able to create a healthy community without addressing that the COVID-19 virus is most likely to affect people experiencing homelessness in our community. Our city's most vulnerable residents need a safe place to shelter with social distancing capability. The Bellingham Public Market building is currently sitting vacant. We think repurposing this space into the new interim Drop-In Center meets our need for the health and safety of our community during the COVID-19 emergency.

We appreciate the City of Bellingham, the Whatcom Unified Command, and Whatcom County coming together to create innovative solutions to housing the unsheltered, and we support the new location of the interim shelter facility.

Sincerely,

The Whatcom Housing Alliance Steering Committee

CC: Seth Fleetwood, Mayor and Rick Sepler, Planning & Community Development Director

Kerr, Monea J.

From: Chrisdee Meder <chrisdeemeder@gmail.com>
Sent: Tuesday, June 16, 2020 1:24 PM
To: CC - Shared Department
Subject: drop in center down town

Hi!
I am a Bellingham City resident here in Whatcom County. I shop downtown and work for a business in the downtown area. I am in support of the drop in centers new site downtown in the abandoned grocery store. It is extremely important that we give these people a safe place to eat a meal or sleep and I am a proponent of doing so in the new site .

Chrisdee Meder

Kerr, Monea J.

From: Jenn Mason <jenn@winkwinkboutique.com>
Sent: Tuesday, June 16, 2020 1:29 PM
To: CC - Shared Department
Subject: In Support of Shelter

Hello,

I am a downtown retail business owner and downtown resident, writing to you in support of the proposed location for the temporary drop-in shelter. I believe that any negative impacts on downtown business owners, staff, and our customers has been significantly overblown by people in opposition of this shelter. In fact, many of our customers have also expressed support for this project.

Given LMM's experience running a shelter, as well as their commitment to adding privacy fencing and helping keep folks from congregating on the sidewalk, I see no reason why this location should not move forward.

We have a moral imperative to provide people with a safe, comfortable place to sleep and eat. This means a warm, accessible building with restroom facilities (not a glorified party tent which I understand has been proposed by others, an incredibly misguided and insulting attempt at an alternative).

As someone who has lived, worked, and owned downtown businesses for 17 years, this project has my full support.

--

Jenn Mason ***(she/her/hers)***
Owner
WinkWink
(360)990-0225
1305 Commercial St.
Bellingham, WA 98225

Kerr, Monea J.

From: Nathan Carnes <nathancarnes@gmail.com>
Sent: Tuesday, June 16, 2020 1:37 PM
To: CC - Shared Department
Subject: In support of Public Market homeless shelter location

Dear City Council,

I want to write in briefly to voice my strong support for the proposed homeless shelter/drop in center location in the old Public Market building on Cornwall Avenue.

I live in Sunnyland, and have welcomed both Safe Haven and the more recent temporary shelter at the high school as neighbors. So I know, first hand, that the fear-mongering that always goes along with discussion of the location of homelessness services and programs is just that: fear mongering.

The Public Market offers ample space, and, crucially, easy access to services, amenities, and transit. It's a suitable space not currently being put to better use, and we should use it to house as many of our community as possible.

I urge you to support this action.

Thank you,

Nathan Carnes
Sunnyland

Kerr, Monea J.

From: Lili McMurtrey <lili.carolmc@gmail.com>
Sent: Tuesday, June 16, 2020 1:39 PM
To: CC - Shared Department
Subject: Potential shelter at Terra

Hi there, my name is Lili McMurtrey and I've lived in Bellingham since 2001. I live in Fairhaven, spend a lot of time downtown and also work in the Herald Building.
I am in support of the drop-in shelter's new site. I believe this would be a great use of community space that's been vacant off and on for years.

The homeless population's situation in Bellingham will only get worse if we do not help. Having somewhere to stay warm, get something to eat, etc, is so important to building a healthy community. These people need our help and as a proud Bellinghamster and downtown lover, I am pro this project!

Thank you for your time!

Best,
Lili McMurtrey

Kerr, Monea J.

From: Greta Yocom <yocom.g@gmail.com>
Sent: Tuesday, June 16, 2020 1:52 PM
To: CC - Shared Department
Subject: Downtown drop in center

Hi,

I have been a resident of Bellingham for the last decade. I regularly walk downtown from my home in the Cornwall Park area and shop in the stores and eat in the restaurants.

I am in support of the new drop in site at the former public market.

This building has been vacant for years, and should be repurposed for the drop in center. Providing support to members of our community who are experiencing homelessness is a way that we can uphold the core values of Bham downtown: Bkind, Bstrong.

Thank you,
Greta Yocom
Cornwall Park

Kerr, Monea J.

From: Autumn Baughn <autumnmeyer25@gmail.com>
Sent: Tuesday, June 16, 2020 1:55 PM
To: CC - Shared Department
Subject: Drop In Center DownTown PUBLIC COMMENT

Hi City Counsel!

My name is Autumn Meyer, my husband and I live in the lettered streets right near downtown. We have two young children, we walk, bike, adventure, and enjoy downtown to the fullest as often as possible. We are also small business owners, KCLT home owners, and active in supporting Bellingham!
My husband and I both want to voice our enthusiastic consent and excitement for the new location for the drop in center (Public Market). These are our neighbors and community members. The lack of available services near bus centers, clinics, and support are abysmal and we are ready to vocally, and readily support creating more low barrier access to space, safety, resources, and care for our vulnerable.
As an aside, my family lives very near (can see it from our home!) the new home project by the Opportunity Council on I street, and we are SO GRATEFUL that there are more new services showing up to care for our neighbors.
Thank you for your time, and PLEASE put your change, actions, and support where your words have been and truly show up for our un-housed Bellingham community in true change instead of leaving another building empty that could be serving a massive need for a large segment of your Bellingham friends.

Warmly,

Autumn (Baughn) Meyer
She/Her/Hers
Yoga, movement, and self care. Learn more about my offerings here.

I gratefully acknowledge I live, work, play, and grow on the territory of the People of the Coast Salish Sea. Visit https://native-land.ca/ to learn more about the Indigenous land where you are.

Kerr, Monea J.

From: Garcia, Crystal <crystal@varvid.com>
Sent: Tuesday, June 16, 2020 1:56 PM
To: CC - Shared Department
Subject: Downtown Drop-in Shelter

Dear City Council,

I am writing to urge you to move forward to utilize the Public Market Building as a drop in shelter. As a 7 year resident of Bellingham I formerly resided in the COlumbia Neighborhood and now live in the Lettered Streets. I believe that homeless is a community problem that we all have a responsibility to solve. As a resident that lives less than a mile from this location, I welcome a safe drop in shelter for those experiencing homelessness. Thank you for your time.

--
Crystal Garcia
Live Production Manager
She/Her
Varvid®
206.458.5647
705 Sunset Pond Ln #2
Bellingham, WA 98226
http://www.varvid.com

Kerr, Monea J.

From: Angela Yates <angela.yates@bell-uw.com>
Sent: Tuesday, June 16, 2020 1:58 PM
To: CC - Shared Department
Subject: Drop-In Shelter

Good Afternoon,

I wanted to take a quick moment to send an email in support of the new Emergency Drop-In Shelter location. I believe the Bellingham Public Market fits the needs of our most vulnerable population. The ability to provide a safe place for as many people as possible is more important than ever.

Thank you,

Angela Yates

ANGELA YATES

Bellingham UNDERWRITERS
A DIVISION OF ARROWHEAD GENERAL INSURANCE AGENCY, INC.

Bellingham Underwriters
1417 North State Street, Bellingham, WA 98225

T: 360-671-0500
F: 360-671-3959

angela.yates@bell-uw.com | **Bell-uw.com**
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Kerr, Monea J.

From: andrea garza <dreagarza14@gmail.com>
Sent: Tuesday, June 16, 2020 1:59 PM
To: CC - Shared Department
Subject: Downtown Shelter

Hi my name is Andrea Garza and I live in Bellingham WA. I enjoy spending time downtown and I wanted to reach out with my support for the new drop-in shelter site. I think this site is important/necessary to ensure accessible services to folks experiencing homelessness.

Thank you for your time!

Andrea Garza

Kerr, Monea J.

From: MY - mayorsoffice@cob.org
Sent: Tuesday, June 16, 2020 2:24 PM
To: Kerr, Monea J.
Subject: FW: Shelter

Monea,
Please see the message below for the public comment on the proposed Drop In Center.

Brooksana Raney
Executive Assistant to the Mayor
City of Bellingham
360-778-8100
braney@cob.org

My incoming and outgoing email messages are subject to public disclosure requirements per RCW 42.56

Many in our community are seeking information in this quickly changing situation. We invite you to visit Whatcom Unified Command website, https://whatcomcovid.com/ This website is a one stop location to provide the most current information regarding COVID-19 efforts.

From: Paul Hemminger <bellinghamframeworks@gmail.com>
Sent: Tuesday, June 16, 2020 1:38 PM
To: MY - mayorsoffice@cob.org <mayorsoffice@cob.org>
Subject: Shelter

While I am sympathetic to the homeless and their struggles I really don't like the idea of the proposed location of the drop in center. The homeless population downtown is significant enough to deter people from coming here already. This will make it considerably worse. I could go on as to why but for now I'll leave it at that. I've also seen how they "social distance" at the high school, they dont. They may sleep six feet apart but they dont stay that far apart at any other time or place there. If the virus should spread in there it will downtown as well. I know there are other options. Considering how the virus has affected businesses this is kind of like being kicked when your down. I've been doing business and working on Cornwall in one form or the other for over 25 years. I'd hate to have to leave but I am seriously looking at other options now. I really really really want our downtown to be the safe, fun, and vibrant place people can, shop, dine, and more. Every now and then we take a step closer to that, then something like this comes along and two (or more) steps back we go.--

Paul Hemminger
Bellingham Frameworks
1415 Cornwall Avenue
Bellingham Wa. 98225
360-650-1001
www.bellinghamframeworks.com

Kerr, Monea J.

From: Wren Urbigkit <wrenriverurbigkit@gmail.com>
Sent: Tuesday, June 16, 2020 2:11 PM
To: CC - Shared Department
Subject: In favor of drop-in shelter

I wanted to send a quick note in favor of using the public market as a drop-in shelter. Resources for the homeless in downtown will keep everyone safer and that space should not sit empty while there are people who need it. It also seems like a better option than the mostly residential neighborhood it is in now. Thank you for your consideration.
Wren Urbigkit

Kerr, Monea J.

From: Kate A <kate.kershner@gmail.com>
Sent: Tuesday, June 16, 2020 2:14 PM
To: CC - Shared Department
Subject: Support for Proposed Drop In Location

I just wanted to lend my support to the idea of the drop-in location being at the old Public Market spot.

I work a few blocks away from the space, and am in the area often as a shopper/consumer/general Bellinghamster. I fully advocate for the location. Having a central drop in location doesn't feel unsafe to me; quite the opposite, it feels like a very healthy way for our community to address and recognize homeless people in our downtown core. It's a space that is safe for the folks that use it, and the people around it.

I will absolutely continue to patronize shops and spaces in that area. In fact, I'll be happy to do that MORE if I know that businesses are being supportive and cognizant of occupying spaces with our homeless community.

Thanks so much and I urge you to move forward on it.

Kate
kate.kershner@gmail.com

Kerr, Monea J.

From: Veronica West <vawest18@gmail.com>
Sent: Tuesday, June 16, 2020 2:15 PM
To: CC - Shared Department
Subject: Re: support for former Public Market location for drop-in shelter

Good afternoon,

I am writing in support of the former Public Market location to be welcomed as the new location for a temporary drop-in shelter. As a former employee of the Opportunity Council, I worked with many clients that were experiencing homelessness and relied on local shelters for a roof over their heads at night. Our community includes people that are experiencing homelessness. When people are in need, it is our duty as a community to connect people to safe resources and housing options.

The proposed location on Cornwall Ave is in a very important area- it's close to public transportation and to needed support services (such as those found at Opportunity Council, also on Cornwall Ave); our vulnerable neighbors need to be close to public transportation to get to essential appointments. They need a large enough area to be properly socially distanced.

As it stands, people who are experiencing homelessness are not going anywhere. We as a community need a safe and effective location to provide shelter to our most vulnerable neighbors, and I believe that can be done at the proposed former Public Market on Cornwall Ave.

Thank you for your consideration,

Veronica West
206-914-8590

Kerr, Monea J.

From: Hayley Lawson <hayleydustinlawson@gmail.com>
Sent: Tuesday, June 16, 2020 2:21 PM
To: CC - Shared Department
Subject: In Support of Drop-in Shelter

Dear Council Members,

My name is Hayley Lawson and I am writing in support of the new proposed location of the Drop-In Shelter at the former Public Market building. I am a Bellingham resident living on W. Illinois in the Cornwall Park neighborhood.

I know the importance of a drop in shelter that is centrally located, near bus services and close to necessary resources. A location in the heart of the city is essential for our homeless neighbors to be able to access anything they may need daily.

As a parent of two BSD students, I have been fully in support of the city and school district using Bellingham High School for the temporary location. As fall nears, I support relocating to the more permanent suggested location at the Public Market building.

Thank you for considering my input.

Sincerely,

Hayley Lawson

--
Hayley Lawson
360.318.4313
hayleydustinlawson@gmail.com

Kerr, Monea J.

From: Josefina Mora <josefinaalanismora@gmail.com>
Sent: Tuesday, June 16, 2020 2:28 PM
To: CC - Shared Department
Subject: In Support for Proposed Drop in Shelter location

Hello,

My name is Josefina Mora, I am a resident of Bellingham that works downtown and often shops downtown because of its convenience to my workplace. I am in support of the new proposed drop in shelter location downtown. This project is critical in our community because unsheltered folks are the most vulnerable community for contracting COVID-19, and with the unlikelihood of a new business wanting that big building, it's critical we use the location for making sure people are able to meet their basic needs rather than letting it sit empty.

Thank you,

Josefina Mora

Kerr, Monea J.

From: Susan Marks <susanmarks@yahoo.com>
Sent: Tuesday, June 16, 2020 2:29 PM
To: CC - Shared Department
Subject: Support for drop-in shelter at public market

Hello,

I am writing to express my unwavering support for the proposal to utilize the public market space as a drop-in shelter for our community members who are homeless. I work and shop downtown, and many of my colleagues have been used to parking in the public market.

I know that many people in our community mis-understand the population of people who are unhoused and are concerned about this drop-in shelter being downtown. Yet I know that people who are unhoused are at high risk for experiencing violence and harm - and more so, with all of the risks associated with COVID-19. I also believe that we are all safer, healthier, and stronger as a community when everyone has access to their full human rights, including shelter. If there is an inconvenience related to parking, if I have to have new conversations with my children about people they may see more frequently downtown, or if I have to experience discomfort due to my own internal biases - I find that those are all small prices to pay for proving a safe place to sleep for people who are homeless.

I look forward to hearing of the decision you all make this evening, and to seeing this open and empty space turned into a drop-in shelter.

Best,

Susan Marks
3015 Pacific Street
Bellingham, WA 98226
360.224.9333
susanmarks@yahoo.com

City Council Agenda Bill

22666

Bill Number

Subject: **Resolution Exempting the Drop-In Center at 1530 Cornwall Avenue from State Building Code Requirements in Order to Provide Housing for Indigent Persons Consistent with the Provisions of RCW 19.27**

Summary Statement: The Lighthouse Mission Ministries plans to operate an emergency shelter at 1530 Cornwall Ave. The use of this facility for a shelter is permitted through Emergency Ordinance 2020-03-008. Consistent with state law, building code requirements may be waived provided that: the building provides housing to indigent persons; is preexisting; is owned or administered by a public or a nonprofit corporation; and is found to be safe. The Building Official and Fire Marshal have determined that the building poses no threat to human life, health or safety. Additionally, all other criteria established in RCW 19.27.042 have been met. The adoption of the proposed resolution will allow the safe operation of the emergency shelter without strict compliance with the code.

Previous Council Action: **Ordinance 2020-02-003 allowing temporary encampments in buildings in public zoning districts through a Type II review process was approved by Council on February 10, 2020.**

Fiscal Impact: **$700,000 contribution from the City for expenses such as lease payments, tenant improvements and furnishings.**

Funding Source: **Federal Grant Funds and Housing Levy**

Attachments:
1. STAFF MEMO
2. DRAFT RESOLUTION
3. RCW 19.27.042

Meeting Activity	Meeting Date	Recommendation	Presented By	Time
Evening Presentation	6/16/2020	Vote to Approve	Rick Sepler, Planning Director	2 minutes

Recommended Motion:

Council Committee:

Agenda Bill Contact:
Rick Sepler, Planning and Community Development, 360-778-8300

Reviewed By	Department	Date
Rick M. Sepler	Planning & Community Development	6/11/2020
Alan A. Marriner	Legal	6/11/2020
Seth M. Fleetwood	Executive	6/15/2020

Council Action:

City of Bellingham
210 Lottie Street
Bellingham, WA 98225

MEMORANDUM

TO: CITY COUNCIL

FROM: RICK SEPLER, PLANNING AND COMMUNITY DEVELOPMENT DIRECTOR

CC: MAYOR FLEETWOOD

SUBJECT: RESOLUTION EXEMPTING THE DROP-IN CENTER EMERGENCY SHELTER FROM STATE BUILDING CODE REQUIREMENTS

DATE: JUNE 16, 2020

The Lighthouse Mission Ministries (LMM) is proposing to establish an Emergency Shelter in an existing building located at 1530 Cornwall Avenue. The use of the subject facility for a shelter is permitted by an Emergency Ordinance 2020-030-008.

The proposed shelter is not in full compliance with all of the requirements of the building code for this use. However, compliance with the deficient requirements may be waived provided that the building is found to be safe, is used to provide housing for indigent persons and meets the requirements of RCW 19.27.042.

The Building Official and Fire Marshal have determined that the building poses no threat to human life, health or safety. Staff has determined that all other applicable criteria established in RCW 19.27.042 have been met. The adoption of the proposed resolution will allow the operation of the Drop-in Shelter at this location to respond to the public health emergency without strict compliance with the building code, while still being safe.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY OF BELLINGHAM EXEMPTING THE EMERGENCY SHELTER AT 1530 CORNWALL AVE FROM COMPLIANCE WITH STATE BUILDING CODE REQUIREMENTS UNTIL JUNE 16, 2024.

WHEREAS, the Mayor of the City of Bellingham declared a public health emergency though a Proclamation of Local Emergency on March 12, 2020;

WHEREAS, the City has determined that an emergency facility to house the unsheltered is needed and in the public interest;

WHEREAS, the City has identified a location for an emergency facility at 1530 Cornwall Avenue in Bellingham, Washington;

WHEREAS, the Building owner has entered into a lease agreement with the City for a period of 3 years, with an option to renew for an additional year;

WHEREAS, the Lighthouse Mission Ministry, a 501(c)(3) tax-exempt organization, will oversee the operations of the shelter;

WHEREAS, the Mayor of the City of Bellingham has determined that the use of this Building for an emergency shelter is necessary to protect public safety and health;

WHEREAS, the use of the Building for an emergency shelter is permitted by Emergency Ordinance number 2020-03-008;

WHEREAS, the Building does not comply with all requirements of the state building code;

WHEREAS, RCW 19.27.042 authorizes the City to adopt a resolution to exempt from state building code requirements a building whose character of use or occupancy has been changed in order to provide housing for indigent persons;

WHEREAS, RCW 19.27.042 limits the exemption to existing buildings in the State owned or administered by a public agency or nonprofit corporation;

WHEREAS, RCW 19.27.042 requires that any code deficiencies to be exempted pose no threat to human life, health, and safety;

WHEREAS, the exemption granted under RCW 19.27.042 is limited to a maximum of 5 years;

City of Bellingham
City Attorney
210 Lottie Street
Bellingham, Washington 98225
360-778-8270

WHEREAS, the lease agreement allows for a maximum term of 4 years at this site;

WHEREAS, the City's Building Official and Fire Marshal have determined that the Building's code deficiencies to be exempted pose no threat to human life, health, or safety;

WHEREAS, the Building at 1530 Cornwall Avenue meets the requirements of RCW 19.27.042, as it is an existing building whose character of use or occupancy has been changed in order to provide housing for indigent persons by the Lighthouse Mission Ministries, Whatcom County and the City of Bellingham;

WHEREAS, the adoption of this Resolution will allow the use of the Building as an emergency homeless shelter without strict compliance with the state building code;

NOW THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF BELLINGHAM:

The Public Market Building located at 1530 Cornwall Avenue in Bellingham, Washington, which provides housing for indigent persons, is except from strict compliance with the state building code until June 16, 2024.

PASSED by the Council this ____ day of _____, 2020.

_____
Council President

APPROVED this _____ day of _____, 2020.

_____
Seth Fleetwood, Mayor

_____
Director of Planning & Community Development

ATTEST:

City of Bellingham
City Attorney
210 Lottie Street
Bellingham, Washington 98225
360-778-8270

_____
Finance Director

APPROVED AS TO FORM:

_____
Office of the City Attorney

City of Bellingham
City Attorney
210 Lottie Street
Bellingham, Washington 98225
360-778-8270

RCW 19.27.042

Cities and counties—Emergency exemptions for housing for indigent persons.

(1) Effective January 1, 1992, the legislative authorities of cities and counties may adopt an ordinance or resolution to exempt from state building code requirements buildings whose character of use or occupancy has been changed in order to provide housing for indigent persons. The ordinance or resolution allowing the exemption shall include the following conditions:

(a) The exemption is limited to existing buildings located in this state;

(b) Any code deficiencies to be exempted pose no threat to human life, health, or safety;

(c) The building or buildings exempted under this section are owned or administered by a public agency or nonprofit corporation; and

(d) The exemption is authorized for no more than five years on any given building. An exemption for a building may be renewed if the requirements of this section are met for each renewal.

(2) By January 1, 1992, the state building code council shall adopt by rule, guidelines for cities and counties exempting buildings under subsection (1) of this section.

[1991 c 139 § 1.]